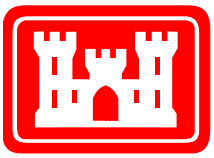

US Army Corps
of Engineers
Louisville District

Solicitation For

MRAR Repair ECS,B56767
North Cavazos, TX

P2: 515198

Design-Build

Specifications
Phase 1 Package

26 March 2025
W912QR25RA013

ARIMS: 200A
Disposition: Maintain for 15yrs after construction

SOLICITATION, OFFER, AND AWARD

(Construction, Alteration, or Repair)

1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE OF PAGES
W912QR25RA013	☐ SEALED BID (IFB) ☐ INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	26-Mar-2025	1 86

W912QR25RA013_Specs_Ph1-0000

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER	5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
		P2 515198

7. ISSUED BY	CODE	8. ADDRESS OFFER TO
W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES BONNY DYLEWSKI, EMAIL: BONNY.C.DYLEWSKI@USACE.ARMY.MIL	W912QR	W072 ENDIST LOUISVILLE KO CONTRACTING DIVISION, 600 DR MARTIN LUTHER KING JR PL LOUISVILLE, KY 40202-2230 UNITED STATES

9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(Include area code) (NO COLLECT CALLS)*
	BONNY DYLEWSKI	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: DESIGN/BUILD MAINTENANCE & REPAIR ARMY RESERVE (MRAR) EQUIPMENT CONCENTRATION SITE (ECS) - 64
PROJECT LOCATION: NORTH CAVAZOS, TX

ESTIMATED CONSTRUCTION COST IS BETWEEN $10,000,000 AND $25,000,000 PER DFARS 236.204.

NAICS CODE 236220. SIZE DETERMINATION: $45,000,000. PLEASE NOTE THAT BUSINESS SIZE IN SAM IS DETERMINED BY THE NAICS CODE. IF THE VENDOR SIZE IS NOT LISTED CORRECTLY FOR A PARTICULAR NAICS CODE IN SAM THE BUSINESS WILL BE CONSIDERED OTHER THAN A SMALL BUSINESS.

THIS PROJECT IS SET-ASIDE FOR 100% SMALL BUSINESS.

THIS AWARD IS SUBJECT TO THE AVAILABILITY OF FUNDS (SAF).

11. The contractor shall begin performance within 10 calendar days and complete it within 913 calendar days after receiving ☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. ***(See*** FAR 52.211-10 ***).***

12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? *(If "YES", indicate within how many calendar days after award in Item 12b.)*	12b. CALENDAR DAYS
☒ YES ☐ NO	10

13. ADDITIONAL SOLICITATION REQUIREMENTS:

a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by 05:00 PM ***(hour)*** local time 25 APR 2025 (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.

b. An offer guarantee ☐ is, ☒ is not required.

c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.

d. Offers providing less than 120 calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.

OFFER *(Must be fully completed by offeror)*

W912QR25RA013_Specs_Ph1-0000

14. NAME AND ADDRESS OF OFFEROR *(Include ZIP Code)*	15. TELEPHONE NUMBER *(Include area code)*
	16. REMITTANCE ADDRESS *(Include only if different than Item 14.)*
CODE FACILITY CODE	

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. *(Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)*

AMOUNTS ▶

18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS
(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER *(Type or print)*	20b. SIGNATURE	20c. OFFER DATE

AWARD *(To be completed by Government)*

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA

24. SUBMIT INVOICES TO ADDRESS SHOWN IN *(4 copies unless otherwise specified)* ▶ ITEM	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) ( ) ☐ 41 U.S.C. 3304(a) ( )
26. ADMINISTERED BY	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT *(Contractor is required to sign this document and return _____ copies to issuing office.)* Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.

☐ 29. AWARD *(Contractor is not required to sign this document.)* Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.

30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN *(Type or print)*		31a. NAME OF CONTRACTING OFFICER *(Type or print)*	
30b. SIGNATURE	30c. DATE	31b. UNITED STATES OF AMERICA BY	31c. DATE

Section 00 00 00 - Procurement and Contracting Requirements

Design/Build Maintenance & Repair Army Reserve (MRAR) Equipment Concentration Site (ECS), B56767, North Cavazos, TX

Section 00 10 00 - Solicitation

BLOCK 10 CONTINUATION PAGE

The offer due date and time specified in Block 13.A. is in the Eastern Time (ET) zone.

Contractors must register and complete the representations and certification requirements in the System for Award Management (SAM) Database, available at https://sam.gov. Please ensure your annual SAM registration is current. Offerors must comply with the requirements of 52.204-7, 52.232-33, and any other representation and certification requirements in the solicitation through SAM. **PLEASE NOTE:** SAM is completely free of charge.

Technical inquiries and questions relating to the proposal procedures or bonds are to be submitted via Bidder Inquiry in ProjNet at http://projnet.org/projnet. Please see Section 00 21 00, ProjNet Instructions / Offeror's Questions and Comments for further instructions.

The Government is requiring electronic submission of proposals. Please follow the provided instructions precisely. Please see Section 00 21 00, Proposal Submission Instructions.

The term bid and proposal are used interchangeably in industry and may be used interchangeably throughout this Solicitation.

Box 13 is marked as 0 sealed offer copies due to this solicitation requiring full electronic proposals.

The initial solicitation for Phase I contains only the information needed for offerors to prepare their proposals for Phase I.

The remaining technical specifications information and the Price Breakout Schedule (PBS) will be issued during the Phase II amendment. Only those offerors identified as among the most highly qualified offerors from Phase I, will be selected to participate in Phase II and invited to submit technical and price proposals for Phase II.

An organized Site Visit will be conducted during Phase II. Please see FAR 52.236-27 ALT 1 for Site Visit information with the release of the Phase II amendment.

Please note, page numbering in this document may not be accurate.

All days are to be considered calendar days, unless otherwise noted.

NOTICE TO POTENTIAL OFFERORS: In accordance with DFARS 204.7302, Contractors and Subcontractors are required to provide adequate security on all covered contractor information systems.

Contractors are required to implement **National Institute of Standards and Technology (NIST)** Special Publication (SP) 800-171 by inclusion of clause at 252.204-7012, *Safeguarding Covered Defense Information and Cyber incident Reporting*, , are required at time of award to have at least a Basic NIST SP 800-171 DoD Assessment that is current (i.e., not more than 3 years old unless a lesser time is specified in the solicitation).

SPRS provides storage and access to the NIST SP 800-171 assessment scoring information. To access the NIST SP 800-171 Assessments module, users must be registered in the Procurement Integrated Enterprise Environment (PIEE) https://piee.eb.mil/ and be approved for access to Supplier Performance Risk System (SPRS).

The NIST SP 800-171 DoD Assessment Methodology is located at:
https://www.acq.osd.mil/asda/dpc/cp/cyber/safeguarding.html#nistSP800171

Vendor Help and Training Tutorials are available at https://www.sprs.csd.disa.mil/nistsp.htm

Section 00 20 00 - Instructions for Procurements

FAR Clauses Incorporated by Full Text

52.236-27 Site Visit (Construction). (Alternate I) (Feb 1995) Alternate I (Feb 1995)

(a) The clauses at 52.236-2, Differing Site Conditions, and 52.236-3, Site Investigations and Conditions Affecting the Work, will be included in any contract award as a result of this solicitation. Accordingly, offerors are urged and expected to inspect the site where the work will be performed.

(b) An organized site visit has will be conducted during Phase II of the solicitation. This provision will be updated to provide the meeting date and time with the release of Phase II.

(c) Information regarding meeting location, point of contact, access requirements, etc. will be provided with the release of the Phase II amendment.

(End of provision)

Section 00 21 00 – Instructions

PROJNET INSTRUCTIONS

OFFEROR'S QUESTIONS AND COMMENTS

Technical inquiries and questions relating to proposal procedures or bonds are to be submitted via Bidder Inquiry in ProjNet at http://www.ProjNet.org/ProjNet. As noted below, offerors shall not submit their proposals via ProjNet. Offerors shall submit their proposals in accordance with the provisions stated in the solicitation.

To submit and review bid inquiry items, bidders will need to be a current registered user or self-register into system.

The Solicitation Number is: **W912QR25RA013**
The Bidder Inquiry Key is: **5SARPI-3QNE66**

Specific Instructions for ProjNet Bid Inquiry Access:

a. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
b. Identify the Agency. This should be marked as **USACE**.
c. Key. Enter the **Bidder Inquiry Key** listed above.
d. Email. Enter the email address you would like to use for communication.
e. Select Continue. A page will then open stating a user account was not found and will ask you to create one using the provided form.
f. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
g. Select Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

a. For future access to ProjNet, you will not be emailed any type of password. You will utilize your Secret Question and Secret Answer to log in.
b. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
c. Identify the Agency. This should be marked as **USACE**.
d. Key. Enter the **Bidder Inquiry Key** listed above.
e. Email. Enter the email address you used to register previously in ProjNet.
f. Select Continue. A page will then open asking you to enter the answer to your Secret Question.
g. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

From this page you may view all bidder inquiries or add an inquiry.

Bidders will receive an acknowledgement of their question via email, followed by an answer to their question after it has been processed by our technical team.

Offerors are requested to review the specification in its entirety and to review the Bidder Inquiry System for answers to questions prior to submission of a new inquiry.

The call center operates weekdays from 8AM to 5PM U.S. Central Time Zone (Chicago). The telephone number for the Call Center is 800-428-HELP.

Offers will NOT be publicly opened. Information concerning the status of the evaluation and/or award will NOT be available after receipt of proposals.

NOTES:

1. Offerors shall not submit their proposals via ProjNet, but in accordance with the provisions stated in the solicitation. Any questions regarding acceptable means of submitting offers shall be made directly to the Contract Specialist identified in the solicitation.

2. Government responses to technical inquiries and questions relating to proposal procedures or bonds that are submitted to ProjNet in accordance with the procedures above are not binding on the Government unless an amendment is issued on Standard Form (SF) 30. In the case of any conflicts, the solicitation governs. Any changes or revisions to the solicitation will be made by formal amendment. Government responses will be limited to: (a) Notice that an amendment will be issued; (b) Reference to an existing requirement contained in the solicitation; or (c) Notice that a response is not necessary.

3. The ability to enter technical inquiries and questions relating to proposal procedures or bonds will be **disabled on Tuesday, 15 April 2025 at 2:00 p.m. Eastern Time (ET)**. No Government responses will be entered into the ProjNet system after Monday, 21 April 2025 at 2:00 p.m. ET.

ELECTRONIC PROPOSAL SUBMISSION

Proposals: ALL SUBMISSIONS TO THIS PROPOSAL ANNOUNCEMENT SHALL BE SUBMITTED ELECTRONICALLY THROUGH THE PROCUREMENT INTEGRATED ENTERPRISE ENVIRONMENT (PIEE) SOLICITATION MODULE BEFORE THE TIME SPECIFIED IN BLOCK 13 OF THE SF1442. **No paper copies, CD-ROMS, DVDs, facsimile, emails, or DoD SAFE submissions will be accepted.**

A User ID and Password are required to access PIEE. Offerors are required to self-register as a Vendor or Contractor with the user's CAGE code(s) and must have an active registration in the System for Award Management (SAM) prior to the PIEE registration process.

1. Instructions for registering in PIEE:

a. Navigate to https://piee.eb.mil/

b. Select "Register" [top right],or go to https://piee.eb.mil/xhtml/unauth/registration/notice.xhtml

c. Select "Vendor"

d. Create a User ID and Password and follow the prompts [next]

e. Create Security Questions [next]

f. Complete your User Profile Information [next]

g. Complete your Supervisor or Approving Official Information [next]

h. Complete Roles:

(1) Step 1. Select SOL-Solicitation
(2) Step 2. Select Proposal Manager
(3) Step 3. Click Add Roles
(4) Step 4. Fill in your Location Code (CAGE Code) [next]

i. Provide a justification for your registration [next]

j. Follow the remaining prompts to submit your registration

2. Instructions for Electronic Proposal Submissions in PIEE Solicitation Module:

a. Log into PIEE and select the Solicitation Icon.

b. Enter search criteria to find the solicitation. (Search Criteria can be the complete solicitation number, Solicitation Open Date, Response Due Date, Product or Service Code, NAICS, Set Aside code, Place of Performance Zip Code, Contracting Office DODAAC, or Status).

c. The search results display. **Select the Solicitation Number link** to open the solicitation.

d. The solicitation displays. The information is view only.

e. Scroll down to see the Contract Information and Attachments. The Attachments can be viewed by selecting the File link. Scroll back up to the top of the screen and click the Offer tab.

f. Click the Offer tab to Add and review current offers on the Solicitation. Click the Add button to add an offer to the Solicitation.

g. Select the applicable CAGE Code for which submitting the offer for. The list is prefiltered based on the CAGEs in the Proposal Manager's profile.

h. Upload the attachments that comprise the offer by selecting the Choose Files link.

i. After entering all necessary information enter a Signature Date and Click the Signature button.

j. The "Sign Document" pop-up window will be displayed requiring the user to enter a Digital PIN and One Time Password (OTP). Click the "Sign and Submit" button to continue.

k. After successfully adding the Offer a success message of the submission will be displayed and the offer displayed collapsed. Users may expand and view all their offers on a Solicitation.

File Size Limitations: Offerors are advised to follow the above instructions for uploading files. If needed, Offerors are advised to break the files down into smaller sections in order to upload it to the system. In such cases, please divide the sections as logically as possible and be sure to clearly name the files as specified below.

File Naming Convention: To ensure your submission is received and processed appropriately, it is important that interested parties CAREFULLY ensure their electronic files adhere to the following naming convention:

- W912QR25RA012_FIRMNAME_VOLUME_I
- W912QR25RA012_FIRMNAME_VOLUME_II

Each file name shall begin with the solicitation number followed by the firm's name and a brief file description. Please see examples above. *(***__NOTE:__ The PIEE Solicitation Module will replace special characters and spaces in the attachment filename with underscores "_"***)*

File Organization: Although hard copies are not accepted, each file shall be clearly indexed, and logically assembled. Font size shall be 11 or larger. Pages shall be letter sized (larger page sizes (such as 11x17 fold-outs, etc.) will be counted as two (2) pages. Proposals shall be in a narrative format, organized and titled so that each section of the proposal follows the order and format of the factors. Information presented should be organized so as to pertain to only the evaluation factor in the section that the information is presented. Information pertaining to more than one evaluation factor should be repeated in each section for each factor.

Upload Completion & Deadline: Offerors are highly encouraged to become familiar with the PIEE Solicitation module well in advance of the proposal due date. Interested Offerors shall submit proposals no later than the date specified on the solicitation document. The time & date of proposal receipt will be the upload completion / delivery time & date recorded within PIEE Solicitation module. Do not assume that electronic submission will occur instantaneously. Large files will take some time to upload. Offerors should time their upload effort with prudence by not waiting until the last few minutes—this will allow for unexpected delays in the transmittal process. Offerors are encouraged to keep a copy of the upload confirmation for their record. Submissions after the deadline will be considered late and will be processed in accordance with FAR 15.208.

Electronic Files: Files shall be in their native format (i.e. doc, xls, ppt, etc.), or if in pdf format, shall be in searchable text. Text and graphics portfolios of the electronic copies shall be in a format readable by Microsoft Office or Adobe applications. Data submitted in a spreadsheet format shall be readable by MS Excel (all cells and formulas should be unlocked).

Any information, presented in a proposal that the Offeror wants safeguarded from disclosure to other parties must be identified and labeled in accordance with the requirements of Provision "FAR 52.215-1, Instructions to Offerors – Competitive Acquisition (Nov 2021)," subparagraph (e), which is found in Section 00 70 00 - Conditions of the

Contract.. The Government will endeavor to honor the restrictions against release requested by Offerors, to the extent permitted under United States law and regulations.

For training and help using the PIEE Solicitation module, reference the links below.

a. New User Information and Help: https://piee.eb.mil/xhtml/unauth/help/helpvendors.xhtml
b. Vendor Customer Support: https://piee.eb.mil/xhtml/unauth/web/homepage/vendorCustomerSupport.xhtml
c. Solicitation - Web Based Training: https://pieetraining.eb.mil/wbt/xhtml/wbt/sol/index.xhtml

The Procurement Integrated Enterprise Environment (PIEE) help desk may be reached by calling telephone number 866-618-5988 for assistance.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-7	System for Award Management.	Nov 2024		
52.204-22	Alternative Line Item Proposal.	Jan 2017		
52.222-5	Construction Wage Rate Requirements-Secondary Site of the Work.	May 2014		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		

FAR Clauses Incorporated by Full Text

52.233-2 Service of Protest. (Sep 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

U.S. Army Corps of Engineers
(ATTN: CELRL, Adam M. Wantland)
600 Dr. Martin Luther King Jr. Place, Suite #821
Louisville, KY 40202

(b) The copy of any protest shall be received in the office designated above within oneday of filing a protest with the GAO.

(End of provision)

52.252-1 Solicitation Provisions Incorporated by Reference. (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

The full text of the Federal Acquisition Regulation (FAR) provisions can be found at https://www.acquisition.gov.

The full text of the Defense Federal Acquisition Regulation Supplement (DFARS) can be found at https://www.acq.osd.mil/dpap/dars /dfarspgi /current/index.html.

(End of provision)

52.252-5 Authorized Deviations in Provisions. (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulation Supplement (DFARS) (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

Section 00 21 16 - Instructions to Proposers

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.211-6	Brand Name or Equal.	Aug 1999		

Section 00 22 16 – Procedures for Submittal of Offers and Proposal Evaluation Criteria for Phase I

1. Overview.

1.1 The intent of this solicitation is to select one contractor for Design and Construction of the Maintenance and Repair Army Reserve (MRAR) on the existing Equipment Concentration Site (ECS), B-56767 on the federally owned site North Fort Cavazos. This Design-Build project will repair and construct an addition to an existing ~26,000 square feet of the maintenance part of the Equipment Concentration Site (ECS), Maintenance Building 56767, that is in a failing condition, constructed on 23 July 2001, and has not undergone any major infrastructure or system repairs, only limited maintenance and repair work has occurred. Project includes repair of HVAC and Electrical systems, remove non-structural interior walls to right-size rooms and create open flexible workspace, restore inadequate and non-code compliant bathrooms, repair light fixtures with code compliant units, failed flooring, code compliant fire alarm and suppression system, repair electrical conduit distribution throughout the facility. Access for individuals with disabilities will be provided to include a code compliant entrance ramp. The restored facility will meet minimum DOD Antiterrorism standards.

1.2 This is a two-phase procurement and the basis of award is the Best Value Trade-Off Process. Potential offerors are invited to submit the information described in this Section 00 22 16 for review and evaluation by the Government. Following completion of the evaluation of Phase I, a target of five (5) of the most highly qualified offerors will be selected to participate in Phase II. **A site visit will be held for these selected offerors following the Phase II notification.** The selected offerors for Phase II will be invited to submit the information described in Section 00 22 18, Procedures for Submittal of Offers for Phase II, for review and evaluation by the Government. Following completion of the Phase II evaluation, the Contracting Officer will award a Firm-Fixed Price (FFP) contract to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, all factors considered. The Government reserves the right to accept other than the lowest priced offer or to reject all offers.

*** NOTE: The rating information from Phase I will not be considered in Phase II or in the final selection.**

1.3 This project is subject to availability (SAF) of funds. No award will be made under this solicitation until funds are available.

2. Submittal of offers.

2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to clearly describe the offeror's capability for successfully completing the solicited project. Requirements stated in this Request for Proposal (RFP) are minimums. Proposals should follow in the order of sequence set forth in the RFP. Information provided out of sequence may not be evaluated and may result in the offeror’s disqualification from award.

2.2 Offerors shall submit their proposals electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442. *** NOTE:** The Louisville District is in the Eastern Time Zone. Hard copy and/or email copy of proposals will not be accepted. Offerors are encouraged to save a copy of their PIEE confirmation of upload in the event there is a technical issue to show proof of upload.

2.3 The Government is using a two-phase procurement approach for this Design/Build project. For Phase I, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.4 and 2.5 below. All proposal materials shall be electronically in accordance with the Proposal Submission Instructions in Section 0 21 00 of the solicitation. Phase I proposal sections should parallel the submission requirements identified herein.

2.4 The complete Volume I shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and include the following information:

- Volume I – Factor I: Past Performance
  - Prime Contractor
  - A/E Designer of Record (DOR)

- Volume I – Factor II: Technical Approach for Design/Build

* **NOTE:** Failure to place the required submission information under the appropriate tab may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted that exceeds the specified limit(s) will not be evaluated.

2.5 Volume II shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and shall include the following information:

- Volume II – Tab A: Standard Form 1442
- Volume II – Tab B: Joint Venture Agreements
- Volume II – Tab C: Evidence of Ability to Obtain Bonding and Proof of Financial Ability
- Volume II – Tab D: Pre-Award Information

* **NOTE: Phase I does NOT involve pricing submission.** Failure to place the required submission information under the appropriate tab may result in a lower rating if the evaluators cannot readily find the appropriate information.

3. Proposal Evaluation Process.

3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical (Volume I) proposals will be reviewed and rated without knowledge of the price offered. The number and identities of offerors are not revealed to anyone not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is a Best Value Trade-Off, as stated in paragraph 1.2 above.

3.2 The evaluation process for Phase I essentially consists of two parts: proposal compliance/responsibility review and technical evaluation.

3.2.1 Proposal Compliance / Responsibility Review: This is an initial review to ensure that all required forms and certifications are complete and that the offeror is financially capable of sustaining performance under the contract and is able to obtain the required level of performance and payment bonds from an acceptable surety.

3.2.2 Technical Evaluation: The SSEB will evaluate and rate the Volume I proposals against the RFP requirements. Factor I – Past Performance will be rated using Paragraph 4.5 Tables 1 and 2. The rating will be based on

overall confidence in performance, with the final confidence assessment rating based on the extent of recent, relevant past experience and the quality of the offeror's performance. Factor II – Technical Approach will be rated using Paragraph 4.5, Table 3.

4. Proposal Information and Related Evaluation Factors.

4.1 Phase I proposals will be evaluated in accordance with the factors below, listed in relative order of importance. Offerors are reminded to include their best technical proposal in their initial offer. The initial offer and subsequent Government evaluation will be the basis for the Contracting Officer's selection of a target of five (5) of the most highly qualified offerors to continue on to Phase II of the procurement.

4.2 **Volume I – Factor I – Past Performance** — 1st

- Prime Contractor — Equal to A/E DOR
- A/E Designer of Record (DOR) — Equal to Prime

4.3 **Volume I – Factor II – Technical Approach For Design/Build** — 2nd

4.4 **Volume II – Pro Forma Information**

Tab A	Standard Form 1442	Not Rated
Tab B	Joint Venture Agreement	Not Rated
Tab C	Evidence of Ability to Obtain Bonding and Proof of Financial Ability	Not Rated
Tab D	Pre-Award Information	Not Rated

4.5 **Ratings**

Evaluators will apply the rating for the definition that most closely matches the evaluation.

TABLE 1

Past Performance Relevancy Ratings	
Rating	**Description**
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

TABLE 2

Performance Confidence Assessments Ratings	
Rating	**Description**
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

TABLE 3

Combined Technical/Risk Ratings	
Rating	**Description**
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus Proposal contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

4.6 **Definitions**

1. Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation. Adverse past performance that must be addressed with Offerors includes unfavorable comments received from sources such as those received from respondents from past performance questionnaires or interviews that have not been finalized within a formal rating system.

2. Clarifications. Limited exchanges between the Government and offerors that may occur when award without discussions is contemplated. See FAR 15.306(a)(1).

3. Deficiency. A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

4. Performance Confidence Assessment. An evaluation of the likelihood (or Government's confidence) that the offeror will successfully perform the solicitation's requirements; the evaluation is based upon past performance information.

5. Recency. As it pertains to past performance information, a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant.

6. Relevancy. As it pertains to past performance information, a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.

7. Risk. As it pertains to source selection, the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

8. Significant Strength. An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

9. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

10. Strength. An aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

11. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

12. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

5. Volume I – Factor I: Past Performance

5.1 Submission Requirements:

5.1.1 Prime Contractor:

Provide descriptions of up to three (3) projects substantially complete or completed by the Prime Contractor within the last five (5) years (from the solicitation issue date) that are similar to this project in size and scope. Projects completed more than five (5) years before the solicitation issue date may be considered for evaluation purposes but may lessen the overall relevancy rating for that project. Projects are considered substantially complete if enough work (i.e., at least 95% construction complete) has been performed such that it demonstrates the ability to successfully complete all phases of the project. If the project is not yet completed, describe the work left to be completed. If commissioning is not finalized, provide its current status. An Indefinite Delivery

Indefinite Quantity (IDIQ) contract may be submitted only if a single task order could be considered similar to this project. Task orders may not be combined in order for the project to be considered similar.

* **NOTE 1:** Projects that include exclusively new construction will **NOT** be considered similar in size or scope to the solicited project.

* **NOTE 2:** Projects that include only cosmetic or minor updates (i.e., new flooring, paint, fixtures, etc.) will **NOT** be considered similar in size or scope to the solicited project.

5.1.2 Projects considered similar in size would be complete renovation projects that include a minimum of 15,000 square feet or greater of renovated building.

5.1.3 Projects considered similar in scope to this project include Complete Building Renovation of buildings similar to:

a) Equipment Concentration Sites (ECS)
b) Army Reserve Centers (ARC)
c) Area Maintenance Support Activities (AMSA)
d) Vehicle Maintenance Shops (VMS)
e) National Guard Armories
f) Vehicle Repair Depots
g) Fleet Maintenance Centers
h) Heavy Equipment Maintenance Facilities

Project can also include new construction; however, project scope shall be at least 75% complete building renovation, measured in square footage to be considered similar in scope. If replying with projects that are combined new and renovation construction, clearly delineate (based on square feet) the renovation versus new construction portion and percent (%) of the project.

Complete building renovation includes, but is not limited to, experience with architectural, structural, mechanical, electrical, plumbing, data, fire protection and communication systems renovations.

5.1.4 The prime contractor must have self-performed at least fifteen (15) percent of the direct contract labor (including testing and layout personnel), exclusive of other general conditions or field overhead personnel, material, equipment, or subcontractors to be considered similar.

5.1.5 Additional consideration may be given for projects that contain the following features:

a) Established working relationship with the proposed DOR on previous Design/Build projects.

b) Building construction/renovation projects that demonstrate experience with the Fort Cavazos military installation

c) Experience with construction project(s) for USACE.

5.1.6 The following information shall be provided for each project:

a) Project Title, Location, and Contract Number/Unique Entity ID (UEI)

b) Current percentage of construction complete (includes commissioning activities) and the date it was or will be complete
   i. For projects that are not yet complete, provide description of work remaining to be completed.
   ii. If commissioning is not finalized, provide its current status.

c) Scope of the project, to include purpose/use of facility

d) Size of the project, differentiate square footage of new construction versus renovation if the project includes both

e) Type and percentage of work that was self-performed
   a. Self-Performance must be a minimum of 15% on submitted projects in order to receive any rating higher than Somewhat Relevant (though a Somewhat Relevant rating is not guaranteed), size, scope, recency, and additional considerations notwithstanding.

f) If the project was Design/Bid or Design/Bid/Build.

g) Whether the project was renovation or new construction (indicate based on Square Footage the renovation versus new construction portion and percent (%) of the project).

h) Dollar Value of Project

i) Customer primary point of contact (POC) and alternate POC (name, relationship to project, agency/firm affiliation, city, state, current and correct phone number, and current and correct email address)

5.1.7 For this factor, also include any ratings, letters, awards, etc. that support past performance on these projects. Any of this information that is submitted shall clearly identify to which of the submitted projects it pertains. A sample Past Performance Questionnaire (PPQ) is attached for your convenience. If used, the Past Performance Questionnaire must be submitted by the offeror with the proposal submission and not sent directly to the agency by the reference. For each project, the offeror may provide information on problems encountered on the identified contracts and the offeror's respective corrective action.

* **NOTE**: For purposes of evaluating past performance, the Prime Contractor is defined as the contractor identified in Block 14 of the Standard Form (SF) 1442. Projects performed by contractors other than the offeror, including, but not limited to, teaming partners, subcontractors, and sister or parent companies will not be evaluated for past performance, unless those other contractors are part of a joint venture offeror as demonstrated by a signed joint venture (JV) agreement, or unless those other contractors are affiliates of the offeror as defined in accordance with 13 CFR 121.103 and with proof of affiliation provided with the offer. If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a Joint Venture (JV), then a signed JV agreement must be submitted with the proposal and the JV shall be registered as such in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each party of the JV must submit their own Unique Entity Identifier (UEI) number with the proposal.

In addition to the joint venture agreement, small business offerors submitting a proposal as a Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé agreement under Volume II, Tab B of the proposal. (See Section 7.2). Projects performed by other contractors than the offeror, such as teaming partners or subcontractors, will not be evaluated for past performance, unless those other contractors are part of a JV offeror as demonstrated by a signed JV agreement. If the offeror represents the combining of two or more companies as a JV for the purpose of this RFP, each company in the JV may submit project examples, but the total submitted by the JV will not exceed three (3).

Relevant past performance information provided for affiliates of small business offerors will be considered. Affiliates (as defined by FAR 2.101) means associated business concerns or individuals if, directly or indirectly either one controls or can control the other; or third-party controls or can control both. Affiliation will be determined in accordance with 13 CFR 121.103. In determining whether affiliation exists, the Government will consider the totality of the circumstances and may find affiliation even though no single factor is sufficient to

constitute affiliation. If an offeror is submitting the past performance of an affiliate, the offeror must submit proof of affiliation pursuant to 13 CFR 121.103.

5.1.8 A/E Designer of Record (DOR):

Provide descriptions of up to three (3) projects that have been constructed (*i.e.*, construction is substantially complete) within the last six (6) years (from the solicitation issue date) that are similar in size and scope (see paragraphs 5.1.2 and 5.1.3 above). In order to be considered similar, the proposed A/E firm must have been the DOR on the submitted project. The listed design firm must be used on the solicited project. No deviations will be permitted unless approved by the Contracting Officer. Identification of more than one (1) design firm will result in an evaluation based on the least qualified firm. Indicate any previous working relationship with the prime contractor. In addition to the above and below, provide the information requested in paragraph 5.1.6. and 5.1.7. The offeror must affirmatively state who their proposed DOR for the project will be, and provide the DOR's Unique Entity ID (UEI) number and CAGE Code.

5.1.9 Additional consideration may be given for the DOR projects that contain the following feature:

a) Experience with USACE Design/Build Criteria (i.e., AT/FP, UFC, Specs Intact) and/or Army Reserve Design Guide.

5.2 **Evaluation Criteria:**

5.2.1 For both the Prime and DOR, the SSEB will first evaluate the relevancy of recent past performance identified in the proposal in response to paragraph 5.1 above. By using the criteria identified above, the SSEB will determine how relevant a past project is when compared to the scope, size, and magnitude of effort and complexities of the solicited project. A relevancy rating will be assigned to each submitted project using the Past Performance Relevancy Ratings table in Paragraph 4.5, Table 1.

5.2.2 For both the Prime and DOR, the SSEB will next review how well the offeror performed on those projects. The Government reserves the right to check any or all cited references to verify supplied information and to assess owner satisfaction. The Government also reserves the right to not contact the provided references. In addition to the information submitted by the offeror, the Government reserves the right to review any other sources of relevant information for evaluating past performance, including projects other than those submitted by the offeror. The Government will, at a minimum, review past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS), using all CAGE/Unique Entity ID (UEI) numbers. Other sources may include, but are not limited to, past performance information retrieved from inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror. Past performance information retrieved through CPARS, or other sources are not subject to the same evaluation criteria but will instead be reviewed for recent negative performance, trends of negative performance, and any other performance information that may negatively impact the offeror's Confidence rating.

5.2.3 The SSEB will review all past performance information collected for both the Prime and DOR. The SSEB will determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate this information into the performance confidence assessment. The SSEB will assign a final, overall Performance Confidence rating, using the ratings in the Performance Confidence Assessment table above in Paragraph 4.5, Table 2, based on the SSEB's assessment of (1) the degree of the offeror's recent, relevant experience, and (2) how well the offeror performed that experience.

*** NOTE: The Past Performance of both the Prime and A/E DOR will be weighted equally in the establishment of the overall Performance Confidence rating.**

6. Volume I – Factor II: Technical Approach for Design/Build

6.1 **Submission Requirements:**

6.1.1 Collaboration: Provide a narrative that describes the offeror's philosophy and intended technical approach for executing Design-Build projects. Clearly and concisely describe the offeror's Design-Build team, and how key members (e.g., Construction PM, Construction Superintendent, Construction Quality Control, SSHO, Design PM, and Design Quality Control) of the team will work collaboratively to ensure timely, quality completion of the project.

6.1.2 Organization: Describe the firms that compose the offeror's Design-Build team, their resources and how their resources will be utilized, their roles and responsibilities and any contractual arrangements that have been established. Describe the proposed management structure for the Design-Build team, explaining how the design and construction process will be managed and the authorities and the delegations of authority within the Design-Build team.

6.1.3 Quality Control: Describe the Design-Build team's quality control approach, corporate systems and capabilities to maintain quality control of the design and construction. Describe the proposed quality control organization, including the proposed staffing plan.

a) Provide specific information on how you will manage design quality control, track design evolution and changes during design to meet the schedule and to facilitate Government reviews.

b) Provide information on how you will handle internal and external requests for information, shop drawings, submittal reviews, progress meetings, site visits, contract completion, closeout, as-built, and completion documentation.

c) In addition to the required designer-of-record (DOR) roles specified within the RFP for maintaining integrity of the design, describe any other DOR involvement in the quality control process, if any. There is no need to submit a quality control plan as the successful offeror will provide that after award.

* **NOTE:** There is a page limit of ten (10) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Technical Approach Factor.

6.2 **Evaluation Criteria**:

6.2.1 Collaboration: The Government will evaluate the offeror's understanding of the USACE Design/Build process and how well it has demonstrated its ability to successfully execute design-build projects.

6.2.2 Organization: The Government will evaluate clarity and strength of the overall organization, the structure and staffing to execute the entire scope of work. The evaluation will be based on how well the offeror demonstrates their organizational (i.e., the structure and staffing) ability to successfully execute design/build projects, to include the integration of the Designers of Record and construction firms during design and construction. Proposals demonstrating that construction personnel will be actively involved in the design process may be viewed more favorably by the SSEB.

6.2.3 Quality Control: The Government will evaluate the offeror's capabilities and understanding of the contractually required quality control processes for both design and construction. The Government will evaluate the adequacy of the staffing plan to cover all required tasks and responsibilities. The Government will evaluate the strengths of the offeror's proposed system to control and track revisions to the design. The Government will evaluate the role of the designer in maintaining design integrity throughout the process, including its key roles during construction. The Government places value upon continued participation by the designer of record during the construction quality control process.

6.3 Offerors are encouraged to tailor their proposal for the Technical Approach for Factor II to demonstrate their approach for successfully completing the solicited Design/Build project for the Maintenance and Repair Army Reserve (MRAR) on the existing Equipment Concentration Site (ECS), B-56767 on the federally owned site North Fort Cavazos. The SSEB will assign a final, overall adjectival rating using the ratings found in Section 4.5, Table 3 - Combined Technical / Risk Assessment Ratings.

7. Volume II – Pro Forma Information

7.1 Tab A - Standard Form 1442.

7.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442.

7.1.2 Evaluation Criteria:

The Standard Form 1442 will not be rated. The form will be reviewed to determine if required information is provided, amendments are acknowledged, and the offer signed.

*** NOTE: Phase I does NOT involve pricing submission.**

7.2 Tab B – Joint Venture Agreements

7.2.1 Submission Requirements:

If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a joint venture (JV), then a signed JV agreement must be submitted with the proposal and the offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own Unique Entity ID (UEI) with the proposal.

In addition to the JV agreement,, Small Business offerors (e.g., 8(a), HUBZone, SDVOSB, etc.) submitting a proposal as a Mentor-Protégé JV under the SBA Mentor-Protégé program (MPP) shall submit a copy of their SBA-approved Mentor-Protégé Agreement. Joint Venture agreements and approved 8(a) Mentor-Protégé agreements must be submitted with the proposal.

7.2.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. Small Business Joint Venture Agreements and Mentor-Protégé agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations in order for an offeror to be eligible for any small business-related price preference.

7.3 Tab C – Evidence of Ability to Obtain Bonding and Proof of Financial Ability

7.3.1 Submission Requirements:

a) Financial Capability. Submit Proof of Financial Ability (most recent financial statement covering assets and liabilities). Include the name, address, and telephone number of offeror's banking institution. If the offeror is a joint venture, submit this information for all joint venture members.

b) Bonding Capability. Submit information showing offeror's ability to be bonded for this project. Include the name, address, and telephone number of the offeror's bonding company, which must be on

the approved Treasury list available at https://fiscal.treasury.gov/surety-bonds/list-certified-companies.html.

7.3.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. See FAR Part 28 for information related to bonds.

If the offeror is a joint venture, submit this information for all joint venture members.

7.4 **Tab D – Pre-Award Information**

7.4.1 Submission Requirements:

a) The offeror shall submit one completed copy of Section 00 45 00, Representations and Certification.

b) The offeror shall submit the following information:

i. Number of years the firm has been in business

ii. Name, address, and telephone numbers of two credit/trade references

iii. A list of present commitments, including the dollar value

7.4.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated.

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)

CONTRACT INFORMATION (Contractor to complete Blocks 1-4)

1. Contractor Information

Firm Name: CAGE Code:
Address: UEI Number:
Phone Number:
Email Address:
Point of Contact: Contact Phone Number:

2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain)
Percent of project work performed:
If subcontractor, who was the prime (Name/Phone #):

3. Contract Information

Contract Number:
Delivery/Task Order Number (if applicable):
Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify):
Contract Title:
Contract Location:

Award Date (mm/dd/yy):
Contract Completion Date (mm/dd/yy):
Actual Completion Date (mm/dd/yy):
Explain Differences:

Original Contract Price (Award Amount):
Final Contract Price (*to include all modifications, if applicable*):
Explain Differences:

4. Project Description:

Complexity of Work ☐ High ☐ Med ☐ Routine
How is this project relevant to project of submission? (*Please provide details such as similar equipment, requirements, conditions, etc.*)

CLIENT INFORMATION (Client to complete Blocks 5-8)

5. Client Information

Name:
Title:
Phone Number:
Email Address:

6. Describe the client's role in the project:

7. Date Questionnaire was completed (mm/dd/yy)**:**

8. Client's Signature:

NOTE: NAVFAC/USACE REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO USACE WITH THEIR PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON USACE SOLICITATIONS. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE

RATING	DEFINITION	NOTE
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the Contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the Contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the Contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that Contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the Contractor has not yet identified corrective actions. The Contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal rating is appropriate when a significant event occurred from which the Contractor had trouble overcoming and that impacted the Government/Owner.

(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the Contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred from which the contractor had trouble overcoming and that impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an Unsatisfactory rating.
(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.

TO BE COMPLETED BY CLIENT

PLEASE CIRCLE THE ADJECTIVE RATING THAT BEST REFLECTS YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE.

1. QUALITY:						
a) Quality of technical data/report preparation efforts	E	VG	S	M	U	N
b) Ability to meet quality standards specified for technical performance	E	VG	S	M	U	N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E	VG	S	M	U	N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E	VG	S	M	U	N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:						
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. *(If liquidated damages were assessed or the schedule was not met, please address below)*	E	VG	S	M	U	N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E	VG	S	M	U	N
3. CUSTOMER SATISFACTION:						
a) To what extent were the end users satisfied with the project?	E	VG	S	M	U	N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports; efforts to keep lines of communication open)	E	VG	S	M	U	N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E	VG	S	M	U	N
d) Overall customer satisfaction	E	VG	S	M	U	N
4. MANAGEMENT/ PERSONNEL/LABOR						
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E	VG	S	M	U	N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E	VG	S	M	U	N
c) Government Property Control	E	VG	S	M	U	N
d) Knowledge/expertise demonstrated by contractor personnel	E	VG	S	M	U	N
e) Utilization of Small Business concerns	E	VG	S	M	U	N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E	VG	S	M	U	N
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution, and response to Government changes	E	VG	S	M	U	N
h) Effectiveness of overall management (including ability to effectively lead, manage, and control the program)	E	VG	S	M	U	N

5. COST/FINANCIAL MANAGEMENT						
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E	VG	S	M	U	N
b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability, or other factors that benefited the client	E	VG	S	M	U	N
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets, and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? *If no, please explain in Remarks section.*		Yes			No	
e) If a Government contract, has it been partially or completely terminated for default or convenience or are there any pending terminations? *Indicate if show cause or cure notices were issued, or any default action in comment section below.*		Yes			No	
f) Have there been any indications that the contractor has had any financial problems? *If yes, please explain below.*		Yes			No	
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying the COR, PM, or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions *(explain if specific issues)*	E	VG	S	M	U	N
c) Would you hire or work with this firm again? *(If no, please explain below)*		Yes			No	
d) In summary, provide an overall rating for the work performed by this Contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (*if applicable*) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments that may assist our office in evaluating performance risk *(please attach additional pages if necessary)*:

Section 00 22 18 – Procedures for Submittal of Offers and Proposal Evaluation Criteria for Phase II

****Section 00 22 18 is being issued as a draft for reference only during Phase I and is subject to change when Phase II is issued****

1. Overview.

1.1 The intent of this solicitation is to select one (1) contractor for Design and Construction for the Maintenance and Repair Army Reserve (MRAR) on the existing Equipment Concentration Site (ECS), B-56767 on the federally owned site North Fort Cavazos. This Design-Build project will repair and construct an addition to an existing ~26,000 square feet of maintenance part of the Equipment Concentration Site (ECS), Maintenance Building 56767, that is in a failing condition, constructed on 23 July 2001, and not undergone any major infrastructure or system repairs, only limited maintenance and repair work has occurred. Project includes repair of HVAC and Electrical systems, remove non-structural interior walls to right-size rooms and create open flexible workspace, restore inadequate and non-code compliant bathrooms, repair light fixtures with code compliant units, failed flooring, code compliant fire alarm and suppression system, repair electrical conduit distribution throughout the facility. Access for individuals with disabilities will be provided to include a code compliant entrance ramp. The restored facility will meet minimum DoD Antiterrorism standards.

1.2 This is a two-phase procurement and the basis of award is the Best Value Trade-Off Process. Following completion of the evaluation of Phase I, up to a maximum of five (5) most highly qualified offerors will be selected to participate in Phase II. **A site visit will be held for these selected offerors following the Phase II notification.** The selected offerors for Phase II will be invited to submit the information described in this Section 00 22 18, Procedures for Submittal and Evaluation of Offers for Phase II, for review and evaluation by the Government. Following completion of the Phase II evaluation, the Contracting Officer will award a Firm-Fixed-Price (FFP) contract to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, is fair and reasonable, and offers the best overall value to the Government, all factors considered. The Government reserves the right to accept other than the lowest priced offer or to reject all offers. For Phase II submittals, requirements stated in this RFP are minimums.

*** NOTE: The rating information from Phase I will not be considered in Phase II or in the final selection.**

1.3 This project is Subject to Availability of Funds (SAF). No award will be made under this solicitation until funds are available.

2. Submittal of Offers.

2.1 Offerors submitting proposals for this project should limit submissions to data essential for evaluation of proposals so that a minimum of time and monies will have been expended in preparing information required herein. However, in order to be effectively and equitably evaluated, the proposals must include information sufficiently detailed to clearly describe the offeror's capability for successfully completing the solicited project. For Phase II, requirements stated in this Request for Proposal (RFP) are minimums. Innovative, creative, or cost-saving proposals that meet or exceed the requirements are encouraged and will be rated accordingly. Proposals should follow in the order of sequence set forth in the RFP. Information provided out of sequence may not be evaluated and may result in the offeror’s disqualification from award.

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2.2 Offerors shall submit their proposals electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442.
* * **NOTE:** The Louisville District is in the Eastern Time Zone.

2.3 The Government is using a two-phase procurement approach for this Design/Build project. For Phase II, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.4 and 2.5 below. All proposal materials shall be electronically in accordance with the Proposal Submission Instructions in Section 0 21 00 of the solicitation. The proposal sections should parallel the submission requirements identified herein.

2.4 Volume I for Phase II shall include the following information:

- Volume I – Factor I: Design Narrative
- Volume I – Factor II: Management Plan
- Volume I – Factor III: Schedule Narrative

* **NOTE**: Failure to place the required submission information under the appropriate tab (factor or sub factor) may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted that exceeds the specified limit(s) will not be evaluated.

2.5 Volume II for Phase II shall be submitted electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation and shall include the following information:

- Volume II – Tab A: Standard Form 1442 and Price Breakout Schedule

* **NOTE:** Failure to place the required submission information under the appropriate tab may result in a lower rating if the evaluators cannot readily find the appropriate information.

3. Proposal Evaluation Process.

3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers, User/Customer, and other required personnel will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical (Volume I) proposals will be reviewed and rated without knowledge of the price offered. The number and identities of offerors are not revealed to anyone not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein, and the basis of award is a Best Value Trade-Off, as stated above.

3.2 The evaluation process for Phase II essentially consists of four (4) parts: proposal compliance review and responsibility review, technical evaluation, price evaluation, and price/technical trade-off analysis.

3.2.1 Proposal Compliance / Responsibility Review: This is an initial review to ensure that both a technical and price proposal were received.

3.2.2 Technical Evaluation: The SSEB will evaluate and rate the Phase II Volume I proposals against the RFP requirements. Factors I through III (Design Narrative, Management Plan, and Schedule Narrative) will be rated using Table 4 found in Section 4.6.

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3.2.3 Price Evaluation: The SSEB and Contracting Officer/SSA will evaluate price proposals independent of the technical evaluation. The SSEB will not have access to price information until completion of the technical evaluation.

3.2.4 Price/Technical Trade-off Analysis: After all the above evaluations are complete, the Contracting Officer/SSA will compare the relative advantages and disadvantages of technical proposals and compare prices. The Source Selection Authority (SSA) will then consider all factors to select the proposal offering the best value to the Government.

4. Proposal Information and Related Evaluation Factors.

4.1 Phase II proposals will be evaluated in accordance with the factors below, listed in relative order of importance. **All evaluation factors, other than price, when combined are considered approximately equal to price.** The Government intends to evaluate proposals and award a contract without discussions with offerors. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. The Government also reserves the right to conduct Clarifications or Communications with offerors as described in FAR 15.306(a) and (b). If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

4.2 **Volume I – Factor I: Design Narrative**

4.3 **Volume I – Factor II: Management Plan**

4.4 **Volume I – Factor III: Schedule Narrative**

*** NOTE: All three (3) Factors are considered equally important to each other.**

4.5 **Volume II – Price and Pro Forma Information**

Tab A Standard Form 1442 and Price Breakout Schedule Not Rated

4.6 **Ratings**

Evaluators will apply the rating for the definition that most closely matches the evaluation.

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TABLE 4

Combined Technical/Risk Ratings	
Rating	**Description**
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus Proposal contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

4.7 **Definitions**

1. Clarification. Limited exchanges between the Government and offerors that may occur when award without discussions is contemplated. See FAR 15.306(a)(1).

2. Deficiency. A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

3. Risk. As it pertains to source selection, the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

4. Significant Strength. An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

5. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

6. Strength. An aspect of an offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

7. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).

8. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

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5. Volume I – Factor I: Design Narrative

5.1 Submission Requirements:

5.1.1 Provide a clear and concise narrative describing your proposed design process for this project, especially with regard to sequencing of work within a renovation. Proposed narratives shall also address the design process and logic/rationale for the following project features:

a) Architectural – Address ceiling height restrictions and coordination including design/placement of HVAC, plumbing, electrical, and fire protection in the corridors
b) Structural – Address ADA requirements within renovation projects
c) Direct Digital Controls (DDC) within HVAC System
d) Abatement of Hazardous Materials

The narrative shall also note any improvements exceeding the RFP requirements, including an explanation of proposed building systems, as outlined in Section 01 02 00.00 48, Statement of Work

* **NOTE:** There is a limit of eight (8) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Design Narrative factor. Any information that exceeds the page limit will not be evaluated.

5.2 Evaluation Criteria:

5.2.1 The Design Narrative will be evaluated based on the offeror's understanding of the requirements of the USACE design/build process. The design narrative shall provide a clear rationale of the DOR's internal design processes, the design submittal process and submittal requirements, Dr. Checks and comment resolution, and design completion. Proposals should demonstrate a comprehensive understanding for the design of this specific project's requirements. The design narrative will be evaluated for completeness by including the building features of the RFP as outlined in Section 01 02 00.00 48 Statement of Work.

6. Volume I – Factor II: Management Plan

6.1 Submission Requirements:

6.1.1 Provide a management plan narrative for the project that describes how your labor, resources, designers, subcontractors, and material suppliers will be managed, supervised, coordinated, and used to ensure successful completion of the project. Additionally, the Management Plan shall include the following information:

a) A preliminary commissioning plan to include an outline of systems to be commissioned, commissioning timeline, and documents to be provided. Identify the (1.) Commissioning Firm, (2.) Lead Commissioning Specialist (CxC), and (3.) Building Envelope Commissioning Specialist (CxB) and their qualifications, including at least the following: years of experience in commissioning, certifications/licenses, types of projects commissioned, and information with at least one (1) project of complexity similar to the solicitation project. Offerors shall breakout the minimum qualifications separately for each, rather than as an aggregate. Offerors are advised that any subcontractor submitted for review shall be utilized on the contract for the work required by the evaluation. Evaluation and acceptance of a subcontractor does not relieve any of the conditions required by the plans and specification. If a subcontractor is unable to perform the work or a replacement is needed it shall be submitted to the Contracting Officer for their approval prior to any work being completed.

b) Identification of the three (3) most significant risks and demonstrate your mitigation strategy to address those risks.

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* **NOTE:** There is a page limit of five (5) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides for this factor. Any information that exceeds the page limit will not be evaluated. **Certificates and qualifications do NOT count towards the total page limit.**

6.2 **Evaluation Criteria:**

6.2.1 Management Plan narratives will be evaluated based on the level of understanding of the work and the involvement the contractor will have in the management, oversight, control, and coordination of the work performed during construction of the project. The Management Plan will be evaluated for how well it demonstrates how the offeror plans to manage this specific project in particular, what critical tasks in this solicitation they believe needs more attention to help mitigate risk, experience managing other USACE projects, and experience using the Resident Management System (RMS). Narratives that demonstrate a clear understanding of the Army Reserve project Design requirements and USACE construction execution processes, and provide a thorough approach for successfully managing the solicited project may be rated more favorably by the SSEB.

7. Volume I – Factor III: Schedule Narrative

7.1 **Submission Requirements:**

Based on the project budget and scope, provide a schedule narrative describing the construction sequence / process for successful completion of each phase of the project (Design, Construction, Commissioning and Close-Out) within the duration shown in FAR 52.211-10. Offerors may propose a shorter duration for completion, but Government review times shall not be shortened. The Schedule Narrative shall address at a minimum the major construction milestones and tasks indicated below:

a) Design Phase / Packages
b) Pre-Construction Submittals and Review
c) Long Lead Items
d) Commissioning with critical submittals
e) Red Zone Meeting
f) As-Builts
g) Closeout

* **NOTE:** There is a page limit of five (5) 8.5" x 11" pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides for narrative portion of this factor. Any information that exceeds the page limit will not be evaluated.

7. 2 **Evaluation Criteria:**

The narrative will be evaluated based on the understanding of events identified in paragraph 7.1 above and the offeror's capability to complete the schedule within the contract duration. Narratives that demonstrate a clear understanding of the schedule impacts of the major milestones and tasks and provide a thorough approach for successfully completing the contract within the contract duration may be rated more favorably by the SSEB. Schedules offering duration less than that shown in 52.211-10 may receive a higher rating if the proposed schedule is shown to be realistic and achievable while still addressing the major milestones and tasks required without reducing Government Review time.

* **NOTE:** The SSEB will evaluate the offeror's schedule narrative using calendar days, not dates. The Government reserves the right to accept or decline a proposed shorter duration as part of the contract award.

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Should the Government accept the proposed shorter duration, the contract completion stated in 52.211-10 will be replaced with the offeror's proposed completion duration.

8. Volume II – Price and Proforma Information

8.1 **Tab A – Standard Form 1442 and Proposal Price Breakout Schedule**.

8.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442 and Section 00 10 00, Proposal Price Breakout Schedule.

8.1.2 Evaluation Criteria:

The price will be evaluated on base proposal plus all options. The price will be evaluated for fairness and reasonableness through the use of a price analysis. Price will also be checked for unbalancing of line items. Offerors are cautioned to distribute costs appropriately.

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Section 00 45 00 - Representations and Certifications

REPRESENTATIONS AND CERTIFICATIONS

COMPANY NAME AND ADDRESS:

_____

_____

_____

PHONE NUMBER: _____

EMAIL ADDRESS: _____

BUSINESS SIZE (select all that apply):

Large Business _____ Small Business _____ HUBZone _____ 8A _____

Woman-Owned _____ Veteran-Owned _____ Service-Disabled Veteran-Owned _____

CURRENTLY REGISTERED WITH SYSTEM FOR AWARD MANAGEMENT (SAM):

YES _____ NO _____
(Note: See FAR 52.204-7)

TAX IDENTIFICATION NUMBER (TIN): _____

UNIQUE ENTITY IDENTIFIER: _____
(Note: See FAR 52.204-7. Unique Entity Identifier is a 12-character alpha-numeric code.)

CAGE CODE: _____
(Note: See FAR 52.204-7)

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		

FAR Clauses Incorporated by Full Text

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) *Definitions.* As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to-

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The Offeror represents that-

(1) It _____will, _____will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that-

It _____does, _____does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment-

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services-

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Oct 2018)

(a) *Definitions*. As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means-

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror _____has _____does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in-

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7007 Alternate A, Annual Representations and Certifications. (Oct 2024) Alternate A (Oct 2024)

Substitute the following paragraphs (b), (d), and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

_____ (i) Paragraph (e) applies.

_____ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment-Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services-Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of $150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)-Representation. Applies to solicitations and contracts when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)-Representation. Applies to solicitations and contracts when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer:

__**X**__ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

_____ (ii) 252.225-7000, Buy American-Balance of Payments Program Certificate.

_____ (iii) 252.225-7020, Trade Agreements Certificate.

_____ Use with Alternate I.

__**X**___ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

_____ (v) 252.225-7035, Buy American-Free Trade Agreements-Balance of Payments Program Certificate.

_____ Use with Alternate I.

_____ Use with Alternate II.

_____ Use with Alternate III.

_____ Use with Alternate IV.

_____ Use with Alternate V.

_____ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

_____ (vii) 252.232-7015, Performance-Based Payments-Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at *https://www.sam.gov*. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below *[Offeror to insert changes, identifying change by provision number, title, date]*. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS Provision #	Title	Date	Change
____	____	____	____

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions*. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition*. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at *https://www.sam.gov* for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation*. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

_____ The Offeror represents that it will will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures*. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section 00 70 00 - Conditions of the Contract

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities.	Dec 2023		
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded	Jan 2025		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters.	Oct 2018		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.210-1	Market Research.	Nov 2021		
52.215-2	Audit and Records-Negotiation.	Jun 2020		
52.215-17	Waiver of Facilities Capital Cost of Money.	Oct 1997		
52.219-6	Notice of Total Small Business Set-Aside.	Nov 2020		
52.219-8	Utilization of Small Business Concerns.	Jan 2025		
52.222-3	Convict Labor.	Jun 2003		
52.222-4	Contract Work Hours and Safety Standards -Overtime Compensation.	May 2018		
52.222-6	Construction Wage Rate Requirements.	Aug 2018		
52.222-7	Withholding of Funds.	May 2014		
52.222-8	Payrolls and Basic Records.	Jul 2021		
52.222-9	Apprentices and Trainees. (DEVIATION 2025-O0003)	Jul 2005	Deviation 2025-O0003	Mar 2025
52.222-10	Compliance with Copeland Act Requirements.	Feb 1988		
52.222-11	Subcontracts (Labor Standards).	May 2014		
52.222-12	Contract Termination-Debarment.	May 2014		
52.222-13	Compliance with Construction Wage Rate Requirements and Related Regulations.	May 2014		
52.222-14	Disputes Concerning Labor Standards.	Feb 1988		
52.222-15	Certification of Eligibility.	May 2014		
52.222-36	Equal Opportunity for Workers with Disabilities.	Jun 2020		
52.222-37	Employment Reports on Veterans.	Jun 2020		
52.222-50	Combating Trafficking in Persons.	Nov 2021		
52.222-54	Employment Eligibility Verification.	Jan 2025		
52.222-55	Minimum Wages for Contractor Workers Under Executive Order 14026.	Jan 2022		
52.222-62	Paid Sick Leave Under Executive Order 13706.	Jan 2022		
52.223-2	Reporting of Biobased Products Under Service and Construction Contracts.	May 2024		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-12	Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners.	May 2024		
52.223-20	Aerosols.	May 2024		
52.223-21	Foams.	May 2024		
52.223-23	Sustainable Products and Services. (DEVIATION 2025-O0004)	May 2024	Deviation 2025-O0004	Mar 2025
52.225-13	Restrictions on Certain Foreign Purchases.	Feb 2021		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.227-4	Patent Indemnity-Construction Contracts.	Dec 2007		
52.228-2	Additional Bond Security.	Oct 1997		
52.228-5	Insurance-Work on a Government Installation.	Jan 1997		
52.228-11	Pledges of Assets (DEVIATION 2020-O0016)	Feb 2021	Deviation 2020-O0016	Apr 2020

52.228-12	Prospective Subcontractor Requests for Bonds.	Dec 2022		
52.229-3	Federal, State, and Local Taxes.	Feb 2013		
52.232-17	Interest.	May 2014		
52.232-18	Availability of Funds.	Apr 1984		
52.232-23	Assignment of Claims. (Alternate I)	May 2014	Alternate I	Apr 1984
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes.	May 2014		
52.233-3	Protest after Award.	Aug 1996		
52.233-4	Applicable Law for Breach of Contract Claim.	Oct 2004		
52.236-2	Differing Site Conditions.	Apr 1984		
52.236-3	Site Investigation and Conditions Affecting the Work.	Apr 1984		
52.236-5	Material and Workmanship.	Apr 1984		
52.236-6	Superintendence by the Contractor.	Apr 1984		
52.236-7	Permits and Responsibilities.	Nov 1991		
52.236-8	Other Contracts.	Apr 1984		
52.236-9	Protection of Existing Vegetation, Structures, Equipment, Utilities, and Improvements.	Apr 1984		
52.236-10	Operations and Storage Areas.	Apr 1984		
52.236-11	Use and Possession Prior to Completion.	Apr 1984		
52.236-12	Cleaning Up.	Apr 1984		
52.236-13	Accident Prevention. (Alternate I)	Nov 1991	Alternate I	Nov 1991
52.236-15	Schedules for Construction Contracts.	Apr 1984		
52.236-17	Layout of Work.	Apr 1984		
52.236-21	Specifications and Drawings for Construction. (Alternate I)	Feb 1997	Alternate I	Apr 1984
52.236-25	Requirements for Registration of Designers.	Jun 2003		
52.236-28	Preparation of Proposals-Construction.	Oct 1997		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.242-13	Bankruptcy.	Jul 1995		
52.242-14	Suspension of Work.	Apr 1984		
52.243-4	Changes.	Jun 2007		
52.244-4	Subcontractors and Outside Associates and Consultants (Architect-Engineer Services).	Aug 1998		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (DEVIATION 2025-O0003)	Jan 2025	Deviation 2025-O0003	Mar 2025
52.246-12	Inspection of Construction.	Aug 1996		
52.248-3	Value Engineering-Construction. (Alternate I)	Oct 2020	Alternate I	Apr 1984
52.249-2	Termination for Convenience of the Government (Fixed-Price). (Alternate I)	Apr 2012	Alternate I	Sep 1996
52.249-10	Default (Fixed-Price Construction).	Apr 1984		
52.253-1	Computer Generated Forms.	Jan 1991		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		

252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7966	Prohibition Regarding Russian Fossil Fuel Business Operations-Representation (Deviation 2024-O0006, Revision 1)	Mar 2024	Deviation 2024-O0006	Mar 2024
252.225-7967	Prohibition Regarding Russian Fossil Fuel Business Operations (Deviation 2024-O0006, Revision 1)	Feb 2024	Deviation 2024-O0006	Feb 2024
252.225-7972	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.225-7973	Prohibition on the Procurement of Foreign-Made Unmanned Aircraft Systems###Representation. (DEVIATION 2024-O0014)	Aug 2024	Deviation 2024-O0014	Aug 2024
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.227-7022	Government Rights (Unlimited).	Mar 1979		
252.227-7033	Rights in Shop Drawings.	Apr 1966		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.236-7000	Modification Proposals--Price Breakdown.	Dec 1991		
252.243-7001	Pricing of Contract Modifications.	Dec 1991		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.204-8	**Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004)**	**(Jan 2025)**	**Deviation 2025-O0004**	**(Mar 2025)**

(a)

(1) The North American Industry Classification System (NAICS) code for this acquisition is **236220**.

(2) The small business size standard is **$45,000,000**.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)

(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

_____ (i) Paragraph (d) applies.

_____ (ii) Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c)

(1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in partA 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed $150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied partA 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied partA 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than $50,000, the basic provision applies.

(B) If the acquisition value is $50,000 or more but is less than $100,000, the provision with its Alternate II applies.

(C) If the acquisition value is $100,000 or more but is less than $102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

__**X**__ (i) 52.204-17, Ownership or Control of Offeror.

__**X**__ (ii) 52.204-20, Predecessor of Offeror.

_____ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

_____ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment- Certification.

_____ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

_____ (vi) 52.227-6, Royalty Information.

_____ (A) Basic.

_____ (B) Alternate I.

_____ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through https://www.sam.gov. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause # Title Date Change
_____

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-9 Personal Identity Verification of Contractor Personnel. (Jan 2011)

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24 and Federal Information Processing Standards Publication (FIPS PUB) Number 201.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

(1) When no longer needed for contract performance.

(2) Upon completion of the Contractor employee's employment.

(3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of clause)

52.204-21 Basic Safeguarding of Covered Contractor Information Systems. (Nov 2021)

(a) *Definitions*. As used in this clause-

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government, but not including information provided by the Government to the public (such as on public websites) or simple transactional information, such as necessary to process payments.

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) Safeguarding requirements and procedures.

(1) The Contractor shall apply the following basic safeguarding requirements and procedures to protect covered contractor information systems. Requirements and procedures for basic safeguarding of covered contractor information systems shall include, at a minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (*i.e.*, information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) *Other requirements.* This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal agencies and departments relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) *Subcontracts.* The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products or commercial services, other than commercially available off-the-shelf items), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.204-27 Prohibition on a ByteDance Covered Application. (Jun 2023)

(a) *Definitions.* As used in this clause-

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Information technology, as defined in 40 U.S.C. 11101(6)-

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use-

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

(b) *Prohibition*. Section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328), the No TikTok on Government Devices Act, and its implementing guidance under Office of Management and Budget (OMB) Memorandum M-23-13, dated February 27, 2023, "No TikTok on Government Devices" Implementation Guidance, collectively prohibit the presence or use of a covered application on executive agency information technology, including certain equipment used by Federal contractors. The Contractor is prohibited from having or using a covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees; however, this prohibition does not apply if the Contracting Officer provides written notification to the Contractor that an exception has been granted in accordance with OMB Memorandum M-23-13.

(c) *Subcontracts*. The Contractor shall insert the substance of this clause, including this paragraph (c), in all subcontracts, including subcontracts for the acquisition of commercial products or commercial services.

(End of clause)

52.204-29 Federal Acquisition Supply Chain Security Act Orders-Representation and Disclosures. (Dec 2023)

(a) *Definitions.* As used in this provision, *Covered article, FASCSA order, Intelligence community, National security system, Reasonable inquiry, Sensitive compartmented information, Sensitive compartmented information system,* and *Source* have the meaning provided in the clause 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(c) *Procedures*.

(1) The Offeror shall search for the phrase "FASCSA order" in the System for Award Management (SAM)(*https://www.sam.gov)* for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

(1) Name of the product or service provided to the Government;

(2) Name of the covered article or source subject to a FASCSA order;

(3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;

(4) Brand;

(5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(6) Item description;

(7) Reason why the applicable covered article or the product or service is being provided or used;

(f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Nov 2021)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification*. [*Offeror shall check either (1) or (2).*]

(1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at https://www.state.gov/bureaus-offices /under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/; or

(2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If there may have been such activity, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

(i) An inability to certify compliance.

(ii) An inability to conclude compliance.

(iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

(1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or

(2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has

(i) Waived application under 22 U.S.C. 2593e(d) or (e); or

(ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies*. The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.211-10 Commencement, Prosecution, and Completion of Work. (Apr 1984)

The Contractor shall be required to (a) commence work under this contract within **10 calendar days** after the date the Contractor receives the Notice to Proceed (NTP), (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than **913 calendar days from contract NTP**. The time stated for completion shall include final cleanup of the premises.

(End of clause)

52.211-12 Liquidated Damages-Construction. (Sep 2000)

(a) If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of **$3,820.00** for each calendar day of delay until the work is completed or accepted.

(b) If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

(End of clause)

52.215-1 Instructions to Offerors-Competitive Acquisition. (Nov 2021)

(a) *Definitions*. As used in this provision-

Discussions are negotiations that occur after establishment of the competitive range that may, at the Contracting Officer's discretion, result in the offeror being allowed to revise its proposal.

In writing, "writing," or "written" means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the solicitation's closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) *Amendments to solicitations*. If this solicitation is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1) Unless other methods (*e.g.,* electronic commerce or facsimile) are permitted in the solicitation, proposals and modifications to proposals shall be submitted in paper media in sealed envelopes or packages (i) addressed to the office specified in the solicitation, and (ii) showing the time and date specified for receipt, the solicitation number, and the name and address of the offeror. Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i) and (c)(1)(ii) of this provision.

(2) The first page of the proposal must show-

(i) The solicitation number;

(ii) The name, address, and telephone and facsimile numbers of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this solicitation; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3) Submission, modification, revision, and withdrawal of proposals.

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation, the time specified for receipt of proposals will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile proposals, proposals may be withdrawn via facsimile received at any time before award, subject to the conditions specified in the provision at 52.215-5, Facsimile Proposals. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the solicitation, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this solicitation in English, unless otherwise permitted by the solicitation, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the solicitation.

(6) Offerors may submit modifications to their proposals at any time before the solicitation closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) *Offer expiration date*. Proposals in response to this solicitation will be valid for the number of days specified on the solicitation cover sheet (unless a different period is proposed by the offeror).

(e) *Restriction on disclosure and use of data*. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed-in whole or in part-for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of-or in connection with-the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [*insert numbers or other identification of sheets*]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this solicitation to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the solicitation.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract without discussions with offerors (except clarifications as described in FAR 15.306(a)). Therefore, the offeror's initial proposal should contain the offeror's best terms from a cost or price and technical standpoint. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) Exchanges with offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

(8) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(9) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(10) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(11) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of provision)

52.216-1 Type of Contract. (Apr 1984)

The Government contemplates award of a **Firm-Fixed Price (FFP)** contract resulting from this solicitation.

(End of provision)

52.217-5 Evaluation of Options. (Jul 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.217-7 Option for Increased Quantity-Separately Priced Line Item. (Mar 1989)

The Government may require the delivery of the numbered line item, identified in the Schedule as an option item, in the quantity and at the price stated in the Schedule. The Contracting Officer may exercise the option by written notice to the Contractor within **the timeframe included in the Price Breakout Schedule (PBS)**. Delivery of added items shall continue at the same rate that like items are called for under the contract, unless the parties otherwise agree.

(End of clause)

52.219-14 Limitations on Subcontracting (DEVIATION 2021-O0008) (Oct 2022) Deviation 2021-O0008 (Feb 2023)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that--

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to--

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with subparts 19.8, 19.13, 19.14, and 19.15;

(4) Orders expected to exceed the simplified acquisition threshold and that are--

(i) Set aside for small business concerns under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to small business concerns under multiple-award contracts as described in 19.504(c)(1)(ii);

(5) Orders, regardless of dollar value, that are--

(i) Set aside in accordance with subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 8.405-5 and 16.505(b)(2)(i)(F); or

(ii) Issued directly to concerns that qualify for the programs described in subparts 19.8, 19.13, 19.14, or 19.15 under multiple-award contracts, as described in 19.504(c)(1)(ii); and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) *Limitations on subcontracting.* By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for--

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding certain other direct costs and certain work performed outside the United States (see paragraph (e)(1)(i)), to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract. The following services may be excluded from the 50 percent limitation:

(i) Other direct costs, to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service. Examples include airline travel, work performed by a transportation or disposal entity under a contract assigned the environmental remediation NAICS code 562910), cloud computing services, or mass media purchases.

(ii) Work performed outside the United States on awards made pursuant to the Foreign Assistance Act of 1961, or work performed outside the United States required to be performed by a local contractor.

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause--

__**X**__ By the end of the base term of the contract and then by the end of each subsequent option period; or

_____ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Jan 2025)

(a) *Definitions*. As used in this clause-

Long-term contract means a contract of more than five years in duration, including *options*. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, *Option* to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its *affiliates*, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (d) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was any of the *small business concerns* identified in 19.000(a)(3) prior to award of this contract, the Contractor *shall* rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a *novation agreement* or within 30 days after modification of the contract to include this clause, if the *novation agreement* was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or *acquisition* that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or *acquisition* occurred prior to inclusion of this clause in the contract.

(3) For *long-term contracts*-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any *option* thereafter.

(c) If the Contractor represented its status as any of the *small business concerns* identified at 19.000(a)(3) prior to award of this contract, the Contractor *shall* rerepresent its size and socioeconomic status according to paragraph (f) of this clause or, if applicable, paragraph (h) of this clause, for the NAICS code assigned to an order (except that paragraphs (c)(1) through (3) of this clause do not apply to an order issued under a Federal Supply Schedule contract at subpart 8.4)-

(1) Set aside exclusively for a *small business concern* identified at 19.000(a)(3) that is issued under an unrestricted *multiple-award contract*, unless the order is issued under the reserved portion of an unrestricted *multiple-award contract* (e.g., an order set aside for a woman-owned small business under a *multiple-award contract* that is not set-aside, unless the order is issued under the reserved portion of the *multiple-award contract*);

(2) Issued under a *multiple-award contract* set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying *multiple-award contract* (e.g., an order set aside for a *HUBZone small business concern* under a *multiple-award contract* that is set aside for small businesses);

(3) Issued under the part of the *multiple-award contract* that is set aside for small businesses that is further set aside for a specific socioeconomic category that differs from the underlying set-aside part of the *multiple-award contract* (e.g., an order set aside for a WOSB concern under the part of the *multiple-award contract* that is partially set aside for small businesses); and

(4) When the *Contracting Officer* explicitly requires it for an order issued under a *multiple-award contract*, including for an order issued under a Federal Supply Schedule contract (see 8.405-5(b) and 19.301-2(b)(2)).

(d) The Contractor *shall* rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(e) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a *construction* or service contract, is 500 employees, or 150 employees for *information technology* value-added resellers under NAICS code 541519, if the *acquisition*-

(1) Was set aside for small business and has a value above the *simplified acquisition threshold*;

(2) Used the *HUBZone* price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), *HUBZone*, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(f) Except as provided in paragraph (h) of this clause, the Contractor *shall* make the representation(s) required by paragraphs (b) and (c) of this clause by validating or updating all its representations in the Representations and Certifications section of the *System for Award Management (SAM*) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor *shall* notify the *contracting* officer in writing within the timeframes specified in paragraph (b) of this clause, or with its *offer* for an order (see paragraph (c) of this clause), that the data have been validated or updated, and provide the date of the validation or update.

(g) If the Contractor represented that it was other than a *small business concern* prior to award of this contract, the Contractor *may*, but is not required to, take the actions required by paragraphs (f) or (h) of this clause.

(h) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the *contracting office*, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it is, is not a *small business concern* under NAICS Code **236220** assigned to Solicitation Number **W912QR25RA013**.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause*.] The Contractor represents that it is, is not, a *small disadvantaged business concern* as defined in 13 CFR 124.1001.

(3) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it is, is not a women-owned *small business concern*.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that it is, is not a veteran-owned *small business concern*.

(7) [*Complete only if the Contractor represented itself as a veteran-owned small business concern in paragraph (h)(6) of this clause.*] The Contractor represents that it is, is not a service-disabled veteran-owned *small business concern*.

(8) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(9) [*Complete only if the Contractor represented itself as a small business concern in paragraph (h)(1) of this clause.*] The Contractor represents that-

(i) It is, is not a *HUBZone small business concern* listed, on the date of this representation, on the List of Qualified *HUBZone Small Business Concerns* maintained by the Small Business Administration, and no material changes in ownership and control, principal office, or *HUBZone* employee percentage have occurred since it was certified in accordance with 13 CFR part 126; and

(ii) It is, is not a *HUBZone* joint venture that complies with the requirements of 13 CFR part 126, and the representation in paragraph (h)(8)(i) of this clause is accurate for each *HUBZone small business concern* participating in the *HUBZone* joint venture. [The Contractor shall enter the names of each of the HUBZone small business concerns participating in the HUBZone joint venture: ____ .] Each *HUBZone small business concern* participating in the *HUBZone* joint venture *shall* submit a separate signed copy of the *HUBZone* representation.

[____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-35 Equal Opportunity for Veterans. (Jun 2020)

(a) *Definitions*. As used in this clause-

"Active duty wartime or campaign badge veteran," "Armed Forces service medal veteran," "disabled veteran," "protected veteran," "qualified disabled veteran," and "recently separated veteran" have the meanings given at Federal Acquisition Regulation (FAR)22.1301.

(b) Equal opportunity clause. The Contractor shall abide by the requirements of the equal opportunity clause at 41 CFR 60-300.5(a), as of March 24, 2014. This clause prohibits discrimination against qualified protected veterans, and requires affirmative action by the Contractor to employ and advance in employment qualified protected veterans.

(c) Subcontracts. The Contractor shall insert the terms of this clause in subcontracts valued at or above the threshold specified in FAR 22.1303(a) on the date of subcontract award, unless exempted by rules, regulations, or orders of the Secretary of Labor. The Contractor shall act as specified by the Director, Office of Federal Contract Compliance Programs, to enforce the terms, including action for noncompliance. Such necessary changes in language may be made as shall be appropriate to identify properly the parties and their undertakings.

(End of clause)

52.222-40 Notification of Employee Rights Under the National Labor Relations Act. (Dec 2010)

(a) During the term of this contract, the Contractor shall post an employee notice, of such size and in such form, and containing such content as prescribed by the Secretary of Labor, in conspicuous places in and about its plants and offices where employees covered by the National Labor Relations Act engage in activities relating to the performance of the contract, including all places where notices to employees are customarily posted both physically and electronically, in the languages employees speak, in accordance with 29 CFR471.2 (d) and (f).

(1) Physical posting of the employee notice shall be in conspicuous places in and about the Contractor's plants and offices so that the notice is prominent and readily seen by employees who are covered by the National Labor Relations Act and engage in activities related to the performance of the contract.

(2) If the Contractor customarily posts notices to employees electronically, then the Contractor shall also post the required notice electronically by displaying prominently, on any website that is maintained by the Contractor and is customarily used for notices to employees about terms and conditions of employment, a link to the Department of Labor's website that contains the full text of the poster. The link to the Department's website, as referenced in (b)(3) of this section, must read, "Important Notice about Employee Rights to Organize and Bargain Collectively with Their Employers."

(b) This required employee notice, printed by the Department of Labor, may be-

(1) Obtained from the Division of Interpretations and Standards, Office of Labor-Management Standards, U.S. Department of Labor, 200 Constitution Avenue, NW., Room N-5609, Washington, DC 20210, (202) 693-0123, or from any field office of the Office of Labor-Management Standards or Office of Federal Contract Compliance Programs;

(2) Provided by the Federal contracting agency if requested;

(3) Downloaded from the Office of Labor-Management Standards Web site at http://www.dol.gov/olms/regs/compliance/EO13496.htm; or

(4) Reproduced and used as exact duplicate copies of the Department of Labor's official poster.

(c) The required text of the employee notice referred to in this clause is located at Appendix A, Subpart A, 29 CFR Part 471.

(d) The Contractor shall comply with all provisions of the employee notice and related rules, regulations, and orders of the Secretary of Labor.

(e) In the event that the Contractor does not comply with the requirements set forth in paragraphs (a) through (d) of this clause, this contract may be terminated or suspended in whole or in part, and the Contractor may be suspended or debarred in accordance with 29 CFR 471.14 and subpart 9.4. Such other sanctions or remedies may be imposed as are provided by 29 CFR part 471, which implements Executive Order 13496 or as otherwise provided by law.

(f) Subcontracts.

(1) The Contractor shall include the substance of this clause, including this paragraph (f), in every subcontract that exceeds $10,000 and will be performed wholly or partially in the United States, unless exempted by the rules, regulations, or orders of the Secretary of Labor issued pursuant to section 3 of Executive Order 13496 of January 30, 2009, so that such provisions will be binding upon each subcontractor.

(2) The Contractor shall not procure supplies or services in a way designed to avoid the applicability of Executive Order 13496 or this clause.

(3) The Contractor shall take such action with respect to any such subcontract as may be directed by the Secretary of Labor as a means of enforcing such provisions, including the imposition of sanctions for noncompliance.

(4) However, if the Contractor becomes involved in litigation with a subcontractor, or is threatened with such involvement, as a result of such direction, the Contractor may request the United States, through the Secretary of Labor, to enter into such litigation to protect the interests of the United States.

(End of clause)

52.225-11 Buy American-Construction Materials under Trade Agreements. (Nov 2023)

(a) *Definitions*. As used in this clause-

Caribbean Basin country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Caribbean Basin country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a Caribbean Basin country into a new and different construction material distinct from the materials from which it was transformed.

Commercially available off-the-shelf (COTS) item-

(1) Means any item of supply (including construction material) that is-

(i) A commercial product (as defined in paragraph (1) of the definition of "commercial product" at Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C.40102(4), such as agricultural products and petroleum products.

Component means an article, material, or supply incorporated directly into a construction material.

Construction material means an article, material, or supply brought to the construction site by the Contractor or subcontractor for incorporation into the building or work. The term also includes an item brought to the site preassembled from articles, materials, or supplies. However, emergency life safety systems, such as emergency lighting, fire alarm, and audio evacuation systems, that are discrete systems incorporated into a public building or work and that are produced as complete systems, are evaluated as a single and distinct construction material regardless of when or how the individual parts or components of those systems are delivered to the construction site. Materials purchased directly by the Government are supplies, not construction material.

Cost of components means-

(1) For components purchased by the Contractor, the acquisition cost, including transportation costs to the place of incorporation into the construction material (whether or not such costs are paid to a domestic firm), and any applicable duty (whether or not a duty-free entry certificate is issued); or

(2) For components manufactured by the Contractor, all costs associated with the manufacture of the component, including transportation costs as described in paragraph (1) of this definition, plus allocable overhead costs, but excluding profit. Cost of components does not include any costs associated with the manufacture of the construction material.

Critical component means a component that is mined, produced, or manufactured in the United States and deemed critical to the U.S. supply chain. The list of critical components is at FAR 25.105.

Critical item means a domestic construction material or domestic end product that is deemed critical to U.S. supply chain resiliency. The list of critical items is at FAR 25.105.

Designated country means any of the following countries:

(1) A World Trade Organization Government Procurement Agreement (WTO GPA) country (Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Israel, Italy, Japan, Korea (Republic of), Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or United Kingdom);

(2) A Free Trade Agreement (FTA) country (Australia, Bahrain, Chile, Colombia, Costa Rica, Dominican Republic, El Salvador, Guatemala, Honduras, Korea (Republic of), Mexico, Morocco, Nicaragua, Oman, Panama, Peru, or Singapore);

(3) A least developed country (Afghanistan, Angola, Bangladesh, Benin, Bhutan, Burkina Faso, Burundi, Cambodia, Central African Republic, Chad, Comoros, Democratic Republic of Congo, Djibouti, Equatorial Guinea, Eritrea, Ethiopia, Gambia, Guinea, Guinea-Bissau, Haiti, Kiribati, Laos, Lesotho, Liberia, Madagascar, Malawi, Mali, Mauritania, Mozambique, Nepal, Niger, Rwanda, Samoa, Sao Tome and Principe, Senegal, Sierra Leone, Solomon Islands, Somalia, South Sudan, Tanzania, Timor-Leste, Togo, Tuvalu, Uganda, Vanuatu, Yemen, or Zambia); or

(4) A Caribbean Basin country (Antigua and Barbuda, Aruba, Bahamas, Barbados, Belize, Bonaire, British Virgin Islands, Curacao, Dominica, Grenada, Guyana, Haiti, Jamaica, Montserrat, Saba, St. Kitts and Nevis, St. Lucia, St. Vincent and the Grenadines, Sint Eustatius, Sint Maarten, or Trinidad and Tobago).

Designated country construction material means a construction material that is a WTO GPA country construction material, an FTA country construction material, a least developed country construction material, or a Caribbean Basin country construction material.

Domestic construction material means-

(1) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both-

(i) An unmanufactured construction material mined or produced in the United States; or

(ii) A construction material manufactured in the United States, if-

(A) The cost of its components mined, produced, or manufactured in the United States exceeds 60 percent of the cost of all its components, except that the percentage will be 65 percent for items delivered in calendar years 2024 through 2028 and 75 percent for items delivered starting in calendar year 2029.

(B) The construction material is a COTS item; or

(2) For construction material that consists wholly or predominantly of iron or steel or a combination of both, a construction material manufactured in the United States if the cost of foreign iron and steel constitutes less than 5 percent of the cost of all components used in such construction material. The cost of foreign iron and steel includes but is not limited to the cost of foreign iron or steel mill products (such as bar, billet, slab, wire, plate, or

sheet), castings, or forgings utilized in the manufacture of the construction material and a good faith estimate of the cost of all foreign iron or steel components excluding COTS fasteners. Iron or steel components of unknown origin are treated as foreign. If the construction material contains multiple components, the cost of all the materials used in such construction material is calculated in accordance with the definition of "cost of components".

Fastener means a hardware device that mechanically joins or affixes two or more objects together. Examples of fasteners are nuts, bolts, pins, rivets, nails, clips, and screws.

Foreign construction material means a construction material other than a domestic construction material.

Foreign iron and steel means iron or steel products not produced in the United States. Produced in the United States means that all manufacturing processes of the iron or steel must take place in the United States, from the initial melting stage through the application of coatings, except metallurgical processes involving refinement of steel additives. The origin of the elements of the iron or steel is not relevant to the determination of whether it is domestic or foreign.

Free Trade Agreement country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a Free Trade Agreement (FTA) country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a FTA country into a new and different construction material distinct from the materials from which it was transformed.

Least developed country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a least developed country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a least developed country into a new and different construction material distinct from the materials from which it was transformed.

Predominantly of iron or steel or a combination of both means that the cost of the iron and steel content exceeds 50 percent of the total cost of all its components. The cost of iron and steel is the cost of the iron or steel mill products (such as bar, billet, slab, wire, plate, or sheet), castings, or forgings utilized in the manufacture of the product and a good faith estimate of the cost of iron or steel components excluding COTS fasteners.

Steel means an alloy that includes at least 50 percent iron, between 0.02 and 2 percent carbon, and may include other elements.

United States means the 50 States, the District of Columbia, and outlying areas.

WTO GPA country construction material means a construction material that-

(1) Is wholly the growth, product, or manufacture of a WTO GPA country; or

(2) In the case of a construction material that consists in whole or in part of materials from another country, has been substantially transformed in a WTO GPA country into a new and different construction material distinct from the materials from which it was transformed.

(b) Construction materials.

(1) This clause implements 41 U.S.C.chapter 83, Buy American, by providing a preference for domestic construction material. In accordance with 41 U.S.C.1907, the domestic content test of the Buy American statute is waived for construction material that is a COTS item, except that for construction material that consists wholly or predominantly of iron or steel or a combination of both, the domestic content test is applied only to the iron and steel content of the construction material, excluding COTS fasteners. (See FAR 12.505(a)(2)). In addition, the Contracting Officer has determined that the WTO GPA and Free Trade Agreements (FTAs) apply to this acquisition. Therefore, the Buy American restrictions are waived for designated country construction materials.

(2) The Contractor shall use only domestic or designated country construction material in performing this contract, except as provided in paragraphs (b)(3) and (b)(4) of this clause.

(3) The requirement in paragraph (b)(2) of this clause does not apply to information technology that is a commercial product or to the construction materials or components listed by the Government as follows:

None

(4) The Contracting Officer may add other foreign construction material to the list in paragraph (b)(3) of this clause if the Government determines that-

(i) The cost of domestic construction material would be unreasonable.

(A) *For domestic construction material that is not a critical item or does not contain critical components*.

(1) The cost of a particular domestic construction material subject to the restrictions of the Buy American statute is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent;

(2) For construction material that is not a COTS item and does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(A)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(A)*(2)* of this clause will no longer apply as of January 1, 2030.

(B) *For domestic construction material that is a critical item or contains critical components*.

(1) The cost of a particular domestic construction material that is a critical item or contains critical components, subject to the requirements of the Buy American statute, is unreasonable when the cost of such material exceeds the cost of foreign material by more than 20 percent plus the additional preference factor identified for the critical item or construction material containing critical components listed at FAR 25.105.

(2) For construction material that does not consist wholly or predominantly of iron or steel or a combination of both, if the cost of a particular domestic construction material is determined to be unreasonable or there is no domestic offer received, and the low offer is for foreign construction material that does not exceed 55 percent domestic content, the Contracting Officer will treat the lowest offer of foreign construction material that is manufactured in the United States and exceeds 55 percent domestic content as a domestic offer, and determine whether the cost of that offer is unreasonable by applying the evaluation factor listed in paragraph (b)(4)(i)(B)*(1)* of this clause.

(3) The procedures in paragraph (b)(4)(i)(B)*(2)* of this clause will no longer apply as of January 1, 2030.

(ii) The application of the restriction of the Buy American Act to a particular construction material would be impracticable or inconsistent with the public interest; or

(iii) The construction material is not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities of a satisfactory quality.

(c) Request for determination of inapplicability of the Buy American statute.

(1)

(i) Any Contractor request to use foreign construction material in accordance with paragraph (b)(4) of this clause shall include adequate information for Government evaluation of the request, including-

(A) A description of the foreign and domestic construction materials;

(B) Unit of measure;

(C) Quantity;

(D) Price;

(E) Time of delivery or availability;

(F) Location of the construction project;

(G) Name and address of the proposed supplier; and

(H) A detailed justification of the reason for use of foreign construction materials cited in accordance with paragraph (b)(3) of this clause.

(ii) A request based on unreasonable cost shall include a reasonable survey of the market and a completed price comparison table in the format in paragraph (d) of this clause.

(iii) The price of construction material shall include all delivery costs to the construction site and any applicable duty (whether or not a duty-free certificate may be issued).

(iv) Any Contractor request for a determination submitted after contract award shall explain why the Contractor could not reasonably foresee the need for such determination and could not have requested the determination before contract award. If the Contractor does not submit a satisfactory explanation, the Contracting Officer need not make a determination.

(2) If the Government determines after contract award that an exception to the Buy American statute applies and the Contracting Officer and the Contractor negotiate adequate consideration, the Contracting Officer will modify the contract to allow use of the foreign construction material. However, when the basis for the exception is the unreasonable price of a domestic construction material, adequate consideration is not less than the differential established in paragraph (b)(4)(i) of this clause.

(3) Unless the Government determines that an exception to the Buy American statute applies, use of foreign construction material is noncompliant with the Buy American statute.

(d) *Data*. To permit evaluation of requests under paragraph (c) of this clause based on unreasonable cost, the Contractor shall include the following information and any applicable supporting data based on the survey of suppliers:

Foreign and Domestic Construction Materials Price Comparison			
Construction Material Description	Unit of Measure	Quantity	Price (Dollars)*
Item1			
Foreign construction material	___	___	___
Domestic construction material	___	___	___
Item1			
Foreign construction material	___	___	___
Domestic construction material	___	___	___

[* *Include all delivery costs to the construction site and any applicable duty (whether or not a duty-free entry certificate is issued*)].

[*List name, address, telephone number, and contact for suppliers surveyed. Attach copy of response; if oral, attach summary.*]

[*Include other applicable supporting information.*]

(End of clause)

52.225-12 Notice of Buy American Requirement-Construction Materials Under Trade Agreements. (May 2014)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "construction material," "designated country construction material," "domestic construction material," and "foreign construction material," as used in this provision, are defined in the clause of this solicitation entitled "Buy American-Construction Materials Under Trade Agreements" (Federal Acquisition Regulation (FAR) clause 52.225-11).

(b) *Requests for determination of inapplicability*. An offeror requesting a determination regarding the inapplicability of the Buy American statute should submit the request to the Contracting Officer in time to allow a determination before submission of offers. The offeror shall include the information and applicable supporting data required by paragraphs (c) and (d) of FAR clause 52.225-11 in the request. If an offeror has not requested a determination regarding the inapplicability of the Buy American statute before submitting its offer, or has not received a response to a previous request, the offeror shall include the information and supporting data in the offer.

(c) Evaluation of offers.

(1) The Government will evaluate an offer requesting exception to the requirements of the Buy American statute, based on claimed unreasonable cost of domestic construction materials, by adding to the offered price the appropriate percentage of the cost of such foreign construction material, as specified in paragraph (b)(4)(i) of FAR clause 52.225-11.

(2) If evaluation results in a tie between an offeror that requested the substitution of foreign construction material based on unreasonable cost and an offeror that did not request an exception, the Contracting Officer will award to the offeror that did not request an exception based on unreasonable cost.

(d) Alternate offers.

(1) When an offer includes foreign construction material, other than designated country construction material, that is not listed by the Government in this solicitation in paragraph (b)(3) of FAR clause 52.225-11, the offeror also may submit an alternate offer based on use of equivalent domestic or designated country construction material.

(2) If an alternate offer is submitted, the offeror shall submit a separate Standard Form 1442 for the alternate offer, and a separate price comparison table prepared in accordance with paragraphs (c) and (d) of FAR clause 52.225-11 for the offer that is based on the use of any foreign construction material for which the Government has not yet determined an exception applies.

(3) If the Government determines that a particular exception requested in accordance with paragraph (c) of FAR clause 52.225-11 does not apply, the Government will evaluate only those offers based on use of the equivalent domestic or designated country construction material, and the offeror shall be required to furnish such domestic or designated country construction material. An offer based on use of the foreign construction material for which an exception was requested-

(i) Will be rejected as nonresponsive if this acquisition is conducted by sealed bidding; or

(ii) May be accepted if revised during negotiations.

(End of Provision)

52.228-14 Irrevocable Letter of Credit. (Nov 2014)

(a) "Irrevocable letter of credit" (ILC), as used in this clause, means a written commitment by a federally insured financial institution to pay all or part of a stated amount of money, until the expiration date of the letter, upon presentation by the Government (the beneficiary) of a written demand therefor. Neither the financial institution nor the offeror/Contractor can revoke or condition the letter of credit.

(b) If the offeror intends to use an ILC in lieu of a bid bond, or to secure other types of bonds such as performance and payment bonds, the letter of credit and letter of confirmation formats in paragraphs (e) and (f) of this clause shall be used.

(c) The letter of credit shall be irrevocable, shall require presentation of no document other than a written demand and the ILC (including confirming letter, if any), shall be issued/confirmed by an acceptable federally insured financial institution as provided in paragraph (d) of this clause, and-

(1) If used as a bid guarantee, the ILC shall expire no earlier than 60 days after the close of the bid acceptance period;

(2) If used as an alternative to corporate or individual sureties as security for a performance or payment bond, the offeror/Contractor may submit an ILC with an initial expiration date estimated to cover the entire period for which financial security is required or may submit an ILC with an initial expiration date that is a minimum period of one year from the date of issuance. The ILC shall provide that, unless the issuer provides the beneficiary written notice of non-renewal at least 60 days in advance of the current expiration date, the ILC is automatically extended without amendment for one year from the expiration date, or any future expiration date, until the period of required coverage is completed and the Contracting Officer provides the financial institution with a written statement waiving the right to payment. The period of required coverage shall be:

(i) For contracts subject to 40 U.S.C. chapter 31, subchapter III, Bonds, the later of-

(A) One year following the expected date of final payment;

(B) For performance bonds only, until completion of any warranty period; or

(C) For payment bonds only, until resolution of all claims filed against the payment bond during the one-year period following final payment.

(ii) For contracts not subject to 40 U.S.C. chapter 31, subchapter III, Bonds, the later of-

(A) 90 days following final payment; or

(B) For performance bonds only, until completion of any warranty period.

(d)

(1) Only federally insured financial institutions rated investment grade by a commercial rating service shall issue or confirm the ILC.

(2) Unless the financial institution issuing the ILC had letter of credit business of at least $25 million in the past year, ILCs over $5 million must be confirmed by another acceptable financial institution that had letter of credit business of at least $25 million in the past year.

(3) The Offeror/Contractor shall provide the Contracting Officer a credit rating that indicates the financial institutions have the required credit rating as of the date of issuance of the ILC.

(4) The current rating for a financial institution is available through any of the following rating services registered with the U.S. Securities and Exchange Commission (SEC) as a Nationally Recognized Statistical Rating Organization (NRSRO). NRSRO's can be located at the website http://www.sec.gov/answers/nrsro.htm maintained by the SEC.

(e) The following format shall be used by the issuing financial institution to create an ILC:

____ [*Issuing Financial Institution's Letterhead or Name and Address*]
Issue Date ____
Irrevocable Letter of Credit No. ____
Account party's name ____
Account party's address ____
For Solicitation No. ____ (*for reference only*)
To: [*U.S. Government agency*]
[*U.S. Government agency's address*]

1. We hereby establish this irrevocable and transferable Letter of Credit in your favor for one or more drawings up to United States $____. This Letter of Credit is payable at [*issuing financial institution's and, if any, confirming financial institution's*] office at [*issuing financial institution's address and, if any, confirming financial institution's address*] and expires with our close of business on ____, or any automatically extended expiration date.

2. We hereby undertake to honor your or the transferee's sight draft(s) drawn on the issuing or, if any, the confirming financial institution, for all or any part of this credit if presented with this Letter of Credit and confirmation, if any, at the office specified in paragraph 1 of this Letter of Credit on or before the expiration date or any automatically extended expiration date.

3. [*This paragraph is omitted if used as a bid guarantee, and subsequent paragraphs are renumbered*.] It is a condition of this Letter of Credit that it is deemed to be automatically extended without amendment for one year from the expiration date hereof, or any future expiration date, unless at least 60 days prior to any expiration date, we notify you or the transferee by registered mail, or other receipted means of delivery, that we elect not to consider this Letter of Credit renewed for any such additional period. At the time we notify you, we also agree to notify the account party (and confirming financial institution, if any) by the same means of delivery.

4. This Letter of Credit is transferable. Transfers and assignments of proceeds are to be effected without charge to either the beneficiary or the transferee/assignee of proceeds. Such transfer or assignment shall be only at the written direction of the Government (the beneficiary) in a form satisfactory to the issuing financial institution and the confirming financial institution, if any.

5. This Letter of Credit is subject to the Uniform Customs and Practice (UCP) for Documentary Credits, International Chamber of Commerce Publication No. ____ (Insert version in effect at the time of ILC issuance, e.g., "Publication 600, 2006 edition") and to the extent not inconsistent therewith, to the laws of ____ [State of confirming financial institution, if any, otherwise State of issuing financial institution].

6. If this credit expires during an interruption of business of this financial institution as described in Article 17 of the UCP, the financial institution specifically agrees to effect payment if this credit is drawn against within 30 days after the resumption of our business.

Sincerely,

____ [*Issuing financial institution*]

(f) The following format shall be used by the financial institution to confirm an ILC:

[Confirming Financial Institution's Letterhead or Name and Address] ____
(Date) ____
Our Letter of Credit Advice Number ____
Beneficiary: ____ [*U.S. Government agency*]
Issuing Financial Institution: ____
Issuing Financial Institution's LC No.: ____

Gentlemen:

1. We hereby confirm the above indicated Letter of Credit, the original of which is attached, issued by ____ [*name of issuing financial institution*] for drawings of up to United States dollars ____/U.S. $____ and expiring with our close of business on ____ [*the expiration date*], or any automatically extended expiration date.

2. Draft(s) drawn under the Letter of Credit and this Confirmation are payable at our office located at ____.

3. We hereby undertake to honor sight draft(s) drawn under and presented with the Letter of Credit and this Confirmation at our offices as specified herein.

4. [*This paragraph is omitted if used as a bid guarantee, and subsequent paragraphs are renumbered.*] It is a condition of this confirmation that it be deemed automatically extended without amendment for oneyear from the expiration date hereof, or any automatically extended expiration date, unless:

(a) At least 60 days prior to any such expiration date, we shall notify the Contracting Officer, or the transferee and the issuing financial institution, by registered mail or other receipted means of delivery, that we elect not to consider this confirmation extended for any such additional period; or

(b) The issuing financial institution shall have exercised its right to notify you or the transferee, the account party, and ourselves, of its election not to extend the expiration date of the Letter of Credit.

5. This confirmation is subject to the Uniform Customs and Practice (UCP) for Documentary Credits, International Chamber of Commerce Publication No. ____ (Insert version in effect at the time of ILC issuance, e.g., "Publication 600, 2006 edition") and to the extent not inconsistent therewith, to the laws of ____ [State of confirming financial institution].

6. If this confirmation expires during an interruption of business of this financial institution as described in Article 17 of the UCP, we specifically agree to effect payment if this credit is drawn against within 30 days after the resumption of our business.

Sincerely,

____ [*Confirming financial institution*]

(g) The following format shall be used by the Contracting Officer for a sight draft to draw on the Letter of Credit:

Sight Draft

____ [*City, State*]

(Date) ____ [*Name and address of financial institution*]

Pay to the order of ____ [*Beneficiary Agency*] ____ the sum of United States $____. This draft is drawn under Irrevocable Letter of Credit No. ____.

____ [*Beneficiary Agency*] ____ [*By*]

(End of clause)

52.228-15 Performance and Payment Bonds-Construction (Deviation 2020-O0016) (Jun 2020) Deviation 2020-O0016 (Apr 2020)

(a) Definitions. As used in this clause-

Original contract price means the award price of the contract; or, for requirements contracts, the price payable for the estimated total quantity; or, for indefinite-quantity contracts, the price payable for the specified minimum quantity. Original contract price does not include the price of any options, except those options exercised at the time of contract award.

(b) Amount of required bonds. Unless the resulting contract price is $150,000 or less, the successful offeror shall furnish performance and payment bonds to the Contracting Officer as follows:

(1) Performance bonds (Standard Form 25, except that no seal is required). The penal amount of performance bonds at the time of contract award shall be 100 percent of the original contract price.

(2) Payment bonds (Standard Form 25A, except that no seal is required). The penal amount of payment bonds at the time of contract award shall be 100 percent of the original contract price.

(3) Additional bond protection.

(i) The Government may require additional performance and payment bond protection if the contract price is increased. The increase in protection generally will equal 100 percent of the increase in contract price.

(ii) The Government may secure the additional protection by directing the Contractor to increase the penal amount of the existing bond or to obtain an additional bond.

(c) Furnishing executed bonds. The Contractor shall furnish all executed bonds, including any necessary reinsurance agreements, to the Contracting Officer, within the time period specified in the Bid Guarantee provision of the solicitation, or otherwise specified by the Contracting Officer, but in any event, before starting work.

(d) Surety or other security for bonds. The bonds shall be in the form of firm commitment, supported by corporate sureties whose names appear on the list contained in Treasury Department Circular 570, individual sureties, or by other acceptable security such as postal money order, certified check, cashier's check, irrevocable letter of credit, or, in accordance with Treasury Department regulations, certain bonds or notes of the United States. Treasury Circular 570 is published in the Federal Register or may be obtained from the U.S. Department of the Treasury, Financial Management Service, Surety Bond Branch, 3700 East West Highway, Room 6F01, Hyattsville, MD 20782. Or via the internet at http://www.fms.treas.gov/c570/.

(e) Notice of subcontractor waiver of protection (40 U.S.C. 3133(c)). Any waiver of the right to sue on the payment bond is void unless it is in writing, signed by the person whose right is waived, and executed after such person has first furnished labor or material for use in the performance of the contract.

(End of clause)

52.229-11 Tax on Certain Foreign Procurements-Notice and Representation. (Jun 2020)

(a) *Definitions*. As used in this provision-

Foreign person means any person other than a United States person.

Specified Federal procurement payment means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area.

United States person as defined in 26 U.S.C. 7701(a)(30) means

(1) A citizen or resident of the United States;

(2) A domestic partnership;

(3) A domestic corporation;

(4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and

(5) Any trust if-

(i) A court within the United States is able to exercise primary supervision over the administration of the trust; and

(ii) One or more United States persons have the authority to control all substantial decisions of the trust.

(b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.

(c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror would claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available via the internet at www.irs.gov/w14. Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It is is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 a full exemption, or partial or no exemption [Offeror shall select one] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the Internal Revenue Service (IRS) as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to https://www.irs.gov/help/tax-law-questions.

(End of provision)

52.232-5 Payments under Fixed-Price Construction Contracts. (May 2014)

(a) *Payment of price*. The Government shall pay the Contractor the contract price as provided in this contract.

(b) *Progress payments*. The Government shall make progress payments monthly as the work proceeds, or at more frequent intervals as determined by the Contracting Officer, on estimates of work accomplished which meets the standards of quality established under the contract, as approved by the Contracting Officer.

(1) The Contractor's request for progress payments shall include the following substantiation:

(i) An itemization of the amounts requested, related to the various elements of work required by the contract covered by the payment requested.

(ii) A listing of the amount included for work performed by each subcontractor under the contract.

(iii) A listing of the total amount of each subcontract under the contract.

(iv) A listing of the amounts previously paid to each such subcontractor under the contract.

(v) Additional supporting data in a form and detail required by the Contracting Officer.

(2) In the preparation of estimates, the Contracting Officer may authorize material delivered on the site and preparatory work done to be taken into consideration. Material delivered to the Contractor at locations other than the site also may be taken into consideration if-

(i) Consideration is specifically authorized by this contract; and

(ii) The Contractor furnishes satisfactory evidence that it has acquired title to such material and that the material will be used to perform this contract.

(c) *Contractor certification*. Along with each request for progress payments, the Contractor shall furnish the following certification, or payment shall not be made: (However, if the Contractor elects to delete paragraph (c)(4) from the certification, the certification is still acceptable.)

I hereby certify, to the best of my knowledge and belief, that-

(1) The amounts requested are only for performance in accordance with the specifications, terms, and conditions of the contract;

(2) All payments due to subcontractors and suppliers from previous payments received under the contract have been made, and timely payments will be made from the proceeds of the payment covered by this certification, in accordance with subcontract agreements and the requirements of Chapter 39 of Title 31, United States Code;

(3) This request for progress payments does not include any amounts which the prime contractor intends to withhold or retain from a subcontractor or supplier in accordance with the terms and conditions of the subcontract; and

(4) This certification is not to be construed as final acceptance of a subcontractor's performance.

____ (*Name*)

____ (*Title*)

____ (*Date*)

(d) *Refund of unearned amounts*. If the Contractor, after making a certified request for progress payments, discovers that a portion or all of such request constitutes a payment for performance by the Contractor that fails to conform to the specifications, terms, and conditions of this contract (hereinafter referred to as the "unearned amount"), the Contractor shall-

(1) Notify the Contracting Officer of such performance deficiency; and

(2) Be obligated to pay the Government an amount (computed by the Contracting Officer in the manner provided in paragraph (j) of this clause) equal to interest on the unearned amount from the 8 thday after the date of receipt of the unearned amount until-

(i) The date the Contractor notifies the Contracting Officer that the performance deficiency has been corrected; or

(ii) The date the Contractor reduces the amount of any subsequent certified request for progress payments by an amount equal to the unearned amount.

(e) *Retainage*. If the Contracting Officer finds that satisfactory progress was achieved during any period for which a progress payment is to be made, the Contracting Officer shall authorize payment to be made in full. However, if satisfactory progress has not been made, the Contracting Officer may retain a maximum of 10 percent of the amount of the payment until satisfactory progress is achieved. When the work is substantially complete, the Contracting Officer may retain from previously withheld funds and future progress payments that amount the Contracting Officer considers adequate for protection of the Government and shall release to the Contractor all the remaining withheld funds. Also, on completion and acceptance of each separate building, public work, or other division of the contract, for which the price is stated separately in the contract, payment shall be made for the completed work without retention of a percentage.

(f) *Title, liability, and reservation of rights*. All material and work covered by progress payments made shall, at the time of payment, become the sole property of the Government, but this shall not be construed as-

(1) Relieving the Contractor from the sole responsibility for all material and work upon which payments have been made or the restoration of any damaged work; or

(2) Waiving the right of the Government to require the fulfillment of all of the terms of the contract.

(g) *Reimbursement for bond premiums*. In making these progress payments, the Government shall, upon request, reimburse the Contractor for the amount of premiums paid for performance and payment bonds (including coinsurance and reinsurance agreements, when applicable) after the Contractor has furnished evidence of full payment to the surety. The retainage provisions in paragraph (e) of this clause shall not apply to that portion of progress payments attributable to bond premiums.

(h) *Final payment*. The Government shall pay the amount due the Contractor under this contract after-

(1) Completion and acceptance of all work;

(2) Presentation of a properly executed voucher; and

(3) Presentation of release of all claims against the Government arising by virtue of this contract, other than claims, in stated amounts, that the Contractor has specifically excepted from the operation of the release. A release may also be required of the assignee if the Contractor's claim to amounts payable under this contract has been assigned under the Assignment of Claims Act of1940 (31 U.S.C.3727 and 41 U.S.C.6305).

(i) *Limitation because of undefinitized work*. Notwithstanding any provision of this contract, progress payments shall not exceed 80 percent on work accomplished on undefinitized contract actions. A "contract action" is any action resulting in a contract, as defined in FAR subpart 2.1, including contract modifications for additional supplies or services, but not including contract modifications that are within the scope and under the terms of the contract, such as contract modifications issued pursuant to the Changes clause, or funding and other administrative changes.

(j) *Interest computation on unearned amounts*. In accordance with 31 U.S.C.3903(c)(1), the amount payable under paragraph (d)(2) of this clause shall be-

(1) Computed at the rate of average bond equivalent rates of 91-day Treasury bills auctioned at the most recent auction of such bills prior to the date the Contractor receives the unearned amount; and

(2) Deducted from the next available payment to the Contractor.

(End of clause)

52.232-27 Prompt Payment for Construction Contracts. (Jan 2017)

Notwithstanding any other payment terms in this contract, the Government will make invoice payments under the terms and conditions specified in this clause. The Government considers payment as being made on the day a check is dated or the date of an electronic funds transfer. Definitions of pertinent terms are set forth in sections 2.101, 32.001, and 32.902 of the Federal Acquisition Regulation. All days referred to in this clause are calendar days, unless otherwise specified. (However, see paragraph (a)(3) concerning payments due on Saturdays, Sundays, and legal holidays.)

(a) Invoice payments-

(1) *Types of invoice payments*. For purposes of this clause, there are several types of invoice payments that may occur under this contract, as follows:

(i) Progress payments, if provided for elsewhere in this contract, based on Contracting Officer approval of the estimated amount and value of work or services performed, including payments for reaching milestones in any project.

(A) The due date for making such payments is 14 days after the designated billing office receives a proper payment request. If the designated billing office fails to annotate the payment request with the actual date of receipt at the time of receipt, the payment due date is the 14 thday after the date of the Contractor's payment request, provided the designated billing office receives a proper payment request and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(B) The due date for payment of any amounts retained by the Contracting Officer in accordance with the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts, is as specified in the contract or, if not specified, 30 days after approval by the Contracting Officer for release to the Contractor.

(ii) Final payments based on completion and acceptance of all work and presentation of release of all claims against the Government arising by virtue of the contract, and payments for partial deliveries that have been accepted by the Government (*e.g.,* each separate building, public work, or other division of the contract for which the price is stated separately in the contract).

(A) The due date for making such payments is the later of the following two events:

(1) The 30 thday after the designated billing office receives a proper invoice from the Contractor.

(2) The 30 thday after Government acceptance of the work or services completed by the Contractor. For a final invoice when the payment amount is subject to contract settlement actions (*e.g.,* release of claims), acceptance is deemed to occur on the effective date of the contract settlement.

(B) If the designated billing office fails to annotate the invoice with the date of actual receipt at the time of receipt, the invoice payment due date is the 30 thday after the date of the Contractor's invoice, provided the designated billing office receives a proper invoice and there is no disagreement over quantity, quality, or Contractor compliance with contract requirements.

(2) *Contractor's invoice*. The Contractor shall prepare and submit invoices to the designated billing office specified in the contract. A proper invoice must include the items listed in paragraphs (a)(2)(i) through (a)(2)(xi) of this clause. If the invoice does not comply with these requirements, the designated billing office must return it within 7 days after receipt, with the reasons why it is not a proper invoice. When computing any interest penalty owed the Contractor, the Government will take into account if the Government notifies the Contractor of an improper invoice in an untimely manner.

(i) Name and address of the Contractor.

(ii) Invoice date and invoice number. (The Contractor should date invoices as close as possible to the date of mailing or transmission.)

(iii) Contract number or other authorization for work or services performed (including order number and line item number).

(iv) Description of work or services performed.

(v) Delivery and payment terms (*e.g.,* discount for prompt payment terms).

(vi) Name and address of Contractor official to whom payment is to be sent (must be the same as that in the contract or in a proper notice of assignment).

(vii) Name (where practicable), title, phone number, and mailing address of person to notify in the event of a defective invoice.

(viii) For payments described in paragraph (a)(1)(i) of this clause, substantiation of the amounts requested and certification in accordance with the requirements of the clause at 52.232-5, Payments Under Fixed-Price Construction Contracts.

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision (*e.g.,* 52.232-38, Submission of Electronic Funds Transfer Information with Offer), contract clause (*e.g.,* 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(xi) Any other information or documentation required by the contract.

(3) *Interest penalty*. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if payment is not made by the due date and the conditions listed in paragraphs (a)(3)(i) through (a)(3)(iii) of this clause are met, if applicable. However, when the due date falls on a Saturday, Sunday, or legal holiday, the designated payment office may make payment on the following working day without incurring a late payment interest penalty.

(i) The designated billing office received a proper invoice.

(ii) The Government processed a receiving report or other Government documentation authorizing payment and there was no disagreement over quantity, quality, Contractor compliance with any contract term or condition, or requested progress payment amount.

(iii) In the case of a final invoice for any balance of funds due the Contractor for work or services performed, the amount was not subject to further contract settlement actions between the Government and the Contractor.

(4) *Computing penalty amount*. The Government will compute the interest penalty in accordance with the Office of Management and Budget prompt payment regulations at 5 CFR Part 1315.

(i) For the sole purpose of computing an interest penalty that might be due the Contractor for payments described in paragraph (a)(1)(ii) of this clause, Government acceptance or approval is deemed to occur constructively on the 7 thday after the Contractor has completed the work or services in accordance with the terms and conditions of the contract. If actual acceptance or approval occurs within the constructive acceptance or approval period, the Government will base the determination of an interest penalty on the actual date of acceptance or approval. Constructive acceptance or constructive approval requirements do not apply if there is a disagreement over quantity, quality, or Contractor compliance with a contract provision. These requirements also do not compel Government officials to accept work or services, approve Contractor estimates, perform contract administration functions, or make payment prior to fulfilling their responsibilities.

(ii) The prompt payment regulations at 5 CFR1315.10(c) do not require the Government to pay interest penalties if payment delays are due to disagreement between the Government and the Contractor over the payment amount or other issues involving contract compliance, or on amounts temporarily withheld or retained in accordance with the terms of the contract. The Government and the Contractor shall resolve claims involving disputes, and any interest that may be payable in accordance with the clause at FAR 52.233-1, Disputes.

(5) *Discounts for prompt payment*. The designated payment office will pay an interest penalty automatically, without request from the Contractor, if the Government takes a discount for prompt payment improperly. The Government will calculate the interest penalty in accordance with the prompt payment regulations at 5 CFR Part 1315.

(6) Additional interest penalty.

(i) The designated payment office will pay a penalty amount, calculated in accordance with the prompt payment regulations at 5 CFR Part 1315 in addition to the interest penalty amount only if-

(A) The Government owes an interest penalty of $1 or more;

(B) The designated payment office does not pay the interest penalty within 10 days after the date the invoice amount is paid; and

(C) The Contractor makes a written demand to the designated payment office for additional penalty payment, in accordance with paragraph (a)(6)(ii) of this clause, postmarked not later than 40 days after the date the invoice amount is paid.

(ii)

(A) The Contractor shall support written demands for additional penalty payments with the following data. The Government will not request any additional data. The Contractor shall-

(1) Specifically assert that late payment interest is due under a specific invoice, and request payment of all overdue late payment interest penalty and such additional penalty as may be required;

(2) Attach a copy of the invoice on which the unpaid late payment interest was due; and

(3) State that payment of the principal has been received, including the date of receipt.

(B) If there is no postmark or the postmark is illegible-

(1) The designated payment office that receives the demand will annotate it with the date of receipt provided the demand is received on or before the 40 thday after payment was made; or

(2) If the designated payment office fails to make the required annotation, the Government will determine the demand's validity based on the date the Contractor has placed on the demand, provided such date is no later than the 40 thday after payment was made.

(b) *Contract financing payments*. If this contract provides for contract financing, the Government will make contract financing payments in accordance with the applicable contract financing clause.

(c) *Subcontract clause requirements*. The Contractor shall include in each subcontract for property or services (including a material supplier) for the purpose of performing this contract the following:

(1) *Prompt payment for subcontractors*. A payment clause that obligates the Contractor to pay the subcontractor for satisfactory performance under its subcontract not later than 7 days from receipt of payment out of such amounts as are paid to the Contractor under this contract.

(2) *Interest for subcontractors*. An interest penalty clause that obligates the Contractor to pay to the subcontractor an interest penalty for each payment not made in accordance with the payment clause-

(i) For the period beginning on the day after the required payment date and ending on the date on which payment of the amount due is made; and

(ii) Computed at the rate of interest established by the Secretary of the Treasury, and published in the *Federal Register*, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(3) *Subcontractor clause flowdown*. A clause requiring each subcontractor to-

(i) Include a payment clause and an interest penalty clause conforming to the standards set forth in paragraphs (c)(1) and (c)(2) of this clause in each of its subcontracts; and

(ii) Require each of its subcontractors to include such clauses in their subcontracts with each lower-tier subcontractor or supplier.

(d) *Subcontract clause interpretation*. The clauses required by paragraph (c) of this clause shall not be construed to impair the right of the Contractor or a subcontractor at any tier to negotiate, and to include in their subcontract, provisions that-

(1) *Retainage permitted*. Permit the Contractor or a subcontractor to retain (without cause) a specified percentage of each progress payment otherwise due to a subcontractor for satisfactory performance under the subcontract without incurring any obligation to pay a late payment interest penalty, in accordance with terms and conditions agreed to by the parties to the subcontract, giving such recognition as the parties deem appropriate to the ability of a subcontractor to furnish a performance bond and a payment bond;

(2) *Withholding permitted*. Permit the Contractor or subcontractor to make a determination that part or all of the subcontractor's request for payment may be withheld in accordance with the subcontract agreement; and

(3) *Withholding requirements*. Permit such withholding without incurring any obligation to pay a late payment penalty if-

(i) A notice conforming to the standards of paragraph (g) of this clause previously has been furnished to the subcontractor; and

(ii) The Contractor furnishes to the Contracting Officer a copy of any notice issued by a Contractor pursuant to paragraph (d)(3)(i) of this clause.

(e) *Subcontractor withholding procedures*. If a Contractor, after making a request for payment to the Government but before making a payment to a subcontractor for the subcontractor's performance covered by the payment request, discovers that all or a portion of the payment otherwise due such subcontractor is subject to withholding from the subcontractor in accordance with the subcontract agreement, then the Contractor shall-

(1) *Subcontractor notice*. Furnish to the subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon ascertaining the cause giving rise to a withholding, but prior to the due date for subcontractor payment;

(2) *Contracting Officer notice*. Furnish to the Contracting Officer, as soon as practicable, a copy of the notice furnished to the subcontractor pursuant to paragraph (e)(1) of this clause;

(3) *Subcontractor progress payment reduction*. Reduce the subcontractor's progress payment by an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (e)(1) of this clause;

(4) *Subsequent subcontractor payment*. Pay the subcontractor as soon as practicable after the correction of the identified subcontract performance deficiency, and-

(i) Make such payment within-

(A) Sevendays after correction of the identified subcontract performance deficiency (unless the funds therefor must be recovered from the Government because of a reduction under paragraph (e)(5)(i)) of this clause; or

(B) Sevendays after the Contractor recovers such funds from the Government; or

(ii) Incur an obligation to pay a late payment interest penalty computed at the rate of interest established by the Secretary of the Treasury, and published in the *Federal Register*, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty;

(5) *Notice to Contracting Officer*. Notify the Contracting Officer upon-

(i) Reduction of the amount of any subsequent certified application for payment; or

(ii) Payment to the subcontractor of any withheld amounts of a progress payment, specifying-

(A) The amounts withheld under paragraph (e)(1) of this clause; and

(B) The dates that such withholding began and ended; and

(6) *Interest to Government*. Be obligated to pay to the Government an amount equal to interest on the withheld payments (computed in the manner provided in 31 U.S.C.3903(c)(1)), from the 8 thday after receipt of the withheld amounts from the Government until-

(i) The day the identified subcontractor performance deficiency is corrected; or

(ii) The date that any subsequent payment is reduced under paragraph (e)(5)(i) of this clause.

(f) Third-party deficiency reports-

(1) *Withholding from subcontractor*. If a Contractor, after making payment to a first-tier subcontractor, receives from a supplier or subcontractor of the first-tier subcontractor (hereafter referred to as a "second-tier subcontractor") a written notice in accordance with 40 U.S.C. 3133, asserting a deficiency in such first-tier subcontractor's performance under the contract for which the Contractor may be ultimately liable, and the Contractor determines that all or a portion of future payments otherwise due such first-tier subcontractor is subject to withholding in accordance with the subcontract agreement, the Contractor may, without incurring an obligation to pay an interest penalty under paragraph (e)(6) of this clause-

(i) Furnish to the first-tier subcontractor a notice conforming to the standards of paragraph (g) of this clause as soon as practicable upon making such determination; and

(ii) Withhold from the first-tier subcontractor's next available progress payment or payments an amount not to exceed the amount specified in the notice of withholding furnished under paragraph (f)(1)(i) of this clause.

(2) *Subsequent payment or interest charge*. As soon as practicable, but not later than 7 days after receipt of satisfactory written notification that the identified subcontract performance deficiency has been corrected, the Contractor shall-

(i) Pay the amount withheld under paragraph (f)(1)(ii) of this clause to such first-tier subcontractor; or

(ii) Incur an obligation to pay a late payment interest penalty to such first-tier subcontractor computed at the rate of interest established by the Secretary of the Treasury, and published in the *Federal Register*, for interest payments under 41 U.S.C. 7109 in effect at the time the Contractor accrues the obligation to pay an interest penalty.

(g) *Written notice of subcontractor withholding*. The Contractor shall issue a written notice of any withholding to a subcontractor (with a copy furnished to the Contracting Officer), specifying-

(1) The amount to be withheld;

(2) The specific causes for the withholding under the terms of the subcontract; and

(3) The remedial actions to be taken by the subcontractor in order to receive payment of the amounts withheld.

(h) *Subcontractor payment entitlement*. The Contractor may not request payment from the Government of any amount withheld or retained in accordance with paragraph (d) of this clause until such time as the Contractor has determined and certified to the Contracting Officer that the subcontractor is entitled to the payment of such amount.

(i) *Prime-subcontractor disputes*. A dispute between the Contractor and subcontractor relating to the amount or entitlement of a subcontractor to a payment or a late payment interest penalty under a clause included in the subcontract pursuant to paragraph (c) of this clause does not constitute a dispute to which the Government is a party. The Government may not be interpleaded in any judicial or administrative proceeding involving such a dispute.

(j) *Preservation of prime-subcontractor rights*. Except as provided in paragraph (i) of this clause, this clause shall not limit or impair any contractual, administrative, or judicial remedies otherwise available to the Contractor or a subcontractor in the event of a dispute involving late payment or nonpayment by the Contractor or deficient subcontract performance or nonperformance by a subcontractor.

(k) *Non-recourse for prime contractor interest penalty*. The Contractor's obligation to pay an interest penalty to a subcontractor pursuant to the clauses included in a subcontract under paragraph (c) of this clause shall not be construed to be an obligation of the Government for such interest penalty. A cost-reimbursement claim may not include any amount for reimbursement of such interest penalty.

(l) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(1) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number if applicable;

(iii) Affected line item or subline item, if applicable; and

(iv) Contractor point of contact.

(2) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(End of clause)

52.236-1 Performance of Work by the Contractor. (Apr 1984)

As prescribed in 36.501(b), insert the following clause: [Complete the clause by inserting the appropriate percentage consistent with the complexity and magnitude of the work and customary or necessary specialty subcontracting (see 36.501(a)).]

Performance of Work by the Contractor (Apr 1984)

The Contractor shall perform on the site, and with its own organization, work equivalent to at least ____[insert the appropriate number in words followed by numerals in parentheses] percent of the total amount of work to be performed under the contract. This percentage may be reduced by a supplemental agreement to this contract if, during performing the work, the Contractor requests a reduction and the Contracting Officer determines that the reduction would be to the advantage of the Government.

(End of clause)

52.236-4 Physical Data. (Apr 1984)

Data and information furnished or referred to below is for the Contractor's information. The Government shall not be responsible for any interpretation of or conclusion drawn from the data or information by the Contractor.

(a) The indications of physical conditions on the drawings and in the specifications are the result of site investigations by surveys and auger borings.

(b) Weather conditions: The Contractor shall make its own investigations as to weather conditions at the site. Data may be obtained from various National Weather Service offices located generally at airports of principal cities, the nearest to this project being

U.S. Department of Commerce
National Oceanic and Atmospheric Administration
National Weather Service
Fort Worth/Dallas, TX
3401 Northern Cross Blvd.
Fort Worth, TX 76137

(c) Transportation facilities: Access ways shall be investigated by the Contractor to satisfy themselves as to their existence and allowable use.

(d) Historical data for all areas may be obtained from

U.S. Department of Commerce
National Climatic Data Center
Federal Building
Asheville, NC 28801

(End of clause)

52.236-26 Preconstruction Conference. (Feb 1995)

If the Contracting Officer decides to conduct a preconstruction conference, the successful offeror will be notified and will be required to attend. The Contracting Officer's notification will include specific details regarding the date, time, and location of the conference, any need for attendance by subcontractors, and information regarding the items to be discussed.

(End of clause)

52.246-21 Warranty of Construction. (Alternate I) (Mar 1994) Alternate I (Apr 1984)

(a) In addition to any other warranties in this contract, the Contractor warrants, except as provided in paragraph (i) of this clause, that work performed under this contract conforms to the contract requirements and is free of any defect in equipment, material, or design furnished, or workmanship performed by the Contractor or any subcontractor or supplier at any tier.

(b) This warranty shall continue for a period of 1 year from the date of final acceptance of the work. If the Government takes possession of any part of the work before final acceptance, this warranty shall continue for a period of 1 year from the date the Government takes possession.

(c) The Contractor shall remedy at the Contractor's expense any failure to conform, or any defect. In addition, the Contractor shall remedy at the Contractor's expense any damage to Government-owned or controlled real or personal property, when that damage is the result of-

(1) The Contractor's failure to conform to contract requirements; or

(2) Any defect of equipment, material, workmanship, or design furnished

(d) The Contractor shall restore any work damaged in fulfilling the terms and conditions of this clause. The Contractor's warranty with respect to work repaired or replaced will run for 1 year from the date of repair or replacement.

(e) The Contracting Officer shall notify the Contractor, in writing, within a reasonable time after the discovery of any failure, defect, or damage.

(f) If the Contractor fails to remedy any failure, defect, or damage within a reasonable time after receipt of notice, the Government shall have the right to replace, repair, or otherwise remedy the failure, defect, or damage at the Contractor's expense.

(g) With respect to all warranties, express or implied, from subcontractors, manufacturers, or suppliers for work performed and materials furnished under this contract, the Contractor shall-

(1) Obtain all warranties that would be given in normal commercial practice;

(2) Require all warranties to be executed, in writing, for the benefit of the Government, if directed by the Contracting Officer; and

(3) Enforce all warranties for the benefit of the Government, if directed by the Contracting Officer.

(h) In the event the Contractor's warranty under paragraph (b) of this clause has expired, the Government may bring suit at its expense to enforce a subcontractor's, manufacturer's, or supplier's warranty.

(i) Unless a defect is caused by the negligence of the Contractor or subcontractor or supplier at any tier, the Contractor shall not be liable for the repair of any defects of material or design furnished by the Government nor for the repair of any damage that results from any defect in Government-furnished material or design.

(j) This warranty shall not limit the Government's rights under the Inspection and Acceptance clause of this contract with respect to latent defects, gross mistakes, or fraud.

(k) Defects in design or manufacture of equipment specified by the Government on a "brand name and model" basis, shall not be included in this warranty. In this event, the Contractor shall require any subcontractors, manufacturers, or suppliers thereof to execute their warranties, in writing, directly to the Government.

(End of clause)

52.252-2 Clauses Incorporated by Reference. (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

The full text for the Federal Acquisition Regulation (FAR) clauses can be found at https://www.acquisition.gov

The full text for the Defense Federal Acquisition Regulation Supplement (DFARS) clauses can be found at https://www.acq.osd.mil/dpap/dars/dfarspgi/current/index.html.

(End of clause)

52.252-6 Authorized Deviations in Clauses. (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulation Supplement (DFARS) (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer. (Dec 2022)

As prescribed at 215.408(3), use the following provision:

ONLY ONE OFFER (DEC 2022)

(a) Cost or pricing data requirements. After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) Canadian Commercial Corporation. If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable ____[U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) Subcontracts. Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.236-7001 Contract Drawings and Specifications. (Aug 2000)

(a) The Government will provide to the Contractor, without charge, one set of contract drawings and specifications, except publications incorporated into the technical provisions by reference, in electronic or paper media as chosen by the Contracting Officer.

(b) The Contractor shall-

(1) Check all drawings furnished immediately upon receipt;

(2) Compare all drawings and verify the figures before laying out the work;

(3) Promptly notify the Contracting Officer of any discrepancies;

(4) Be responsible for any errors that might have been avoided by complying with this paragraph (b); and

(5) Reproduce and print contract drawings and specifications as needed.

(c) In general--

(1) Large-scale drawings shall govern small-scale drawings; and

(2) The Contractor shall follow figures marked on drawings in preference to scale measurements.

(d) Omissions from the drawings or specifications or the misdescription of details of work that are manifestly necessary to carry out the intent of the drawings and specifications, or that are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work. The Contractor shall perform such details as if fully and correctly set forth and described in the drawings and specifications.

(e) The work shall conform to the specifications and the contract drawings identified on the following index of drawings:

Title	File	Drawing No.
Drawing Index - Cover Sheet		G-001

(End of clause)

UAI Clauses Incorporated by Full Text

5152.236-9011 Design--Build Construction Contracts (Mar 2019)

(a) Design-Build Contract Order of Precedence. The contract includes the standard contract clauses and schedules current at the time of contract award. It entails (1) the Solicitation in its entirety, including all drawings, cuts, and illustrations, and any amendments, and (2) the successful offeror's accepted proposal. The contract constitutes and defines the entire agreement between the Contractor and the Government. No documentation shall be omitted which in any way bears upon the terms of that agreement.

(1) In the event of conflict or inconsistency between any portion of this contract, precedence shall be given in the following order:

i. Betterments: Any portions of the accepted proposal which both conform to and exceed the requirements of the Solicitation.

ii. The requirements of the Solicitation. (See also FAR 52.236-21, Specifications and Drawings for Construction)

iii. All other elements of the accepted proposal.

iv. Any design products including, but not limited to, plans, specifications, engineering studies and analyses, shop drawings, equipment installation drawings, etc. These are "deliverables" under the contract and are not part of the contract itself. Design products must conform to all provisions of the contract, in the order of precedence herein.

(b) Personnel, subcontractors, and outside associates or consultants. In connection with this contract, any in-house personnel, subcontractors, and outside associates or consultants will be limited to individuals or firms that were specifically identified in the Contractor's accepted proposal. The Contractor shall obtain the Contracting Officer's written consent before making any substitution for these designated in-house personnel, subcontractors, associates, or consultants. If the Contractor proposes a substitution, it shall submit the same type of information that was submitted in the accepted proposal to the Contracting Officer for evaluation and approval. The level of qualifications and experience submitted in the accepted proposal or that required by the Solicitation, whichever is greater, is the minimum standard for any substitution.

(c) Responsibility of the Contractor for Design. The Contractor shall be responsible for the professional quality, technical accuracy, and the coordination of all designs, drawings, specifications, and other non-construction services furnished by the Contractor under this contract. The Contractor shall, without additional compensation, correct or revise any errors or deficiency in its designs, drawings, specifications, and other non-construction services and perform any necessary rework or modifications, including any damage to real or personal property, resulting from the design error or omission.

(1) The standard of care for all design services performed under this agreement shall be the care and skill ordinarily used by members of the architectural or engineering professions practicing under similar conditions at the same time and locality. Notwithstanding the above, in the event that the contract specifies that portions of the Work be performed in accordance with a performance standard, the design services shall be performed so as to achieve such standards.

(2) Neither the Government's review, approval or acceptance of, nor payment for, the services required under this contract, shall be construed to operate as a waiver of any rights under this contract or of any cause of action arising out of the performance of this contract. The Contractor shall be and remain liable to the Government in accordance with applicable law for all damages to the Government caused by the Contractor's negligent performance of any of these services furnished under this contract.

(3) The rights and remedies of the Government provided for under this contract are in addition to any other rights and remedies provided by law.

(4) If the Contractor is comprised of more than one legal entity, each entity shall be jointly and severally liable hereunder.

(d) Contractor's Role during the Design Process. The Contractor's construction management key personnel shall be actively involved during the design process to effectively integrate the design and construction requirements of this contract. In addition to the typical required construction activities, the Contractor's involvement includes, but is not limited to actions such as: integrating the design schedule into the Master Schedule to maximize the effectiveness of fast-tracking design and construction (within the limits allowed in the contract), ensuring constructability and economy of the design, integrating the shop drawing and installation drawing process into the design, executing the material and equipment acquisition programs to meet critical schedules, effectively interfacing the design and construction quality control (QC) management programs with the design QC program, and maintaining and providing the design team with accurate, up-to-date redline and as-built documentation for eventual submission as Record Drawings.. The Contractor shall require and manage the active involvement of key trade subcontractors in the above activities.

(e) Deviating from the Accepted Design. The Contractor must obtain the approval of the Designer of Record and the Government's concurrence, in the form of supplemental agreement to the contract, for any Contractor-proposed revision to the professionally stamped-and-

sealed and Government-reviewed final design that has been released for Construction before proceeding with the revision. The Government reserves the right to disapprove such a revision.
(1) The Government reserves the right to non-concur with any revision to the final design that has been released for construction, including those which may impact furniture, furnishings, equipment selections or operations decisions that were made, based on the reviewed design.

(2) Any Contractor-proposed revision to the design which deviates from the contract requirements (i.e., the Request for Proposal (RFP) and the accepted proposal), will require a bilateral modification (e.g. supplemental agreement) to the contract before any work commences.

(3) Unless the Government initiates a change to the contract requirements, or the Government determines that the Government furnished design criteria are incorrect and must be revised, any Contractor initiated proposed change to the contract requirements, which results in additional cost, shall strictly be at the Contractor's expense.

(4) The Contractor shall track all approved revisions to the reviewed and accepted design and shall incorporate them into the as-built design documentation, in accordance with agreed procedures. The Designer of Record shall document its professional concurrence on the as-builts for any revisions in the stamped and sealed drawings and specifications.

(f) Value Engineering after Award. In reference to Federal Acquisition Regulation (FAR) 52.248-3, Value Engineering - Construction, the Government may refuse to entertain a "Value Engineering Change Proposal" (VECP) for those "performance oriented" aspects of the Solicitation documents which were addressed in the Contractor's accepted contract proposal and which were evaluated in competition with other offerors for award of this contract.

(1) The Government may consider a VECP for those "prescriptive" aspects of the Solicitation documents, not addressed in the Contractor's accepted contract proposal or addressed but evaluated only for minimum conformance with the Solicitation requirements.

(2) For purposes of this clause, the term "performance oriented" refers to those aspects of the design criteria or other contract requirements, which allow the offeror or Contractor certain latitude, choice of and flexibility to propose in its accepted proposal a choice of design, technical approach, design solution, construction approach or other approach to fulfill the contract requirements. Such requirements generally tend to be expressed in terms of functions to be performed, performance required or essential physical characteristics, without dictating a specific process or specific design solution for achieving the desired result.

(3) In contrast, for purposes of this clause, the term "prescriptive" refers to those aspects of the design criteria or other Solicitation requirements wherein the Government expressed the design solution or other requirements in terms of specific material, approaches, systems, and/or processes to be used. Prescriptive aspects typically allow the offerors little or no freedom in the choice of design approach, materials, fabrication techniques, methods of installation, or any other approach to fulfill the contract requirements.

(g) Warranty of Design. The Contractor warrants that the design shall be performed in accordance with the contract requirements. Design and design related construction not conforming to the Contract requirements shall be corrected at no additional cost to the Government. The standard of care for design is defined in paragraph c of this clause, Responsibility of the Contractor for Design.

(1) The period of this warranty shall commence upon final completion and the Government's acceptance of the work, or in the case of the Government's beneficial occupancy of all or part of the work for its convenience, prior to final completion and acceptance, at the time of such occupancy.

(2) This design warranty shall be effective from the above event through the Statute of Limitations and Statute of Repose or host nation law, as applicable to the place of construction performance.

(3) The rights and remedies of the Government provided for under this clause are in addition to any other rights and remedies provided in this contract or by law.

(h) Government Re-Use of Design. In conjunction with the Defense Federal Acquisition Regulation Supplement (DFARS) 252.227-7022, Government Rights (Unlimited), the Government will not ask for additional originals or copies of the design works after the Contractor provides all required design documentation and record drawing documentation under the instant contract. Further, if the Government uses the design for other projects without additional compensation to the Contractor for re-use, the Government releases the Contractor from liability in the design on the other projects, due to defects in the design that are not the result of fraud, gross mistake as amounts to fraud, gross negligence or intentional misrepresentation.

(End of clause)

Section 00 71 00 - Contracting Definitions

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.202-1	Definitions.	Jun 2020		

Section 00 73 00 - Supplementary Conditions

"General Decision Number: TX20250279 03/14/2025

Superseded General Decision Number: TX20240279

State: Texas

Construction Type: Building

Counties: Coryell and Lampasas Counties in Texas.

BUILDING CONSTRUCTION PROJECTS (does not include single family homes or apartments up to and including 4 stories).

Note: Contracts subject to the Davis-Bacon Act are generally required to pay at least the applicable minimum wage rate required under Executive Order 14026 or Executive Order 13658. Please note that these Executive Orders apply to covered contracts entered into by the federal government that are subject to the Davis-Bacon Act itself, but do not apply to contracts subject only to the Davis-Bacon Related Acts, including those set forth at 29 CFR 5.1(a)(1).

If the contract is entered into on or after January 30, 2022, or the contract is renewed or extended (e.g., an option is exercised) on or after January 30, 2022:	. Executive Order 14026 generally applies to the contract. . The contractor must pay all covered workers at least $17.75 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025.
If the contract was awarded on or between January 1, 2015 and January 29, 2022, and the contract is not renewed or extended on or after January 30, 2022:	. Executive Order 13658 generally applies to the contract. . The contractor must pay all covered workers at least $13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on that contract in 2025.

The applicable Executive Order minimum wage rate will be adjusted annually. If this contract is covered by one of the Executive Orders and a classification considered necessary for performance of work on the contract does not appear on this wage determination, the contractor must still submit a

conformance request.

Additional information on contractor requirements and worker protections under the Executive Orders is available at http://www.dol.gov/whd/govcontracts.

Modification Number	Publication Date
0	01/03/2025
1	03/14/2025

* BOIL0074-003 01/01/2025

	Rates	Fringes
BOILERMAKER	$ 33.17	24.92

ENGI0178-005 06/01/2020

	Rates	Fringes
POWER EQUIPMENT OPERATOR		
(1) Tower Crane	$ 32.85	13.10
(2) Cranes with Pile Driving or Caisson Attachment and Hydraulic Crane 60 tons and above	$ 28.75	10.60
(3) Hydraulic cranes 59 Tons and under	$ 32.35	13.10

IRON0084-011 06/01/2024

	Rates	Fringes
IRONWORKER, ORNAMENTAL	$ 28.26	8.13

PLUM0286-011 06/03/2024

	Rates	Fringes
PIPEFITTER (Excludes HVAC Pipe Installation)	$ 36.15	15.92

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* SUTX2014-059 07/21/2014

	Rates	Fringes
BRICKLAYER	$ 19.09	0.00
CARPENTER, Excludes Drywall Hanging, and Metal Stud Installation	$ 17.54 **	1.80
CEMENT MASON/CONCRETE FINISHER	$ 14.00 **	0.00
DRYWALL HANGER AND METAL STUD INSTALLER	$ 14.08 **	0.00
ELECTRICIAN (Low Voltage		

Wiring Only)	$ 28.28	2.44
ELECTRICIAN, Excludes Low Voltage Wiring	$ 20.50	2.71
HVAC MECHANIC (HVAC Pipe Installation Only)	$ 15.50 **	0.00
HVAC MECHANIC (Installation of HVAC Unit Only)	$ 16.01 **	1.56
INSULATOR - MECHANICAL (Duct, Pipe & Mechanical System Insulation)	$ 19.77	7.13
IRONWORKER, REINFORCING	$ 13.35 **	0.00
IRONWORKER, STRUCTURAL	$ 18.35	4.90
LABORER: Common or General	$ 10.53 **	0.00
LABORER: Mason Tender - Brick	$ 9.98 **	0.00
LABORER: Mason Tender - Cement/Concrete	$ 9.93 **	0.00
LABORER: Pipelayer	$ 12.49 **	2.13
LABORER: Roof Tearoff	$ 11.28 **	0.00
OPERATOR: Backhoe/Excavator/Trackhoe	$ 13.10 **	1.24
OPERATOR: Bobcat/Skid Steer/Skid Loader	$ 13.93 **	0.00
OPERATOR: Bulldozer	$ 18.29	1.31
OPERATOR: Drill	$ 16.22 **	0.34
OPERATOR: Forklift	$ 14.00 **	0.00
OPERATOR: Grader/Blade	$ 14.34 **	1.68
OPERATOR: Loader	$ 13.88 **	0.44
OPERATOR: Mechanic	$ 17.52 **	3.33
OPERATOR: Paver (Asphalt, Aggregate, and Concrete)	$ 16.03 **	0.00
OPERATOR: Roller	$ 13.11 **	0.00
PAINTER (Brush, Roller, and Spray)	$ 15.00 **	0.81
PLUMBER, Excludes HVAC Pipe Installation	$ 21.18	7.57

ROOFER	$ 13.75 **	0.00
SHEET METAL WORKER (HVAC Duct Installation Only)	$ 18.71	4.90
SHEET METAL WORKER, Excludes HVAC Duct Installation	$ 14.89 **	1.55
SPRINKLER FITTER (Fire Sprinklers)	$ 15.46 **	0.00
TILE FINISHER	$ 11.22 **	0.00
TILE SETTER	$ 14.74 **	0.00
TRUCK DRIVER: Dump Truck	$ 11.50 **	1.10
TRUCK DRIVER: Flatbed Truck	$ 19.65	8.57
TRUCK DRIVER: Semi-Trailer Truck	$ 12.50 **	0.00
TRUCK DRIVER: Water Truck	$ 12.00 **	4.11

WELDERS - Receive rate prescribed for craft performing operation to which welding is incidental.

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** Workers in this classification may be entitled to a higher minimum wage under Executive Order 14026 ($17.75) or 13658 ($13.30). Please see the Note at the top of the wage determination for more information. Please also note that the minimum wage requirements of Executive Order 14026 are not currently being enforced as to any contract or subcontract to which the states of Texas, Louisiana, or Mississippi, including their agencies, are a party.

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors applies to all contracts subject to the Davis-Bacon Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is a victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at https://www.dol.gov/agencies/whd/government-contracts.

Unlisted classifications needed for work not included within

the scope of the classifications listed may be added after award only as provided in the labor standards contract clauses (29CFR 5.5 (a) (1) (iii)).

The body of each wage determination lists the classifications and wage rates that have been found to be prevailing for the type(s) of construction and geographic area covered by the wage determination. The classifications are listed in alphabetical order under rate identifiers indicating whether the particular rate is a union rate (current union negotiated rate), a survey rate, a weighted union average rate, a state adopted rate, or a supplemental classification rate.

Union Rate Identifiers

A four-letter identifier beginning with characters other than ""SU"", ""UAVG"", ?SA?, or ?SC? denotes that a union rate was prevailing for that classification in the survey. Example: PLUM0198-005 07/01/2024. PLUM is an identifier of the union whose collectively bargained rate prevailed in the survey for this classification, which in this example would be Plumbers. 0198 indicates the local union number or district council number where applicable, i.e., Plumbers Local 0198. The next number, 005 in the example, is an internal number used in processing the wage determination. The date, 07/01/2024 in the example, is the effective date of the most current negotiated rate.

Union prevailing wage rates are updated to reflect all changes over time that are reported to WHD in the rates in the collective bargaining agreement (CBA) governing the classification.

Union Average Rate Identifiers

The UAVG identifier indicates that no single rate prevailed for those classifications, but that 100% of the data reported for the classifications reflected union rates. EXAMPLE: UAVG-OH-0010 01/01/2024. UAVG indicates that the rate is a weighted union average rate. OH indicates the State of Ohio. The next number, 0010 in the example, is an internal number used in producing the wage determination. The date, 01/01/2024 in the example, indicates the date the wage determination was updated to reflect the most current union average rate.

A UAVG rate will be updated once a year, usually in January, to reflect a weighted average of the current rates in the collective bargaining agreements on which the rate is based.

Survey Rate Identifiers

The ""SU"" identifier indicates that either a single non-union rate prevailed (as defined in 29 CFR 1.2) for this classification in the survey or that the rate was derived by computing a weighted average rate based on all the rates reported in the survey for that classification. As a weighted

average rate includes all rates reported in the survey, it may include both union and non-union rates. Example: SUFL2022-007 6/27/2024. SU indicates the rate is a single non-union prevailing rate or a weighted average of survey data for that classification. FL indicates the State of Florida. 2022 is the year of the survey on which these classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 6/27/2024 in the example, indicates the survey completion date for the classifications and rates under that identifier.

?SU? wage rates typically remain in effect until a new survey is conducted. However, the Wage and Hour Division (WHD) has the discretion to update such rates under 29 CFR 1.6(c)(1).

State Adopted Rate Identifiers

The ""SA"" identifier indicates that the classifications and prevailing wage rates set by a state (or local) government were adopted under 29 C.F.R 1.3(g)-(h). Example: SAME2023-007 01/03/2024. SA reflects that the rates are state adopted. ME refers to the State of Maine. 2023 is the year during which the state completed the survey on which the listed classifications and rates are based. The next number, 007 in the example, is an internal number used in producing the wage determination. The date, 01/03/2024 in the example, reflects the date on which the classifications and rates under the ?SA? identifier took effect under state law in the state from which the rates were adopted.

WAGE DETERMINATION APPEALS PROCESS

1) Has there been an initial decision in the matter? This can be:

a) a survey underlying a wage determination
b) an existing published wage determination
c) an initial WHD letter setting forth a position on a wage determination matter
d) an initial conformance (additional classification and rate) determination

On survey related matters, initial contact, including requests for summaries of surveys, should be directed to the WHD Branch of Wage Surveys. Requests can be submitted via email to davisbaconinfo@dol.gov or by mail to:

Branch of Wage Surveys
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

Regarding any other wage determination matter such as conformance decisions, requests for initial decisions should be directed to the WHD Branch of Construction Wage Determinations. Requests can be submitted via email to BCWD-Office@dol.gov or

by mail to:

Branch of Construction Wage Determinations
Wage and Hour Division
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

2) If an initial decision has been issued, then any interested party (those affected by the action) that disagrees with the decision can request review and reconsideration from the Wage and Hour Administrator (See 29 CFR Part 1.8 and 29 CFR Part 7). Requests for review and reconsideration can be submitted via email to dba.reconsideration@dol.gov or by mail to:

Wage and Hour Administrator
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210

The request should be accompanied by a full statement of the interested party's position and any information (wage payment data, project description, area practice material, etc.) that the requestor considers relevant to the issue.

3) If the decision of the Administrator is not favorable, an interested party may appeal directly to the Administrative Review Board (formerly the Wage Appeals Board). Write to:

Administrative Review Board
U.S. Department of Labor
200 Constitution Avenue, N.W.
Washington, DC 20210.

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END OF GENERAL DECISION"

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SPECIAL PROVISIONS
04/21, CHG 1: 06/23

PART 1 GENERAL

Attachments to this specification are as follows:

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM C1153	(2015) Standard Practice for Location of Wet Insulation in Roofing Systems Using Infrared Imaging

U.S. ARMY CORPS OF ENGINEERS (USACE)

EM 385-1-1	(2024) Safety -- Safety and Health Requirements Manual

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1926.59	Hazard Communication

1.2 SUBMITTALS

Government approval/acceptance is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Local Agency Check;

SF1413 Statement and Acknowledgement;

SD-02 Shop Drawings

Mechanical/Electrical Room Layout; G

SD-04 Samples

Equipment Warranty Identification Tags; G

SD-05 Design Data

Progress Photographs;

SD-07 Certificates

Warranty of Construction;

NO ASBESTOS - CONTAINING MATERIAL (ACM) CERTIFICATION; G

Construction Phase:

Certification for each individual product installed and identified to contain mineral fibers that no asbestos-containing materials were installed; G

Documentation to show that the products containing mineral fiber materials have been microscopically examined by an AIHA- or NVLAP-certified laboratory and the lab has determined that the material does not contain asbestos; G

Insurance;

Sales and Use Tax;

SD-11 Closeout Submittals

Preliminary (Working) As-Built Drawings; G

Final As-Built Drawings; G

CAD Working As-Built Drawings; G

Equipment-in-Place List;

Maintenance and Parts Data;

Warranty Management Plan; G

1.3 COMMENCEMENT, PROSECUTION AND COMPLETION OF WORK

a. Refer to clause 52.211-12 "LIQUIDATED DAMAGES" in Section 00 70 00 for the amount of Liquidated Damages for the project.

b. Refer to clause 52.211-10 "Commencement, Prosecution, and Completion of Work" in Section 00 70 00 for a notification of significant contract dates.

1.3.1 Additional Requirements/Clarifications of Work Included Within the Contract

a. The time stated in clause 52.211-10 "Commencement, Prosecution, and Completion of Work" in Section 00 70 00 for completion shall include installation of Government-furnished furniture, if required, as well as as-built drawings, O&M manuals, operational tests/reports/training/instructions, equipment lists.

b. Those areas of the building receiving Government-furnished furniture and IT/Telecom equipment shall be made available for Government

installation to begin no less than 14 calendar days prior to the contractor's accepted scheduled Construction Completion Date updated in accordance with clause 52.211-10 "Commencement, Prosecution, and Completion of Work" in Section 00 70 00. The Contractor shall participate in a Furniture Pre-Installation Building Inspection, Daily Furniture Installation Building Inspections, and a Final Furniture Installation Building Inspection along with the furniture installation supervisor and a Government representative.

c. If the Contractor fails to meet the requirements in paragraph "Requirements for Completion of Designated Areas Prior to Furniture Installation", by the Contractor's accepted scheduled Furniture Installation Start Date,the Contractor shall pay separate liquidated damages to the Government in the amount of $1,690 for each seven calendar days of the delay until the requirement is fulfilled. The liquidated damages contained in this paragraph are independent of and in addition to those references in clause 52.211-12 "Liquidated Damages - Construction" in Section 00 70 00. Changes to the Contractor's Scheduled Furniture Installation Start Date and Construction Completion Date must be received and accepted no later than forty-nine (49) calendar days prior to the Contractor's current Scheduled Furniture Installation Start Date in order to avoid liquidated damages associated with the furniture installation. Commencement of furniture installation on or after the Contractor's scheduled Furniture Installation Start Date prior to the fulfillment of these requirements does not relieve the Contractor of their liquidated damages obligation.

1.3.2 Requirements for Completion of Designated Areas Prior to Furniture Installation

a. The Contractor is responsible for access to the building, security and ownership during the furniture and IT/Telecom equipment installation. Facility operation and maintenance during the furniture and IT/Telecom equipment installation is the responsibility of the Contractor.

b. The Government will be installing IT/Telecom equipment, including the telephone switch and individual telephone sets, during the furniture installation period.

c. The Contractor shall be responsible for coordination with its subcontractors and the Government furniture and IT/Telecom installation contractors, as necessary, to accommodate the furniture and IT/Telecom equipment installation.

d. The exterior roads, parking areas, walks, and building entrances shall be sufficiently complete to support the delivery of furniture products by semi-tractor trailers and made available for use to the Government furniture and IT/Telecom installation contractors.

e. All interior building finishes of areas receiving furniture, including all furniture entries, pathways, staging, and storage areas shall be complete. Completed building finishes shall include all flooring materials and base, interior walls, ceilings, lighting, HVAC systems and controls, doors, doorframes, and trim. All areas are to be cleaned, vacuumed, and an initial waxing applied as appropriate for the installation of furniture.

f. All utilities and systems serving the building shall be fully

operational prior to furniture installation. The HVAC system(s) must be in operation, fully balanced and commissioned. The elevator(s) shall be operable and certified for use by the approving agency prior to the delivery of the furniture package and must be made available, at no additional cost, for use by the furniture and IT/Telecom equipment installation contractors.

g. The pre-final building punch inspections shall be performed and punch list items corrected by the Contractor prior to the Government Furniture and IT/Telecom installations.

h. During installation of the furniture and IT/Telecom, the Contractor shall participate in inspections as noted above in subparagraph (b) of the paragraph entitled "Additional Requirements/Clarifications of Work Included Within the Contract". Repairs to any damaged areas shall be performed at no additional cost to the Government by the appropriate party as determined by the Government during these inspections.

i. The Contractor shall be responsible for the electrical hookup of the power feed(s) and phone/data wiring to-as well as providing all data/com faceplates and jacks for-all powered modular systems furniture. This work shall be coordinated with the Government Furniture and IT/Telecom installation contractors to occur while they continue their installations.

j. The Contractor shall perform the final buffing and waxing of areas that are receiving furniture after the furniture and IT/Telecom installation contractors have indicated either installation in those areas is complete or that the final buffing and waxing shall be performed in certain areas prior to the placement of furniture. The final buffing and waxing of corridors and other areas not receiving furniture shall be performed by the Contractor after the furniture and IT/Telecom installation contractors have indicated installation is complete for the building.

k. After furniture and IT/Telecom installation by the Government, the Contractor shall perform a complete Final Cleaning in all impacted areas, as defined in the paragraph entitled "Final Cleaning" in this specification. Final Inspection and Acceptance may occur only after all furniture and IT/Telecom installation by the Government is complete.

1.4 NATIVE FILES FOR PROPOSAL DEVELOPMENT ON DESIGN/BUILD PROJECT

In addition to the drawings that are part of the solicitation, are Native CAD files in one and only one format that contain limited preliminary notional design concepts and site characteristics that were created during the solicitation development process and are not necessarily all inclusive. The material is given “as is” and no explanation or clarifications will be made with regard to these materials.

1.5 NOT USED

1.6 CONTRACT DRAWINGS AND SPECIFICATIONS

In addition to DFARS 252.236-7001 "Contract Drawings and Specifications" in Section 00 70 00 the following will apply:

a. After Award or no later than Notice to Proceed (NTP), the Government

will furnish the Contractor a compact disk containing all technical contract documents in electronic media only. This disk will include a complete set of drawing files and technical specification files which have all amendments included. The disk will contain drawing files in PDF format along with technical specifications in PDF format. These PDF files are the contract documents that represent the construction requirements of the contract, and are being provided for the Contractor's use in printing paper copies of contract documents.

b. In addition, native CAD files(this includes, but not limited to, all source files, models, custom fonts and linestyles, plot files, and images used to create the contract drawings) are provided in accordance with the "AS-BUILT DOCUMENTS" paragraph for the Contractor's use in maintaining and preparing as-built plans. If another CAD Program is used other than the Using Agency's System, all native CAD files that were generated with that software and all support files will also be included. Only native files are to be used for As-Built preparation and information.

c. Native files are to be used for As-Built preparation only. The PDF files are the contract documents that represent the construction requirements of the contract.

1.7 NOT USED

1.8 AS-BUILT DOCUMENTS FOR DESIGN BUILD PROJECTS

1.8.1 General

It is the scope of this section to provide guidance to the Contractor on preparing as-built drawings for design-build projects. An as-built drawing is a contract construction drawing revised to reflect the final as-built conditions of the project because of modifications, changes, corrections to the project design required during construction, submittals and extensions of design. The terms "drawings," "contract drawings," "drawing files," "working as-built drawings" and "final as-built drawings" refer to contract drawings that are revised to be used for the "RECORD DRAWING AS-BUILTS".

1.8.2 Withholding

Maintenance of working as-builts is considered part of the value of the facilities being constructed and will not be paid for as a separate line item. All costs in conjunction with periodic as-built maintenance and final preparation shall be considered a subsidiary obligation of the Contractor.

1.8.2.1 Failure to Maintain

If the Contractor fails to maintain the working as-built drawings as specified herein, the Contracting Officer will deduct from the monthly progress payment an amount up to 10% or which, in the Contracting Officer's judgment, represents the estimated cost of bringing the as-built documents up to date. This monthly deduction will continue until an agreement can be reached between the Contracting Officer and the Contractor regarding the accuracy and completeness of working as-built documents. This includes conversion of submittals and other miscellaneous documents.

1.8.2.2 As-Builts Prepared by Contractor

The Contractor is required to prepare and provide final as-built drawings utilizing the native files provided by the Government. If translation is required, the original design models (BIM or CAD) shall be updated to As-Built conditions and then appropriately translated. Updating translated drawings will not be accepted. The contractor shall update the CAD working as-built drawings, in accordance with paragraph "Maintenance of As-Built Drawings", on a quarterly basis and submit them for independent Government review. Both paper and electronic documents shall be available at all times and shall be provided promptly to the Contracting Officer's Representatives when requested. The Contractor shall be responsible for backup of electronic files during construction and for controlling release of information.

The Contractor shall include an activity in the cost-loaded schedule for the final As-Built drawing submittal in the amount defined in the following paragraph. See Section 01 32 01.00 06, PROJECT SCHEDULE, para "Basis for Payment and Cost Loading". This amount shall be withheld and not paid until the final As-Built drawing submittal has been accepted by the Government.

Withholding for the final as-built drawing submittal shall be in the amount of: 1% for contract awards less than $5,000,000; $50,000 for contracts awarded from $5,000,000 to $10,000,000; or $100,000 for contracts awarded greater than $10,000,000. Withholding shall be withheld until the final as-built drawing submittal has been approved and accepted by the Government.

1.8.3 Maintenance of Working As-Built Drawings

The Contractor shall revise two (2) sets of paper drawings by red-line process to show the as-built conditions during the prosecution of the project. These as-built marked drawings shall be kept current on a weekly basis and available on the jobsite at all times. Changes in the work from the contract or additional information which is uncovered in the course of construction shall be accurately and neatly recorded as they occur by means of details and notes. Changes must be reflected on all sheets that the change affects. The working as-built marked drawings will be jointly reviewed for accuracy and completeness by the Contracting Officer and the Contractor before submission of each monthly pay estimate. The working as-built drawings shall show the following information if applicable to the project, but not be limited thereto:

a. The actual location, kinds and sizes of all sub-surface utility lines. In order that the location of these lines and appurtenances may be determined in the event the surface openings or indicators become covered over or obscured, the as-built drawings shall show, by offset dimensions to two permanently fixed surface features, the end of each run including each change in direction. Valves, splice boxes and similar appurtenances shall be located by dimensioning along the utility run from a reference point. The average depth below the surface of each run shall also be recorded.

b. The location and dimensions of any changes within the building structure.

c. The correct, alignments, grade elevations, typical cross section, earthwork, structures, or utilities if any changes were made from

contract plans.

d. Additional as-built information that exceeds the detail shown on the Contract Drawings. These as-built conditions include those that reflect structural details, fabrication, erection, installation plans and placing details, pipe sizes, insulation material, dimensions of equipment foundations and layouts, equipment, sizes, mechanical and electrical room layouts and other extensions of design, that were not shown in the original contract documents because the exact details were not known until after the time of approved shop drawings. It is recognized that the shop drawing submittals (revised showing as-built conditions) will serve as the as-built record without actual incorporation into the contract drawings. The final as-built construction drawing shall reference the shop drawing file that includes the as-built information. In turn, the shop drawing shall reference the applicable construction as-built drawing. All such shop drawing submittals must include the paper copy and PDF of the drawings.

e. The invert elevations and grades of any drainage structures or ditches installed or affected as part of the project construction.

f. Changes or modifications which result from the final inspection.

g. Contour map of the final borrow pit or spoil area with spot elevations as necessary if: borrow material is from sources on Government property; Government property is used as a spoil area; or, if excavated soil materials are placed in approved locations other than a landfill.

h. Where contract drawings present options, only the option selected for construction shall be shown on the final as-built drawings.

i. Systems designed or enhanced by the Contractor, such as HVAC controls, fire alarms, fire sprinklers, fire protection, fire detection and irrigation systems and other related systems are included in this project, the as-built drawings will include detailed information for all aspects of the systems including wiring, piping, and equipment drawings.

j. Typically, room numbers shown on the contract drawings are selected for design convenience and do not represent the actual numbers intended for use by the end user. Final as-built drawings shall reflect actual room numbers adopted by the end user.

k. Contract modifications (change order price) shall include the Contractor's cost to change working and final as-built drawings to reflect modifications and compliance with the following procedures:

(1) Directions in the modification for posting descriptive changes shall be followed.

(2) A Revision Triangle shall be placed at the location of each deletion.

(3) For new details or sections which are added to a drawing, a Revision Triangle shall be placed by the detail or section title.

(4) For minor changes, a Revision Triangle shall be placed by the area changed on the drawing (each location).

(5) For major changes to a drawing, a Revision Triangle shall be placed by the title of the affected plan, section, or detail at each location.

(6) For changes to schedules or drawings, a Revision Triangle shall be placed either by the schedule heading or by the change in the schedule.

1.8.4 Computer Aided Design and Drafting (CAD) Drawings

Only personnel proficient in the preparation of CAD drawings shall be employed to prepare and modify the construction drawings or prepare additional new drawings. Additions and corrections to the construction drawings shall be equal in quality to that of the originals. Line work, line weights, lettering, layering conventions, and symbols shall be the same as the original line work, line weights, lettering, layering conventions, and symbols. If additional drawings are required, they shall be prepared using the specified electronic file format applying the same guidance specified for original drawings. Three dimensional (3D) elements shall be placed in files in their proper locations when using 3D files with spatially correct elements. The title block and drawing border to be used for any new final as-built drawings shall be identical to that used on the contract drawings.

1) Additions and corrections to the contract drawings shall be accomplished using CAD media files supplied by the Designers of Record. All work by the Contractor shall be done on files in the format in which they are provided. Translation of files to a different format, for the purpose of As-Built production, and then retranslating back to the format originally provided, will not be acceptable. The media files will be supplied by the Contractor to the COR on Using Agency's specified media. The Contractor shall be responsible for providing all program files and hardware necessary to prepare final as-built drawings. The Contracting Officer will review final as-built drawings for accuracy and the Contractor shall make all required corrections, changes, additions, and deletions.

2) When final revisions have been completed, the cover sheet drawing shall show the wording "RECORD DRAWING AS-BUILT" followed by the name of the Contractor in letters at least 3/16 inch high. All other contract drawings shall be marked in the bottom right-hand corner of each drawing either "AS-BUILT" drawing denoting no revisions on the sheet, or "REVISED AS-BUILT" denoting one or more revisions. Original contract drawings shall be dated in the revision block.

1.8.5 Not Used

1.8.6 Preliminary (Working) As-Built Drawings Submittal

Six (6) weeks before occupancy of this facility by the Government, the Contractor shall submit one (1) set of the original paper working as-built drawings to the Contracting Officer for review and approval. These working as-built marked drawings shall be neat, legible and accurate. The review by Government personnel will be expedited to the maximum extent possible. If upon review, the working as-built drawings are found to contain errors and/or omissions, they will be returned to the Contractor for corrections. The Contractor shall complete the corrections and return the working as-built marked drawings to the Contracting Officer within ten (10)

calendar days. Upon approval, the working as-built drawings will be returned to the Contractor for use in preparation of final as-built drawings.

1.8.7 Final As-Built Drawings

The contract drawings shall be modified as may be necessary to correctly show the features of the project as it has been constructed by bringing the contract drawings into agreement with approved working as-built drawings, adding such additional drawings as may be necessary. These final as-built drawings are part of the permanent records of the project and the Contractor shall be responsible for the protection and safety thereof until returned to the Contracting Officer. Any drawings damaged or lost by the Contractor shall be satisfactorily replaced by the Contractor at no expense to the Government.

When electronic cad files are a part of the as-built process, a set of files shall be provided to the government as a part of the Final As-Built submittal for a review to verify the correctness of the as-built markups and that all changes have been incorporated into the electronic files. Should errors be determined, the contractor shall update the files and provide a corrected set of files within fourteen (14) calendar days of receipt of comments. An independent Government review will be made on the accepted files to determine compliance with the As-Built requirements of this section, National CAD Standards, and the AEC CAD Standards; and to verify graphic changes were done properly in preparing the electronic files. This review will require submission of electronic files, containing all the files needed to reproduce the contract drawings, a full size set of contract drawings in PDF format, all shop drawings in PDF format, a scanned copy of the paper markups and the paper markups. Upon receipt of any comments from this independent review, the contractor shall update the electronic files and provide a corrected set of files within fourteen (14) calendar days of receipt of the comments.

When BIM models are a part of the as-built process, the models shall be provided to the Government as a part of the Final As-Built submittal for a review to verify the correctness of the as-built markups and confirm that all changes have been incorporated into the models. Should errors be determined, the contractor shall update the files and provide a corrected set of files within fourteen (14) calendar days of receipt of comments. An independent Government review will be made on the accepted files to determine compliance to the As-Built requirements and to verify graphics changes were done properly. This review will require the electronic model files, all the files needed to reproduce the contract drawings, a full size set of contract drawings in PDF format, all the shop drawings in PDF format, a scanned copy of the paper markups and the paper markups. Upon receipt of any comments from this independent review, the contractor shall update the electronic model files and provide a corrected set of files within fourteen (14) calendar days of receipt of the comments.

In the event the Contractor accomplishes additional work which changes the as-built conditions of the facility, after submission and approval of the working as-built drawings, the Contractor shall be responsible for the addition of these changes to the working as-built drawings and also to the final as-built documents and electronic models.

1.8.8 Title Blocks

Title Blocks shall be clearly marked to indicate final as-built drawings.

1.8.9 Construction Contract Specifications

Submit final PDF file record construction contract specifications, including revisions thereto, with submission of final as-built drawing.

1.8.10 Other As-Built Documents

All other documents such as design analysis, catalog cuts or certification documents that are not available in native electronic format shall be scanned and provided in an organized manner in Adobe PDF format.

1.9 EQUIPMENT DATA, O&M, & REPAIR MANUALS WITH FIELD TRAINING REQUIREMENTS

1.9.1 Real Property Equipment

Equipment-in-Place Data

Contractor shall be required to make an Equipment-in-Place list of all installed equipment furnished under this contract. This list shall include all information usually listed on manufacturer's name plate. The Form is part of SPECIAL PROVISIONS and is included following the SPECIAL PROVISIONS, so to positively identify the piece of property. The list shall also include the cost of each piece of installed property F.O.B. construction site. For each of the items which are specified herein to be guaranteed for a specified period from the date of acceptance thereof, the following information shall be given: The name, serial and model number address of equipment supplier, or manufacturer originating the guaranteed item. The information shall also be provided in excel spreadsheet format with columns for above information in addition to floor, space id as listed in the drawings, system, and submittal register id number for the item. The Contractor's guarantee to the Government of these items will not be limited by the terms of any manufacturer's guarantee to the Contractor. Furnish the list as one (1) reproducible and three (3) copies, and in electronic format on CD to the Contracting Officer thirty (30) calendar days before completion of any segment of the contract work which has an incremental completion date.

Maintenance and Parts Data
The Contractor will be required to furnish a brochure, catalog cut, parts list, manufacturer's data sheet or other publication which will show detailed parts data on all other equipment subject to repair and maintenance procedures not otherwise required in Operations and Maintenance Manuals specified elsewhere in this contract. This information shall be provided electronically in PDF format with bookmarks for each piece of equipment with file name included in a separate column or linked worksheet in the equipment data excel spreadsheet as described in the paragraph above. Distribution of directives shall follow the same requirements as listed in paragraph above.

1.9.2 O&M and Repair Manuals

Withholding & Copies

The Contractor shall provide 6 electronic format copies on CD of the Equipment Operating, Maintenance, and Repair Manuals and two complete

hardcopies; these requirements shall apply even through the Technical Specification section indicates otherwise. The manuals shall be prepared electronically in PDF format containing bookmarks for each table of contents item. The PDF file shall be referenced in a separate column or linked worksheet in the equipment data excel spreadsheet as described previously. Separate manuals shall be provided for each utility system as defined per the Technical Specification. Operations and Maintenance manuals shall be accepted/approved before field training or ninety (90) calendar days before substantial completion (whichever occurs earlier). An amount of $20,000 shall be withheld until submittal and acceptance/approval of O&M manuals is complete. A draft outline and table of contents shall be submitted for acceptance/approval at 50% contract completion. See paragraph "EQUIPMENT DATA, O&M, & REPAIR MANUALS WITH FIELD TRAINING REQUIREMENTS" for detail O&M and Repair Manual format.

1.9.3 Field Training

1.9.3.1 Training Course

Contractor shall conduct a training course for the operating staff for each particular component and system. Where the training period is not identified by the technical specification, a minimum of 1 hour of training shall be provided for that component or system. Training shall only occur after the Manuals have been approved/ accepted by the Government and during normal working time, and shall start after the system or component is functionally completed. The field instructions shall cover all of the items contained in the Equipment Operating, Maintenance and Repair Manuals as identified per individual Technical Specifications. The training will include both classroom and "hands-on" training. The Contractor shall submit a lesson plan outlining the information to be discussed during training periods. This lesson plan will be submitted ninety (90) calendar days before contract completion and accepted/approved before the field training occurs. Training shall be documented by the Contractor and a list of attendees shall be furnished to the Government.

1.9.3.2 Training Recording

The Contractor shall provide all equipment, materials, and trained personnel required to visually and audibly record all site operations and maintenance (O&M) training sessions. The video technician/trainer shall be employed by a video production company that has been in business for a minimum of 2 years. The Contractor shall submit for acceptance by the Government, the resume of the technician/trainer and the video production company, and the proposed video format. The video format shall be one in wide use, and any software necessary to view the video shall be provided to the Government. Video shall be provided to the Government on DVD. Audio shall be adjusted, filtered or otherwise controlled to ensure the presenter can be understood at all times. Each system or piece of equipment shall be covered on a single DVD or set of DVDs, which shall be identified with a type written label showing the name of the project, equipment or system, and contract number. This same information shall be provided as an introduction on each DVD. When two or more DVDs are provided for a single system or piece of equipment, they shall be packaged as a set in an appropriate storage case. Provide three copies of each DVD(s) for each training session. Training DVDs shall be furnished to the Government within ten (10) working days following training.

1.10 AVAILABILITY OF UTILITIES

a. Availability and Use of Utility Services

The Government will not furnish any utilities or sanitary facilities to the contractor for their use even if available at the work site. The contractor is responsible for procuring and/or providing these items themselves or obtaining them from a private entity (utility company). During furniture and IT/Telecom equipment installation and until the facility is turned over to the Government, the Contractor shall maintain electric service to the construction site for the operation of HVAC, lighting and electrical power.

b. Additional Requirements

(1) Existing Washing Facilities in the building may not be used by Contractor employees.

1.10.1 Alterations to Utilities

Where changes and relocations of utility lines are noted to be performed by others, the Contractor shall give the Contracting Officer at least thirty (30) calendar days written notice in advance of the time that the change or relocation is required. In the event that, after the expiration of thirty (30) calendar days after the receipt of such notice by the Contracting Officer, such utility lines have not been changed or relocated and delay is occasioned to the completion of the work under contract, the Contractor may be entitled to a time extension equal to the period of time lost by the Contractor after the expiration of said thirty (30) calendar day period.

1.10.2 Interruptions of Utilities

a. No utility services shall be interrupted by the Contractor to make connections, to relocate, or for any purpose without approval of the Contracting Officer.

b. Request for Permission to shut down services shall be submitted in writing to the Contracting Officer not less than seventeen (17) working days before date of proposed interruption. The request shall give the following information:

(1) Nature of Utility. (Gas, L.P. or H.P., Water, etc.)
(2) Size of line and location of shutoff.
(3) Buildings and services affected.
(4) Hours and date of shutoff.
(5) Estimated length of time services will be interrupted.

c. Services shall not be shut off until receipt of approval of the proposed hours and date from the Contracting Officer.

d. Shutoffs which will cause interruption of Government work operations as determined by the Contracting Officer shall be accomplished during regular non-work hours or on non-work days of the Using Agency without any additional cost to the Government.

e. Operation of valves on water mains will be by persons of that utility. Where shutoff of water lines interrupts service to fire hydrants or fire sprinkler systems, the Contractor shall arrange his

operations and have sufficient material and personnel available to complete the work without undue delay or to restore service without delay in event of emergency.

f. Flow in gas mains which have been shut off shall not be restored until the Government inspector has determined that all items serviced by the gas line have been shut off.

1.11 NOT USED

1.12 PERFORMANCE OF WORK BY THE CONTRACTOR

a. For Full and Open Procurement The requirements found in Section 00 70 00, clause 52.236-1 "Performance of Work By the Contractor" apply, unless the awardee is a certified HUBZone small business concern, in which case the requirements found in Section 00 70 00, clause 52.219-4 "Notice of Price Evaluation Preference for HUBZone Small Business Concerns" shall apply.

b. For purposes of Section 00 70 00, clause 52.236-1, only, "WORK BY THE CONTRACTOR" is defined as prime Contractor direct contract labor (including testing and layout personnel), exclusive of other general condition or field overhead personnel, material, equipment, or subcontractors. The "TOTAL AMOUNT OF WORK" is defined as total direct contract labor (including testing and layout personnel), exclusive of other general condition or field overhead personnel, material, or equipment.

c. Within seven calendar days after the award of any subcontract at any tier, either by himself or a subcontractor, the Contractor shall submit to the Contracting Officer a completed Standard Form SF1413 Statement and Acknowledgement (available at the GSA Forms Library, https://www.gsa.gov/reference/forms#). The form shall include the subcontractor's acknowledgement of the inclusion in his subcontract of the clauses in Section 00 70 00 of this contract entitled 52.222-4 "Contract Work Hours and Safety Standards - Overtime Compensation"; 52.222-8 "Payrolls and Basic Records"; 52.222-7 "Withholding of Funds"; 52.222-14 "Disputes Concerning Labor Standards"; 52.222-13 "Compliance with Construction Wage Rate Requirements and Related Regulations"; 52.222-6 "Construction Wage Rate Requirements" (formerly named "Davis-Bacon Act"); 52.222-9 "Apprentices and Trainees"; 52.222-10 "Compliance with Copeland Act Requirements"; 52.222-11 "Subcontracts (Labor Standards); 52.222-12 "Contract Termination - Debarment"; 52.222-15 "Certification of Eligibility". Nothing contained in this contract shall create any contractual relation between any subcontractor and the Government.

d. Veterans Employment Emphasis for U.S. Army Corps of Engineers Contracts

In addition to complying with the requirements outlined in Subpart 22.13, provision 52.222-38, clause 52.222-35, clause 52.222-37, DFARS Subpart 222.13 and United States Department of Labor regulations, U.S. Army Corps of Engineers (USACE) contractors and subcontractors at all tiers are encouraged to promote the training and employment of U.S. veterans while performing under a USACE contract. While no set-aside, evaluation preference, or incentive applies to the solicitation or performance under the resultant contract, USACE contractors are encouraged to seek out highly qualified veterans to perform services under this contract. The following resources are available to assist USACE contractors in their outreach efforts:

(1) U.S. Department of Labor Veterans' Employment and Training Service (VETS): https://www.dol.gov/vets/

(2) Federal veteran employment information: https://www.fedshirevets.gov/

(3) Veterans Opportunity to Work (VOW) Program: https://benefits.va.gov/vow/

(4) U.S. Army Warrior Transition Command Employment Index: http://wct.army.mil/modules/employers/index.html

(5) Hiring Our Heroes: https://www.uschamberfoundation.org/hiring-our-heroes

1.13 SUPERINTENDENCE OF SUBCONTRACTORS

a. The Contractor shall be required to furnish the following, in addition to the superintendence required by clause 52.236-6 - "Superintendence By The Contractor" in Section 00 70 00.

(1) If more than 50 percent and less than 70 percent of the value of the contract work is subcontracted, one superintendent shall be provided at the site and on the Contractor's payroll to be responsible for coordinating, directing, inspecting and expediting the subcontract work.

(2) If 70 percent or more of the value of the work is subcontracted, the Contractor shall be required to furnish two such superintendents to be responsible for coordinating, directing, inspecting and expediting the subcontract work.

b. If the Contracting Officer, at any time after 50 percent of the subcontracted work has been completed, finds that satisfactory progress is being made, he may waive all or part of the above requirements for additional superintendence subject to the right of the Contracting Officer to reinstate such requirement if at any time during the progress of the remaining work he finds that satisfactory progress is not being made.

1.14 IDENTIFICATION OF EMPLOYEES.

a. The Contractor shall be responsible for furnishing an identification badge/card to each employee prior to the employees work on-site, and for requiring each employee engaged on the work to display identification as may be approved and directed by the Contracting Officer. All prescribed identification shall immediately be delivered to the Contracting Officer for cancellation upon release of the employee.

b. The Contractor is required to provide a Local Agency Check for each individual that will be working on this contract.

1.15 NO ASBESTOS - CONTAINING MATERIAL (ACM) CERTIFICATION

1.15.1 Design Phase

Before final payment of the project design fee, the designer of record (DOR) will submit to the Government, on their firm's letterhead, a signed, dated copy of the following statement:

I hereby certify that no asbestos-containing material (ACM) was specified as a building material in any construction document for this project. Furthermore, I certify that no product containing mineral fibers was specified as a building material in any construction document for this project unless I either:

(1) Submit a certification for each individual product to be installed and identified to contain mineral fibers that the product does not contain asbestos.

(2) Submit documentation to show that any products containing mineral fiber materials have been microscopically examined by an AIHA- or NVLAP-certified laboratory and the lab has determined that the material does not contain asbestos.

1.15.2 Construction Phase

Before final payment to the contractor, the contractor's project engineer/manager will sign and submit to the Government, on the contracting firm's letterhead, a dated copy of the following statement:

I hereby certify that to the best of my knowledge no asbestos-containing material (ACM) was used as a building material during this project. Furthermore, I understand that the building owner presumes that all materials marked "May Contain mineral fibers" are considered asbestos unless I either:

(1) Submit a certification for each individual product installed and identified to contain mineral fibers that no asbestos-containing materials were installed.

(2) Submit documentation to show that the products containing mineral fiber materials have been microscopically examined by an AIHA- or NVLAP-certified laboratory and the lab has determined that the material does not contain asbestos.

1.16 WARRANTY OF CONSTRUCTION

a. In addition to the requirements found in clause 52.246-21 "WARRANTY OF CONSTRUCTION" in Section 00 70 00 the following shall be included:

(1) This warranty shall continue for a period of 1 year from the date of final acceptance of the work. If the Government takes possession of any part of the work before final acceptance, this warranty shall continue for a period of 1 year from the date the Government takes possession.

As a part of the nine month warranty inspection, the Contractor shall conduct an infrared roof survey on any project involving a membrane roofing system. This survey will be conducted in accordance with ASTM C1153, "Standard Practice for Location of Wet Insulation in Roofing Systems Using Infrared Imaging". The Contractor shall be required to replace all damaged materials and to locate and repair sources of moisture penetration.

(2) Provide names, addresses, and telephone numbers of all subcontractors, equipment suppliers, or manufacturers with specific designation of their area of responsibilities if they are to be

contacted directly on warranty corrections.

b. Warranty Management

(1) Warranty Management Plan

The Contractor shall develop a warranty management plan which shall contain information relevant to the clause "Warranty of Construction" in clause 52.246-21 in Section 00 70 00. At least thirty (30) calendar days before the planned pre-warranty conference, the Contractor shall submit the warranty management plan for Government approval. The warranty management plan shall include all required actions and documents to assure that the Government receives all warranties to which it is entitled. The plan shall be in narrative form and contain sufficient detail to render it suitable for use by future maintenance and repair personnel, whether tradesmen, or of engineering background, not necessarily familiar with this contract. The term "status" as indicated below shall include due date and whether item has been submitted or was accomplished. Warranty information made available during the construction phase shall be submitted to the Contracting Officer for approval prior to each monthly pay estimate. Approved information shall be assembled in a binder and shall be turned over to the Government upon acceptance of the work. The construction warranty period shall begin on the date of project acceptance and shall continue for the full product warranty period. A joint 4 month and 9 month warranty inspection shall be conducted, measured from time of acceptance, by the Contractor, Contracting Officer and the Customer Representative. Information contained in the warranty management plan shall include, but shall not be limited to, the following:

(a) Roles and responsibilities of all personnel associated with the warranty process, including points of contact and telephone numbers within the organizations of the Contractors, subcontractors, manufacturers or suppliers involved.

(b) Listing and status of delivery of all Certificates of Warranty for extended warranty items, to include roofs, HVAC balancing, pumps, motors, transformers, and for all commissioned systems such as fire protection and alarm systems, sprinkler systems, lightning protection systems, etc.

(c) A list for each warranted equipment, item, and feature of construction or system indicating:

1. Name of item.

2. Model and serial numbers.

3. Location where installed.

4. Name and phone numbers of manufacturers or suppliers.

5. Names, addresses and telephone numbers of sources of spare parts.

6. Warranties and terms of warranty. This shall include one-year overall warranty of construction. Items which have extended warranties shall be indicated with separate

warranty expiration dates.

7. Cross-reference to warranty certificates as applicable.

8. Starting point and duration of warranty period.

9. Summary of maintenance procedures required to continue the warranty in force.

10. Cross-reference to specific pertinent Operation and Maintenance manuals.

11. Organization, names and phone numbers of persons to call for warranty service.

12. Typical response time and repair time expected for various warranted equipment.

(d) The Contractor's plans for attendance at the 4 and 9 month post-construction warranty inspections conducted by the Government.

(e) Procedure and status of tagging of all equipment covered by extended warranties.

(f) Copies of instructions to be posted near selected pieces of equipment where operation is critical for warranty and/or safety reasons.

c. Performance Bond

(1) The Contractor's Performance Bond will remain effective throughout the construction warranty period and warranty extensions.

(2) In the event the Contractor or his designated representative(s) fails to commence and diligently pursue any work required, and in a manner pursuant to the requirements thereof, the Contracting Officer shall have a right to demand that said work be performed under the Performance Bond by making written notice on the surety. If the surety fails or refuses to perform the obligation it assumed under the Performance Bond, the Contracting Officer shall have the work performed by others, and after completion of the work, may make demand for reimbursement of any or all expenses incurred by the Government while performing the work, including, but not limited to administrative expenses.

(3) In the event sufficient funds are not available to cover the construction warranty work performed by the Government at the Contractor's expense, the Contracting Officer will have the right to recoup expenses from the bonding company.

(4) Following oral or written notification of required warranty repair work, the Contractor will respond as dictated by para. 1.16e "Contractor's Response to Warranty Service Requirements". Written verification will follow oral instructions. Failure of the Contractor to respond will be cause for the Contracting Officer to proceed against the Contractor as outlined in the paragraph 1.16c(2) and/or (3)"Performance Bond" .(2)and/or (3) above.

d. Pre-Warranty Conference

Prior to contract completion and at a time designated by the Contracting Officer, the Contractor shall meet with the Contracting Officer to develop a mutual understanding with respect to the requirements of this clause. Communication procedures for Contractor notification of warranty defects, priorities with respect to the type of defect, reasonable time required for Contractor response, and other details deemed necessary by the Contracting Officer for the execution of the construction warranty shall be established/reviewed at this meeting. In connection with these requirements and at the time of the Contractor's quality control completion inspection, the Contractor will furnish the name, telephone number and address of a licensed and bonded company which is authorized to initiate and pursue warranty work action on behalf of the Contractor. This point of contact will be located within the local service area of the warranted construction, will be continuously available, and will be responsive to Government inquiry on warranty work action and status. This requirement does not relieve the Contractor of any of his responsibilities in connection with other portions of this provision.

e. Contractor's Response to Warranty Service Requirements.

Following oral or written notification by the Contracting Officer or an authorized representative of the installation designated in writing by the Contracting Officer, the Contractor shall respond to warranty service requirements in accordance with the "Warranty Service Priority List" and the three categories of priorities listed below. The Contractor shall submit a report on any warranty item that has been repaired during the warranty period. The report shall include the cause of the problem, date reported, corrective action taken, and when the repair was completed. If the Contractor does not perform the construction warranty within the timeframe specified, the Government will perform the work and backcharge the construction warranty payment item established.

(1) First Priority Code 1 Perform on-site inspection to evaluate situation, determine course of action, initiate work within 24 hours and work continuously to completion or relief.

(2) Second Priority Code 2 Perform on-site inspection to evaluate situation, determine course of action, initiate work within 48 hours and work continuously to completion or relief.

(3) Third Priority Code 3 All other work to be initiated within (5) five work days and work continuously to completion or relief.

(4) The "Warranty Service Priority List" is as follows:

Code 1 Air Conditioning System
- a. Army Reserve Projects, Training Bldg. & OMS Administrative Areas of Bldg.

Code 2 Air Conditioning Systems
- a. Air conditioning leak in part of building, if causing damage.
- b. Air conditioning system not cooling properly
- c. Admin buildings with ADP equipment not on priority list.

Code 1 Doors
- a. Overhead doors not operational.

Repair MRAR Building 56767 (ECS)
North Cavazos, TX
P2 #515198

Code 1 Electrical
a. Power failure (entire area or any building operational after 1600 hours).
b. Security lights
c. Smoke detectors and fire alarm systems

Code 2 Electrical
a. Power failure (no power to a room or part of building).
b. Receptacle and lights.

Code 3 Electrical
a. Street, parking area lights

Code 1 Heat
a. Army Reserve Projects, Training Bldg & OMS Administrative Areas of Bldg.
b. Area power failure affecting heat.

Code 3 Interior
a. Floor damage
b. Paint chipping or peeling

Code 2 Intrusion Detection Systems
Systems other than those listed under Code 1.

Code 2 Plumbing
a. Flush valves not operating properly
b. Fixture drain, supply line commode, or water pipe leaking.
c. Commode leaking at base.

Code 3 Plumbing
a. Leaking faucets

Code 1 Refrigeration
a. Cold Storage.

Code 1 Roof Leaks
Temporary repairs will be made where major damage to property is occurring.

Code 2 Roof Leaks
Where major damage to property is not occurring, check for location of leak during rain and complete repairs on a Code 2 basis.

Code 1 Sprinkler System
All sprinkler systems, valves, manholes, deluge systems, and air systems to sprinklers.

Code 1 Water (Exterior)
Normal operation of water pump station.

Code 2 Water (Exterior)
No water to facility.

Code 1 Water, Hot (and Steam)
a. Army Reserve Projects, Training Bldg & OMS Bldg.

Code 2 Water, Hot
No hot water in portion of building listed under Code 1

(5) Should parts be required to complete the work and the parts are not immediately available, the Contractor shall have a maximum of 12 hours after arrival at the job site to provide the Contracting Officer or an authorized representative of the installation designated in writing by the Contracting Officer, with firm written proposals for emergency alternatives and temporary repairs for Government participation with the Contractor to provide emergency relief until the required parts are available on site for the Contractor to perform permanent warranty repair. The Contractors proposals shall include a firm date and time that the required parts shall be available on site to complete the permanent warranty repair. The Contracting Officer or an authorized representative of the installation designated in writing by the Contracting Officer, will evaluate the proposed alternatives and negotiate the alternative considered to be in the best interest of the Government to reduce the impact of the emergency condition. Alternatives considered by the Contracting Officer or an authorized representative of the installation designated in writing by the Contracting Officer will include the alternative for the Contractor to "Do Nothing" while waiting until the required parts are available to perform permanent warranty repair. Negotiating a proposal which will require Government participation and the expenditure of Government funds shall constitute a separate procurement action by the using service.

f. Equipment Warranty Identification Tags

(1) The Contractor at the time of installation shall provide warranty identification tags on all Contractor and Government furnished equipment which he has installed.

(a) The tags shall be suitable for interior and exterior locations, resistant to solvents, abrasion, and to fading caused by sunlight, precipitation, etc. These tags shall have a permanent pressure-sensitive adhesive back, and they shall be installed in a position that is easily (or most easily) noticeable. Contractor furnished equipment that has differing warranties on its components will have each component tagged.

(b) Sample tags shall be submitted for Government review and approval. These tags shall be filled out representative of how the Contractor will complete all other tags.

(c) Tags for Warrantied Equipment: The tag for this equipment shall be similar to the following. Exact format and size will be as approved.

EQUIPMENT WARRANTY **CONTRACTOR FURNISHED EQUIPMENT**	
MFG NAME	MODEL NO.
SERIAL NO.	
CONTRACT NO.	

EQUIPMENT WARRANTY CONTRACTOR FURNISHED EQUIPMENT	
MFG NAME	MODEL NO.
CONTRACTOR NAME	
CONTRACTOR WARRANTY EXPIRES	
MFG WARRANTY(IES) EXPIRE	

EQUIPMENT WARRANTY GOVERNMENT FURNISHED EQUIPMENT	
MFG NAME	MODEL NO.
SERIAL NO.	
CONTRACT NO.	
CONTRACTOR NAME	
CONTRACTOR WARRANTY EXPIRES	
MFG WARRANTY(IES) EXPIRE	

(d) If the manufacturer's name (MFG), model number and serial number are on the manufacturer's equipment data plate and this data plate is easily found and fully legible, this information need not be duplicated on the equipment warranty tag. The Contractor warranty expires (warranty expiration date) and the final manufacturer's warranty expiration date will be determined as specified by clause 52.246-21 "WARRANTY OF CONSTRUCTION" in Section 00 70 00.

(2) Execution. The Contractor will complete the required information on each tag and install these tags on the equipment by the time of and as a condition of final acceptance of the equipment.

(3) Payment. The work outlined above is a subsidiary portion of the contract work, and has a value to the Government approximating 5% of the value of the Contractor furnished equipment. The Contractor will assign a value of that amount in the breakdown for progress payments mentioned in the clause 52.232-5 "Payments Under Fixed-Price Construction Contracts" in Section 00 70 00.

(4) Equipment Warranty Tag Replacement. The Contractor's warranty with respect to work repaired or replaced shall run for one year from the date of repair or replacement. Such activity shall include an updated warranty identification tag on the repaired or replaced equipment. The tag shall be furnished and installed by the Contractor, and shall be identical to the original tag, except that the Contractor's warranty expiration date will be one year from the date of acceptance of the repair or replacement.

1.17 NOT USED

1.18 NOT USED

1.19 PROJECT SIGN

a. General. The Contractor shall furnish and erect at the location directed one project sign. The sign shall be lettered on one side only and shall conform to the details shown as an attachment at the end of this specification section.

Project nomenclature shall be: MRAR Building 56767 (ECS)

Architect-Engineer name shall be: TBD

Sponsor name shall be: Army Reserve 63rd RD

b. Materials.

Sign Panels can be constructed using either of the materials below:

(1) The sign panels shall be constructed of good sound materials suitable for the purpose. Lumber shall be salt treated softwood of No. 2 grade or better. Sizes shown are nominal. Plywood shall be 1/2-inch, B-B, marine grade and with dimensional lumber uprights and bracing. Screws shall be of commercial quality and of sizes shown.

(2) The sign Panels shall be fabricated using premium, furniture-grade exterior plywood laminated on both sides with factory-baked polyester painted aluminum surfaces and with dimensional lumber uprights and bracing. Screws shall be commercial quality and of the sizes shown.

c. Maintenance. The signs shall be maintained in good condition until completion of the contract, shall remain the property of the Contractor, and shall be removed from the site upon completion of work under the contract.

d. Logos. The Corps of Engineers and the Army Star Logo must be provided in the sizes and styles as specified by the graphic formats shown in the attachment at the end of this section.

e. Painting. The sign and posts shall be given one prime coat and two finish coats of gloss exterior-type enamel paint, either as specified in the Base Architectural Compatibility Guide or as approved by the COR.

Paint colors shall be as follow:

Black - Federal Standard 595a Color Number 27038
White - Federal Standard 595a Color Number 27875
Red - PANTONE 032

f. Payment. No separate payment will be made for furnishing and erecting the project sign(s) as specified and costs thereof shall be considered a subsidiary obligation of the Contractor.

1.20 TIME EXTENSIONS FOR UNUSUALLY SEVERE WEATHER

This provision specifies the procedure for the determination of time extensions for unusually severe weather in accordance with the clause

52.249-10 "Default (Fixed-Price Construction)" in Section 00 70 00. In order for the Contracting Officer to award a time extension under this clause, the following conditions must be satisfied:

The weather experienced at the project site during the contract period must be found to be unusually severe, that is, more severe than the adverse weather anticipated for the project location during any given month.

Indicate the location of the National Weather Service office closest to the site. See: https://www.weather.gov/srh/nwsoffices The Contractor shall make his own investigations and determinations as to weather conditions at the site. Data may be obtained from various National Weather Service offices located generally at airports of principal cities, the nearest to this project being: Fort Worth/Dallas.

The unusually severe weather must actually cause a delay to the completion of the project. The delay must be beyond the control and without the fault or negligence of the Contractor.

The following schedule of monthly anticipated adverse weather delays is based on National Oceanic and Atmospheric Administration (NOAA) or similar data for the project location and will constitute the base line for monthly weather time evaluations. The Contractor's progress schedule must reflect these anticipated adverse weather delays in weather dependent activities.

MONTHLY ANTICIPATED ADVERSE WEATHER DELAY
WORK DAYS BASED ON FIVE (5) DAY WORK WEEK

JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
2	2	3	2	3	2	3	1	4	2	1	2

Upon acknowledgment of the Notice to Proceed (NTP) and continuing throughout the contract, the Contractor will record on the daily CQC report, the occurrence of adverse weather and resultant impact to normally scheduled work. Actual adverse weather delay days must prevent work on critical activities for 50 percent or more of the Contractor's scheduled work day. The number of actual adverse weather delay days shall include days impacted by actual adverse weather (even if adverse weather occurred in previous month), be calculated chronologically from the first to the last day of each month, and be recorded as full days. If the number of actual adverse weather delay days exceeds the number of days anticipated listed above, the Contracting Officer will convert any qualifying delays to calendar days, giving full consideration for equivalent fair weather work days, and issue a modification in accordance with the clause 52.249-10
"Default (Fixed-Price Construction)" in Section 00 70 00.

1.21 INTERFERENCE WITH TRAFFIC AND PUBLIC AND PRIVATE PROPERTY

a. The Contractor at all times shall dispose his plant and conduct the work in such manner as to cause as little interference as possible with private and public travel. Damage (other than that resulting from normal wear and tear) to roads, shall be repaired to as good a condition as they were prior to the beginning of work and to the satisfaction of the Contracting Officer.

b. The Contractor shall provide and maintain as may be required by the State of Texas, Department of Transportation. Contractor shall provide proper barricades, fences, danger signals and lights, provide a sufficient number of watchmen, and take such other precautions as may be necessary to protect life, property and structures, and shall be responsible for all damages to persons or property that occur as a result of the Contractor's fault or negligence in accordance with clause 52.236-7 Permits and Responsibilities, in Section 00 70 00.

1.22 NOT USED

1.23 GOVERNMENT FIELD OFFICE FACILITIES AND SERVICES.

a. General. The Government field office facilities will be located as indicated and specified in the technical portions of these specifications or as directed by and coordinated with the Contracting Officer. Electrical, fuel, water and sewage disposal facilities shall be provided as specified in the technical portions of these specifications and shall be maintained by the Contractor for the duration of the contract. All electricity and fuel oil required for operation of the field office facilities shall be furnished by the Contractor for the duration of the contract. The buildings and facilities will not be left in place upon completion of the contract. At contract completion, the Contractor's trailer shall be removed from the site and all utilities removed. The site shall be regraded to pre-construction conditions acceptable to the Contracting Officer. The entire site shall be seeded.

b. Utility Services. Unless the GOV is providing utilities free for the Contractor's use in accordance with Paragraph "Availability of Utilities", above, the Contractor shall arrange for and pay all costs for water, electricity, natural gas, liquefied petroleum or fuel oil, and other utilities as necessary for the field office and continuing through the end of the one year warranty period. The existing equipment shall be cleaned and then serviced a minimum of biweekly.

c. Payment. No separate payment will be made for any of these Contractor-furnished services described under this paragraph, and all costs therewith shall be included in other items authorized for payment.

1.24 COMPLIANCE WITH POST/BASE REGULATIONS

a. The site of the work is on a military reservation and all rules and regulations issued by the Commanding Officer covering general safety, security, sanitary requirements, pollution control and traffic regulations, shall be observed by the Contractor. Information regarding these requirements may be obtained by contacting the Contracting Officer, who will provide such information or assist in obtaining same from appropriate authorities.

b. Contractor personnel shall park only in areas authorized by the Contracting Officer.

1.25 AUTHORIZED WORK DAYS AND HOURS

a. The standard workweek shall be Monday through Friday 0700-1600.

b. Contractor may request days and hours outside of the Standard Work Week when necessary to perform particular task or to maintain or recover

schedule. Request are to be made 15 days in advance to the COR and User and not less than that required for schedule Coordination.

c. No work shall occur on federal holidays.

d. Authorized days and hours described above pertain to work inside the existing facilities and/or inside the secure construction laydown areas. Work outside secure areas may be scheduled as needed, subject to advance approval from the Contracting Officer's Representative and confirmation of availability of necessary services.

1.26 COST PRINCIPLES AND PROCEDURES FOR MODIFICATION

Cost principles and procedures for any modifications processed under this contract will follow all applicable contract clauses, laws, regulations, policies, and guidance. See, for example: FAR Part 31, FAR Part 15, FAR 52.215-21, DFARS 252.215-7002, DFARS 252.231-7000, and EP 1110-1-8, Construction Equipment Ownership and Operating Expense Schedule (region dependent on project location), available at https://publications.usace.army.mil.

1.27 ENGLISH-SPEAKING REPRESENTATIVE

At all times when any performance of the work at any site is being conducted by any employee of the Contractor or his subcontractors, the Contractor shall have a representative present at each site who has the capability of receiving instructions in the English language, fluently speaking the English language and explaining the work operations to persons performing the work, in the language that those performing the work are capable of understanding. The Contracting Officer shall have the right to determine whether the proposed representative has sufficient technical bilingual capabilities, and the Contractor shall immediately replace any individual not acceptable to the Contracting Officer.

1.28 SALES and USE TAX

Some states have tax exemptions for certain aspects of work when done for the federal government and the Contractor shall check with the state where the project is located for more information. If a sales tax exemption is applicable, the contractor is responsible for obtaining any required exemption certification.

1.29 CONTRACTOR SECURITY TRAINING/FACILITY ACCESS REQUIREMENTS

General security requirements and guidance: The security requirements described below apply to all contract personnel (including employees of the prime Contractor ("Contractor") and all subcontractor employees) supporting the performance requirements of this contract. The Contractor is responsible for compliance with these security requirements. Questions regarding security matters shall be addressed to the designated Government representative (e.g., Contracting Officer Representative (COR), Requiring Activity (RA) representative, or Contracting Officer (if a COR or other RA representative is not appointed)). Contract personnel are critical to the overall security and safety of US Army Corps of Engineers (USACE) installations, facilities and activities, and security awareness training contributes to those efforts. The Department of Defense (DoD) and Army security training requirements specified below, if applicable, are performance requirements; all applicable contract personnel shall complete initial training within 30 days of contract award or the date new contract

personnel begin performance on the contract. Within five business days from the completion of training, the Contractor shall provide written documentation (e.g., email or memorandum) to the Government representative. The documentation shall include the names of contract personnel trained and which training they completed; the Contractor shall maintain training records as part of their contract files and be prepared to provide copies of training certificates to the Government representative. Contractor personnel and vehicles are subject to search when entering federal installations. Additionally, all contract personnel shall comply with Force Protection Condition (FPCON) measures, Random Antiterrorism Measures (commonly referred to as "RAMs"), and Health Protection Condition (HPCON) measures. The Contractor is responsible for meeting performance requirements during elevated FPCON and/or HPCON levels in accordance with applicable RA plans and procedures --this includes identifying mission essential and non-mission essential personnel. In addition to the changes otherwise authorized by the changes clause of this contract, should the FPCON or HPCON levels at any individual facility or installation change, the Government may implement security changes that affect contract personnel. The Contractor shall ensure all contract personnel are aware of their security responsibilities, including any site-specific requirements identified in local policies or procedures.

1.29.1 AT Level I Training (General)

All contractor employees, including subcontractor employees, requiring access to Army installations, facilities, and controlled access areas shall complete AT Level I awareness training within 30 calendar days after contract start date or effective date of incorporation of this requirement into the contract, whichever is applicable. The contractor shall submit certificates of completion for each affected contractor employee and subcontractor employee to the COR or to the contracting officer, if a COR is not assigned, within 30 calendar days after completion of training by all employees and subcontractor personnel. AT Level I awareness training is available at the following website: http://jko.jten.mil. AT Level I training is an annual requirement if option years are exercised.

1.29.2 Access and General Protection/Security Policy and Procedures

Contractor and all associated subcontractor employees shall provide all information required for background checks to meet installation access requirements to be accomplished by the installation Provost Marshal Office, Director of Emergency Services, or Security Office. Contractor workforce must comply with all personal identity verification requirements (CFR clause 52.204-9, Personal Identity Verification of Contract Personnel) as directed by DoD, HQDA and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in contractor security matters or processes.

a. Contractors Requiring a Common Access Card (CAC)

    1. N/A

b. Contractors that do not Require CAC, but Require Access to a DoD Facility or Installation: Contractor and all associated subcontractor employees shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (Army Directive

2014-05/AR 190-13); applicable installation, facility and area commander installation and facility access and local security policies and procedures (provided by Government representative); or, at OCONUS locations, in accordance with status-of-forces agreements and other theater regulations.

1.29.3 AT Awareness Training for Contractor Personnel Traveling Overseas

N/A

1.29.4 iWATCH Training

The contractor and all associated subcontractors shall brief all employees on the local iWATCH Army program (training standards provided by the requiring activity ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training shall be completed within 30 calendar days of contract award and within 30 calendar days of new employees commencing performance, with the results reported to the COR NLT 30 calendar days after contract award.

1.29.5 Army Training Certification Tracking System (ATCTS) Registration for Contractor Employees who Require Access to Government Information Systems

N/A

1.29.6 OPSEC Standing Operating Procedure/Plan

Per AR 530-1, Operations Security, the contractor employees must complete Level I OPSEC Awareness training. New employees must be trained within 30 calendar days of their reporting for duty and annually thereafter.

1.29.7 Operations Security (OPSEC) Training

In accordance with AR 530-1 all personnel, to include contractor employees and associated sub-contractor employees must complete Level I Operations Security (OPSEC) training which is composed of both initial and continual awareness training (annually). All personnel within the first 30 days of arrival in the organization must receive initial training to include a briefing on the organizations critical information read/sign the OPSEC Individual User Compliance Agreement form. The end state of initial and continual awareness training is that each individual should have the requisite knowledge to safeguard critical information.

1.29.8 Information Assurance (IA)/Information Technology (IT) Training

N/A

1.29.9 Information Assurance (IA)/Information Technology (IT) Certification

N/A

1.29.10 Contractors Authorized to Accompany the Force

N/A

1.29.11 Performance or Delivery in a Foreign Country

N/A

1.29.12 Handling or Access to Classified Information

a. Cont. "secure telecommunications" at contractor facilities (IAW DFAR 239.7401)

1. N/A

b. Cont. "covered system" support (IAW DFARS 239.7301)

1. N/A

1.29.13 Controlled Unclassified Information (CUI)

In accordance with DFARS 204.7302, Contractors and subcontractors are required to provide adequate security on all covered contractor information systems.

Contractors are required to implement National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171 by inclusion of clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber incident Reporting, are required at time of award to have at least a Basic NIST SP 800-171 DoD Assessment that is current (i.e., not more than 3 years old unless a lesser time is specified in the solicitation).

SPRS provides storage and access to the NIST SP 800-171 assessment scoring information. To access the NIST SP 800-171 Assessments module, users must be registered in the Procurement Integrated Enterprise Environment (PIEE) https://piee.eb.mil/ and be approved for access to Supplier Performance Risk System (SPRS).

The NIST SP 800-171 DoD Assessment Methodology is located at: https://www.acq.osd.mil/asda/dpc/cp/cyber/safeguarding.html#nistSP800171.

Vendor Help and Training Tutorials are available at https://www.sprs.csd.disa.mil/nistsp.htm.

1.29.14 Threat Awareness Reporting Program (TARP)

N/A

1.29.15 Attendance and Participation

The contractor shall adhere and conform to all safety, security and attendance requirements that apply to the supported office. The contractor is required to attend and participate in all organizational meetings, training, and emergency preparedness events and is required to vacate the Government office work site when no sufficient Government oversight is available.

1.30 INSURANCE--WORK ON A GOVERNMENT INSTALLATION

In addition to the requirements of clause 52.228-5 "Insurance - Work on a Government Installation" found in Section 00 70 00 the following shall be provided:

a. Coverage complying with State laws governing insurance requirements, such as those requirements pertaining to Workman's Compensation and Occupational Disease Insurance. Employer's Liability Insurance shall

be furnished in limits of not less than $100,000.00 except in states with exclusive or monopolistic funds.

b. Comprehensive Automobile Liability Insurance for both bodily injury and property damage, shall be furnished in limits of not less than $200,000.00 per person, $500,000.00 per accident for bodily injury, and $20,000.00 per accident for property damage. When the Financial Responsibility or Compulsory Insurance Law of the State, requires higher limits, the policy shall provide for coverage of at least those higher limits.

c. Within seven calendar days after the award of contract, the Contractor shall submit to the Contracting Officer Evidence of Insurance for all insurance coverages. Dates of coverage shall be entered into RMS and maintained thru the contract duration. If and when new insurance is obtained because of expiration or renewal, new certificates shall be submitted to the Contracting Officer within seven days of obtainment and the new coverage information and dates entered into RMS.

1.31 AVAILABILITY OF SAFETY AND HEALTH REQUIREMENTS MANUAL (EM 385-1-1)

As covered by clause 52.236-13 "Accident Prevention" in Section 00 70 00, compliance with EM 385-1-1 is a requirement for this contract. Copies may be downloaded from the following website: https://www.publications.usace.army.mil/USACE-Publications/Engineer-Manuals/

1.32 NOT USED

1.33 CONSTRUCTION HAZARD COMMUNICATION

The Contractor is required to comply with the requirements of the OSHA Hazard Communication Standard in alignment with the Globally Harmonized System (GHS) (29 CFR 1926.59). This standard is designed to inform workers of safe and appropriate methods of working with hazardous substances in the workplace. The standard has five requirements, and every hazardous or potentially hazardous substance used or stored in the work area is subject to all five. They are:

(1) Hazard Classification. Any company which produces or imports a chemical or compound must conduct a hazard classification of the substance to determine its potential health or physical hazard. The hazard evaluation consists of an investigation of all the available scientific evidence about the substance. The Contractor is required to assure that all producers (manufacturer/distributors) have performed these classifications and transmit the required information with any hazardous materials being used or stored on the project site. From the hazard classification, a substance may be classified as a health hazard or a physical hazard. These classifications are then further broken down into hazard categories according to the severity of the effect:

Health Hazards	**Physical Hazards**
Carcinogens	Combustible liquids
Irritants	Compressed gases
Sensitizers	Explosives

Health Hazards	**Physical Hazards**
Corrosives	Flammables
Toxic substances	Organic peroxides
Highly toxic substances	Unstable substances
Substances harmful to specific organs or parts of the body	Water-reactive substances

(2) Warning Labels. If a chemical is hazardous or potentially hazardous, the producer or importer must affix a label to every container of that chemical before it leaves his facility. The Contractor must assure these labels are attached and legible. The label must identify the hazard symbol/pictograms, signal words, hazard statements, product name or identifier (identify hazardous ingredients, where appropriate), precautionary statements and pictograms, supplier identification, and supplemental information. If the hazardous substance is transferred to another container, that container must then be labeled, tagged, or marked with the name of the chemical and the appropriate hazard warning. Warning labels shall be replaced immediately if they are defaced or removed.

(3) Safety Data Sheets. The producer or importer must also supply a safety data sheet (SDS) that follows the 16 heading format as defined by GHS. The Contractor must keep these available in the work area where the substance is used, so that the people using the substance can easily review important safety and health information, such as:

(i) Emergency procedures for leaks, spills, fire and first aid.

(ii) Precautions necessary for use, handling, and storage.

(iii) Useful facts about the substance's physical or chemical properties.

(iv) Regulatory information and any other pertinent information including information on preparation and revision of the SDS.

(4) Work Area Specific Training. Because of hazardous substance may react differently depending on how it is used or the environment of the work area, the Contractor must conduct work area specific training; special training which takes the Contractor's operations, environment, and work policies into consideration. Work area training presents:

The hazardous substances which are present in the work place and the hazards they pose.

Ways to protect against those hazards, such as protective equipment, emergency procedures, and safe handling.

Where the SDS's are kept, and an explanation of the labeling system.

Where the Contractor's written Hazard Communication Program is located.

(5) The Written Hazard Communication Program. In accordance with OSHA and the EM 385-1-1 requirements, the Contractor must prepare a written Hazard Communication Program. This document will be included in the Contractor's Accident Prevention Plan. This document states the hazardous or toxic agent inventory, how the Contractor plans to ensure that hazardous materials are appropriately labeled, how and where SDS's will be maintained, and how employees will be provided with specific information and training.

1.34 MECHANICAL/ELECTRICAL ROOM LAYOUT

Detailed mechanical/electrical room layout drawings shall be submitted for approval in accordance with Section 01 33 00 SUBMITTAL PROCEDURES. Layout drawings shall show location and maintenance clearances for all mechanical/electrical room equipment, and all utility runs/chases for mechanical, electrical, telephone and other similar systems. Drawings shall be submitted at the same time as the submittals for the equipment to be located within the mechanical/electrical room.

1.35 RED ZONE MEETING

Approximately sixty (60) calendar days prior to Contract Required Completion Date, the Contractor and the Government's project delivery team will conduct what is known as the Red Zone Meeting to discuss the close-out process, to schedule the events and review responsibilities for actions necessary to produce a timely physical, as well as fiscal, project close-out. The Red Zone meeting derives its name from the football term used to describe the team effort to move the ball the last 20 yards into the end zone. The close-out of a construction project sometimes can be equally as hard and most definitely requires the whole team's efforts.

1.36 PARTNERING

In order to most effectively accomplish this contract, the Government proposes to form a partnership with the Contractor to develop a cohesive building team. It is anticipated that this partnership would involve Project Delivery Team members from the Corps of Engineers, Program Sponsor, facility user representatives, the Contractor, primary subcontractors, and the designers. The partnership will draw upon the strength of each organization in an effort to achieve a project that is without any safety mishaps, conforms to the Contract, stays within budget and on schedule.

The Government encourages partnering to be initiated near the beginning of the Contract and endure through the life of the Contract. This partnership would be bilateral in membership and participation is mandatory.

1.37 PROGRESS PHOTOGRAPHS

Monthly digital photography shall be performed between the first and fifth of each month, delivered no later than the 10th of each month taken as described herein. A minimum of six views from different positions shall be taken as directed to show, inasmuch as possible, work accomplished during the previous month, and a minimum of six views shall be taken of the completed work. Additional views and positions may be required by the Contracting Officer to depict the work done.

Digital photographs shall be at least 4 megapixels and in JPEG format,

uploaded to RMS no later than 48 hours following obtainment of photography.

Digital photographs are required to be furnished to the COR. The Contractor shall furnish digital photographs on CD and hard copy depicting the progress of the work during construction and after final inspection by the Contracting Officer of the conditions at the completion of the contract.

Each CD and photograph shall be identified with the date made, contract title and number, location of work, as well as a brief description of work depicted.

No separate payment will be made for these services and all costs in connection thereto shall be considered a subsidiary obligation of the Contractor.

1.38 DAMAGE TO WORK

The responsibility for damage to any part of the permanent work shall be as set forth in clause 52.236-7 "Permits And Responsibilities" in Section 00 70 00. Except as herein provided, damage to all work (including temporary construction), utilities, materials, equipment and plant shall be repaired to the satisfaction of the Contracting Officer at the Contractor's expense, regardless of the cause of such damage.

1.39 NOT USED

1.40 NOT USED

1.41 NOT USED

1.42 SEQUENCE OF DESIGN/CONSTRUCTION

Fast Track Design Sequence:

a. The Contractor must submit for Government Acceptance a design Quality Control Plan in accordance with Section 01 45 04.10 06, CONTRACTOR QUALITY CONTROL, Paragraph Design Quality Control Plan, before design may proceed.

b. After receipt of Notice to Proceed (NTP), the Contractor shall initiate design, comply with all design submission requirements as covered under Division 01 General Requirements, and obtain Government review of each submission. The Contractor may begin construction on portions of the work for which the Government has reviewed the final design submission, all Government required revisions have been completed, revised documents have been resubmitted and are deemed satisfactory by the Government. The ACO or COR will notify the Contractor by letter when the design is cleared for construction. The Government will not grant any time extension for any design resubmittal required when, in the opinion of the ACO or COR, the initial submission failed to meet the minimum quality requirements as set forth in the Contract.

c. No payment will be made for any in-place construction until all required submittals have been made, reviewed and are satisfactory to the Government.

1.43 REGISTRATION OF DESIGNERS

In addition to the requirements found in clause 52.236-25 "Registration Of

Designers" in Section 00 70 00 the following shall be required:

Additional Requirements/Clarifications Designer Registration The design of architectural, structural, mechanical, electrical, civil, fire protection geotechnical, interior design, information technology, or other engineering features of the work shall be accomplished or reviewed and approved by designers registered/licensed to practice in the particular professional field involved in a State or possession of the United States, in Puerto Rico, or in the District of Columbia. Each final design submittal drawing and certified final drawings ready for construction shall be signed and sealed by the registered professional (Designer of Record) responsible for the design indicated on the particular sealed sheet.

1.44 DESIGN CONFERENCES

a. Pre-Work: As part of the Pre-work meeting conducted after contract award, key representatives of the Government and the Contractor will review the design submission and review procedures specified herein, discuss the preliminary design schedule and provisions for phase completion of the D/B documents with construction activities (fast tracking), as appropriate, meet with Corps of Engineers Design Review personnel and key Using Agency points of contact and any other appropriate pre-design discussion items.

b. Design Charette: After award of the contract, the Contractor shall visit the site and conduct extensive interviews, and problem solving discussions with the individual users, base personnel, Corps of Engineers personnel to acquire all necessary site information, review user operations, and discuss user needs. The Contractor shall document all discussions. The design shall be finalized as direct result of these meetings.

c. Design Review Conferences: Review conferences will be held on base for each design for each submittal. The Contractor shall bring the personnel that developed the design submittal to the review conference. The conferences will take place the week after the review is complete.

1.45 FINAL CLEANING

Clean the premises in accordance with clause 52.236-12 "Cleaning Up" in Section 00 70 00 and additional requirements state here. Remove stains, foreign substances, and temporary labels from surfaces. Vacuum carpet and soft surfaces. Clean equipment and fixtures to a sanitary condition. Clean or replace filters of operating equipment if cleaning is not possible or practicable. Remove debris from roofs, drainage systems, gutters, and downspouts. Sweep paved areas and rake clean landscaped areas. Remove waste, surplus materials, and rubbish from the site. Remove all temporary structures, barricades, project signs, fences and construction facilities. A list of completed clean-up items shall be submitted on the day of final inspection.

1.46 BASIS FOR SETTLEMENT OF PROPOSALS

See clause 31.105(d)(2)(i) for establishing the cost of construction equipment.

1.47 NOT USED

1.48 LABELS

Labels shall be provided for electrical outlets and light switches. Labels shall be provided for all Mechanical Piping, HVAC Equipment, Access Doors, and Miscellaneous HVAC Equipment. Label shall be coordinated with the COR.

PART 2 PRODUCTS NOT USED

PART 3 EXECUTION NOT USED

-- End of Section --

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Repair MRAR Building 56767 (ECS)
North Cavazos, TX
P2 #515198

PART 1

DESIGN OBJECTIVES, AND FUNCTIONAL AND AREA REQUIREMENTS

1.1 **SCOPE OF WORK.**

The objective of this solicitation is to obtain a facility in which the Using Units are able to effectively implement their Army Reserve support and training missions. These activities require sufficient space with up-to-date furnishings and equipment to support the Units' full-time and Army Reserve personnel. The facility will consist of 1 building repair and associated site improvements, complete and adequate for assignment as a Maintenance and Repair Army Reserve (MRAR) Building 56767 Equipment Concentration Site (ECS).

1.1.1 Requirements stated in this Request for Proposal (RFP) are minimums; design and construction shall meet or exceed the requirements. The design and technical criteria contained and cited in this RFP establish minimum standards for design and construction quality. This project has been determined to be a Best Value Trade-Off (BVTO) project: Innovative and creative solutions which meet or exceed these requirements are encouraged.

1.1.2 This project shall consist of the Repair and construction for alterations to the existing MRAR Building 56767, complete with required utilities, storm drainage, communications, electric, HVAC, fire protection/alarm systems, force protection measures, paving, walks, curbs, parking, exterior lighting, site improvements, grading, and landscaping as described in this RFP on Government-owned land at North Fort Cavazos, TX.

1.1.3 This project consists of interior and exterior repairs to the existing buildings and site improvements. Varying levels of repair or new work are described below and indicated in associated site plans, floor plans and Room by Room Supplemental Instructions. New finishes shall be provided throughout the facilities. The contractor shall renovate and construct the facilities according to the United States Army Reserve Design Guide - USAR Facilities and referenced guidance documents.

1.1.4 Replace ABA curb ramps at the POV parking lot and install additional step and concrete landing at warehouse exterior doors for ABA compliance.

1.1.5 Provide fire hydrant protection around the perimeter MEP lots with hydrants spaced at no greater than 300 feet maximum intervals.

1.1.6 Provide oil/water/sand separator.

1.1.7 Install low impact development stormwater measures.

1.1.8 Extend the building mass notification system to the MEP lots in accordance with Army Reserve standards.

1.1.9 Replace the existing roof and insulation system and replace the roof walkway system with fall protection on the administrative and maintenance area roofs. Replacement includes removal of all flashings, waterproofing, gutters, downspouts, and insulation down to the structural decking. Inspect and repair damage to the structural metal deck. Inspect and repair connection between administrative area roof and walls of warehouse and maintenance area and repair water intrusion areas. Install new insulation, waterproofing,

standing seam metal roofing including new flashings, trim, gutters and downspouts for a complete system. Repair of the warehouse roof includes cleaning, inspecting and repairing major defects to existing standing seam metal roofing, priming entire roof and installing new acrylic roof coating. Repairs to the warehouse roof also include removal and replacement of the existing gutters and downspouts. Compliance with current energy codes, building codes, and UFC is required.

1.1.10 Replace the existing exterior doors and replace the existing storefront entry doors. Provide two new exterior windows in the administrative area as shown on the RFP drawings, matching window size and elevation. Replace all perimeter sealants at existing windows. Compliance with Standard 12 of UFC 4-010-01, which outlines Minimum Antiterrorism Standards for Buildings, current energy, building codes, and accessibility standards is required for new and replacement windows and doors.

1.1.11 Reconfigure interior layout to meet program needs and provide new finishes.

1.1.12 Provide new window treatments at existing and new windows.

1.1.13 Provide new signage.

1.1.14 Reconfigure existing Administrative area to provide accessible restrooms and showers to meet the occupancy load.

1.1.15 Replace the dry-pipe sprinkler system in the administration and vehicle maintenance areas with a wet-pipe sprinkler system. Replace the dry-pipe sprinkler system in the warehouse with a wet-pipe sprinkler system that is compliant with the requirements of UFC 3-600-01 and NFPA 13.

1.1.16 Replace the existing electric-driven fire pump with a larger, horizontal split-case fire pump and repair or replace the corroded valves in the fire pump room.

1.1.17 Replace the building fire alarm system with a combined fire alarm/mass notification system.

1.1.18 The Contractor will provide an electrical load study on the building to comply with the new electrical loads and equipment used for this project. In addition, the contractor will provide a lightning risk assessment to determine if a lightning protection system is needed for the building. The facility electrical system is past its useful life and should be replaced including but not limited to: lights, controls, branch panels, main distribution panel, general electric distribution, conduit, cables, and step-down transformer, with an updated system that leaves 15% load capacity for future expansion, as well as meets all electrical requirements for the building and complies with the NEC and appropriate UFCs.

1.1.19 Replace missing tension rod x-bracing within maintenance shop and provide top of wall bracing as required throughout building area.

1.1.20 Construct an addition onto an existing maintenance area of the ECS-64 that will provide drive through bays, work bay safety aisle, equipment alcove after demolition of area shown on RFP drawings. Include the installation of an overhead bridge crane in the added maintenance bay.

Repair MRAR Building 56767 (ECS)
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Reconfigure existing maintenance area to include flammable/controlled waste storage, fluid distribution room, battery room and additional TR room. Reconfigure existing administrative area to include a new lactation room and new restrooms/showers/lockers, reconfigured mechanical/electrical/telecom rooms, and maintenance administrative support as needed.

1.2 **Bid Options.** The Government has identified Option Items which may be included in the project, if available funds allow and government authorization is given. The Option Items are listed individually on the Price Breakout Schedule.

1.3 **DESIGN OBJECTIVES.**

1.3.1 **Applicable Criteria.** Applicable design and construction criteria references are listed in this Statement of Work and in the Outline Technical Specifications. Criteria shall be taken from the most current references as of the date of issue of the RFP, unless noted otherwise. Referenced codes and standards are minimum acceptable requirements.

1.3.1.1 This RFP and its referenced documents define the necessary criteria to plan and design the MRAR Building 56767 (ECS) facility. Functional space requirements are indicated in the United States Army Reserve (USAR) Design Guide USAR Facilities, referred to as the Army Reserve Design Guide (ARDG), which also provides general criteria and guidance for the design of Army Reserve facilities. Typical functional space furniture layouts and inventories are provided in the RFP drawings; Contractor’s designers shall adapt these to the final floor plans.

1.3.1.2 Where specific manufacturer or vendor names are called out in this RFP, the intention is to provide the desired quality and salient features for the system or material.

1.3.1.2.1 Unless the manufacturer or vendor is identified as “sole-source”, or with similar language, the Contractor may provide an equivalent or better system or material of another vendor or manufacturer.

1.3.2 **Primary Consideration.** The primary consideration of this solicitation is to conduct a MRAR and addition on the existing Building 56767 (ECS) within funds available, and to maximize design quality. Offerors are encouraged to review the RFP to familiarize themselves with all RFP requirements.

1.3.3 **Design Quality.** Design quality is achieved through the optimization of interior planning, integration of the building[s] with the site, sustainability, selection of building materials and systems for durable low-cost maintenance and operation, and an overall balance of esthetics and functionality. The Army Reserve encourages a project design of award-winning caliber.

1.3.4 **Design Freedom.** Requirements stated in this RFP are minimums.

1.3.4.1 The project conceptual design was developed by the Army Reserve, the Corps of Engineers, and a RFP preparation A/E design team; this conceptual design is acceptable to the Government.

1.3.4.2 The conceptual design Drawings, this Statement of Work, and the Outline Technical Specifications (Not Included in Phase I Advertisement), along with the other information and requirements in this RFP, serve as requirements for Contractor building design and construction completion, along with other code, regulatory and professional practice requirements. The extent of development of these RFP documents in no way relieves the successful offeror from responsibility for the design, construction documentation, and construction of the facility in conformance with Applicable Criteria and codes.

1.3.4.3 The conceptual design illustrates desired general arrangements, orientation, and adjacencies, it is not intended to dictate the final layout and image for the project. The Contractor's designers shall develop and refine the conceptual site and building design in their completion of the design and construction documents. Such development shall be consistent with the criteria and acceptable to the Government.

1.3.4.3.1 NOT USED

1.3.4.3.2 Design additions and upgrades to the existing building(s) to enhance or complement the visual environment of the Installation. The design shall reflect a human scale, and primary entrances shall be architecturally designed for easy visibility. Exterior materials, roof forms, and detailing shall be compatible with the existing buildings, surrounding development, and shall follow established architectural themes. Exterior colors shall be compatible with the existing brick and stucco facades while confirming to the United States Army Reserve (USAR) Design Guide for USAR Facilities. Use architectural elements to reflect human scale, break up building massing and roof lines, and add visual interest; such as stringcourses, reveals, stone or pre-cast sills and similar elements, inserts, detailing, etc. Architectural detailing shall be simple and functional for these utilitarian buildings.

1.3.4.4 The Contractor shall accommodate minor site and building plan changes by the Government in the early stages of the design process, as a normal part of the design development process. The Contractor may adjust spaces, within the overall and specific functional area guidelines, as required to accommodate structural layout, and as necessary to provide adequate space for mechanical, electrical and telecommunication spaces. The mechanical and electrical spaces must provide adequate space to safely and efficiently accommodate equipment operation and maintenance and be code compliant. The spatial relationships and adjacencies in the RFP drawings, however, must be maintained, unless the Contractor recommends changes to the Government, and the Government accepts such changes.

1.3.4.5 The Contractor shall develop and refine the exterior image and esthetics of the building as part of the design development process. The Contractor shall utilize materials, detailing, fenestration, lighting and ornamentation to develop a high-quality exterior image for the facility.

1.3.4.6 The Contractor's architect or interior designer shall select the final palette of colors and materials for building interior and exterior, acceptable to the Government and coordinated throughout.

1.3.5 Installation Design Guidance.

1.3.5.1 Installation Real Property Master Plan. The installation real property master plan provides comprehensive documentation of the existing conditions of natural, man-made, and human resources. It also guides future land-use development.

1.3.5.2 Installation Design Guide. Design of this project shall incorporate the design guidance and criteria contained in the Installation Design Guide (IDG).

1.3.6 **Antiterrorism and Force Protection Considerations.** Project design and construction shall comply with the Department of Defense Antiterrorism (AT) Standards for Buildings, UFC 4-010-01, and other AT criteria listed in Part 2 of this Statement of Work. The conceptual site and building design has been developed in general accordance with AT requirements. Contractor shall continue to coordinate AT design with the Government throughout design and construction.

1.3.6.1 Refer to the MEMORANDUM FOR PPMD titled "Implementation of UFC 4-010-01 revision 12 Dec 2018" dated 22 January 2019. Privately Owned Vehicle (POV) Parking is permitted within the unobstructed space, however, may be temporarily eliminated within the unobstructed space

1.3.6.2 Compliance with the minimum protective measures for DoD inhabited buildings, as defined in UFC 4-0101-01, is required

1.3.6.3 The Design Basis of Threat for this project is the minimum AT requirements established in UFC 4-010-01 Chapter 3.

1.3.6.4 The ECS Administrative portion of the existing building is an Inhabited Building.

1.3.6.5 The ECS Maintenance Shop portion of the existing building and the Maintenance Bay addition is an Inhabited Building.

1.3.6.6 The ECS Warehouse UHS is a Low-Occupancy Building, and AT Standards do not apply to this building.

1.4 **CONTRACTOR RESPONSIBILITY.**

1.4.1 The Contractor shall provide all labor, materials, equipment, supplies, permits, fees, and consultant services to design and construct this complex. The complex shall be a complete and usable facility, meeting the requirements of this RFP. The Contractor shall develop a complete site, building and interior design package.

1.4.2 Throughout the RFP, references are made to MCAR and OMAR funds. For clarification, this refers to the funding source - either Construction funds or Operations and Maintenance funds - for the Project. The funding source classification has no effect on the Scope of the Work of this RFP. Refer to the Price Breakout Schedule which clarifies OMAR funded items.

1.4.3 For purposes of clarification, this RFP identifies parts of the Project for which some responsibility is borne by the Government. The responsibility for some work items addressed elsewhere in the RFP is brought to the Contractor's attention in the following table. If not identified as Government-furnished in the table below, or elsewhere, all work required by

the RFP is the responsibility of the Contractor. Contractor shall provide design coordination for items to be purchased and installed by the Government.

For items noted with an asterisk (*) below, Contractor is responsible for design of power, data, and other necessary mechanical or electrical provisions for the item.

1.4.3.1

Government-Furnished Item Table				
Legend: Cont = Contractor, Govt = Government				
Item	**Designed by**	**Furnished by**	**Installed by**	**Makes final connection**
Bronze and aluminum "Minuteman" plaques	Cont	Govt	Cont	
Furniture, Fixtures & Equipment (FF&E)				
Freestanding Furniture	Cont	Govt	Govt	
Systems Furniture *	Cont	Govt	Govt	Cont
Office Equipment, portable *	Cont	Govt	Govt	Govt
Office Equipment, permanently installed *	Cont	Govt	Govt	Govt
Workbenches *	Cont	Govt	Govt	Govt
Physical Training Equipment *	Cont	Govt	Govt	Govt
TV Monitor Brackets*	Cont	Govt	Govt	Cont
TV Monitors *	Cont	Govt	Govt	Govt
Government Furnished Government Installed (GFGI) Items				
Shop equipment, portable *	Cont	Govt	Govt	Govt
Shop equipment, permanently installed * Shop equipment, portable *	Cont	Govt	Govt	Cont
Arms Vault Weapons Racks	Govt	Govt	Govt	Govt

Vending Machines *	Govt	Govt	Govt	Govt
Network Printer / Copier *	Cont	Govt	Govt	Govt
Video Conference System *	Cont	Govt	Govt	Govt
Emergency Generator *	Cont	Govt	Govt	Govt
IT/Telecom				
Telecommunications Infrastructure in the TER/TRs *	Cont	Cont	Cont	Govt
Telecommunications Equipment *	Govt	Govt	Govt	Govt
Telephone instruments *	Govt	Govt	Govt	Govt
Exterior Callbox(es), including telephone. Government only programs the specific telephone instrument(s)	Cont	Cont	Cont	Cont

1.5 **RFP DRAWINGS.**

The conceptual drawings are included as a part of this RFP to provide information and criteria for the Contractor's completion of the design.

1.6 **SPECIFICATIONS. (Not Included in Phase I Advertisement)**

1.6.1 The Outline Technical Specifications are provided primarily in outline format. They shall be utilized as design and submittal criteria, and minimum standards for the corresponding construction work, and shall be met or exceeded unless Contractor obtains specific Government approval for proposed reductions. These outline specifications shall not be considered complete and suitable for final construction specifications. Contractor's designers shall expand the outline specifications to provide comprehensive, three-part, CSI-format Specifications and shall edit the Specifications to indicate actual products to be used in the construction. Final specifications shall include as a minimum, a description of the technical requirements, criteria for determining whether the criteria are met, and quality control requirements and procedures. The standards referenced in the outline specifications establish minimum requirements for the final construction specifications.

1.6.1.1 The Outline Technical Specifications provide design and construction criteria that supplement project-specific requirements listed in Section 01 02 00.00 48 and 01 03 00.00 48.

1.6.2 Not all Outline Technical Specification sections provided in this RFP may be required for this project, and designers shall provide additional

Specification Sections or items if necessitated by their final design or RFP requirements.

1.6.3 Some Outline Technical Specification Sections are more detailed and extensive than the majority; these represent the Government's required specification approach to this project. Contractor's designers must still take complete responsibility for the design and specification of the project, and shall satisfy themselves that these Sections are complete and suitable for the final design. Most of the outline specification sections are adapted from typical Government Unified Facility Guides Specifications (UFGS) and reflect Army Reserve-approved approaches and products. The outline specification requirements shall be used as the basis for selection of construction materials, products, and systems. Contractor's final specifications shall be developed from the UFGS. The use of industry prototype specifications (such as MasterSpec) is not allowed.

1.6.3.1 The following order of UFGS specification priority applies:

1.6.3.1.1 First select Sections specifically developed for Army Reserve facilities. Such Sections have "48" as the fifth level of their MasterFormat 2004 numbering, such as Section 07 31 13.00 48. These Army Reserve-specific (RST) Sections can be accessed from the Corps of Engineers, Louisville District, Army Reserve Customer Website. Refer to Part 2 of this Section.

1.6.3.1.2 If no RST Section exists, select a Louisville District-specific Section (LRL), accessible from the same website. Such Sections have an "06" as the fifth level of their MasterFormat 2004 numbering.

1.6.3.1.3 If no Section described above exists, select an Army Section. Such Sections have an "10" as the fourth level of their MasterFormat 2004 numbering.

1.6.3.1.4 If none of the above Section exist, select a unified Section. Such Sections have no fourth or fifth level in their numbering.

1.6.4 In case of conflicts between the project-specific requirements in Section 01 02 00.00 48 or 01 03 00.00 48, and the requirements in the Outline Technical Specifications, Section 01 02 00.00 48 or 01 03 00.00 48 governs. This is true for all Outline Technical Specification Sections, including the more extensive and detailed Sections.

1.7 **SITE.**

The site is described on the RFP drawings included as part of this solicitation and consists of approximately 58.3 acres inside of the fence line of the site.

There are two MEP Parking areas that are approximately 22.3 acres in total (6.1 acres north lot, 16.2 acres west lot). There are two POV lots, the north lot has 98 spaces plus 2 ABA spaces. The south lot has approximately 38 spaces with 0 ABA spaces.

The property was formerly vacant land that was briefly used for rifle training. There have not been any industrial activities on or adjacent to the facility. The current operations at the facility include vehicle and equipment storage and maintenance.

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Site work includes all design and construction of site features described in the RFP, including but not limited to, site planning, clearing, grading, erosion control, site drainage, utility systems, pavements, pedestrian and vehicular circulation systems, signage, site lighting, landscaping, physical security measures, fencing, and site furnishings.

1.7.1 **Special Utilities and Supplementary Construction.** A 1,500 gallon oil/water/sand separator will be installed and connected to the existing maintenance bays and the proposed bays, and tied into the existing sanitary sewer.

1.7.2 **Demolition Considerations and Requirements.** A portion of the existing building will be demolished, as well as utilities that inhabit that area. The utilities will be demolished or reconstructed to internally serve the new addition, and/or to serve and then exit the new addition and tie into the utilities existing outside of the building envelope, or to new lines constructed with this project.

1.7.3 **Environmental Considerations and Mitigation Requirements.** There are no known significant environmental conditions which will require mitigation. If minor areas of petroleum-stained soil are encountered during excavation, the stained soil should be segregated from the unstained soils, tested and managed in accordance with the test results. Should any suspected hazardous materials be encountered during site investigations or construction, the Contractor shall immediately stop work in the affected area, notify the Contracting Officer, and await Contracting Officer's direction before proceeding with additional work in the area.

1.7.3.1 Refer to UFC 3-101-01 for radon mitigation system design. The project site has been identified as being in a USEPA Radon Zone No._3_(an area where average indoor radon concentration is not likely to exceed 2 picoCuries per liter (pCi/L)). Based on testing in Room 103, radon was found to be at concentration ranging from 0.5 to 0.6 pCi/L) The Contractor shall incorporate passive barrier and capillary water barrier provisions.

1.7.3.2 Mold Prevention. Buildings must be designed and constructed to maintain space humidity at reasonable levels.

1.7.3.3 A survey of other hazardous materials conducted at the Property as part of the Hazardous Material Survey identified common building components and fixtures that may contain hazardous materials that were present within the buildings. These materials, which include fluorescent light bulbs and ballasts, thermostats, smoke detectors, and EXIT signs, may require special handling and have specific disposal requirements if removed or replaced.

If termite or other pest control is required, indicate the requirement here. The Outline Technical Specifications include Section 31 31 16.00 48.

1.7.3.4 Building 56767 was inspected for asbestos by the Government; no asbestos containing materials (ACM) were identified. Prior to any building demolition, the Contractor shall perform a thorough demolition-level asbestos inspection in accordance with applicable Federal, State, and local regulations. The goal of the inspection is to identify ACM, including that which may be located inside walls, above ceilings, under floors, and other inaccessible areas. The inspection shall be conducted by an accredited

asbestos building inspector. Any ACM identified as a result of this inspection shall be treated as a changed condition.

1.7.3.5 The Contractor shall comply with the requirements of OSHA 29 CFR 1926.62 - Lead Exposure in Construction during building and structure demolition.

The hazardous waste criterion for lead wastes is established under the federal Resource Conservation and Recovery Act (RCRA), Subtitle C, as 5.0 mg/L measured with the Toxicity Characteristic Leaching Procedure (TCLP). In addition, the crushing or recycling of materials with LBP is strictly prohibited.

1.7.4 **Site Development Constraints.** Not used.

1.7.5 **Contractor's Use of the Site.** Except for utility service provider access, required coordination with local agencies, and observation and oversight by the Government, the Contractor shall have complete use of the site within final limits of construction to be recommended by the Contractor and approved by the Government.

1.7.5.1 Security and Identification Requirements, see Section 00 08 00.00 06.

1.7.6 **Verification of Conditions.** The Contractor shall field verify existing conditions prior to beginning work. The Contractor and the designers of record shall be responsible for investigating all differing site conditions, discrepancies, and field related issues that are encountered during the design and construction process. The designers of record shall be responsible for providing guidance to the Contractor for the resolution of all such issues. The Contractor shall provide notice to the Government of any such issues prior to proceeding and with sufficient time to avoid cost or schedule impacts.

1.7.7 **Verification of Utilities.** The Contractor and the designers of record shall be responsible for verifying the condition, location, and capacity for all utilities necessary for the project. The Contractor and designers of record shall further verify that all utilities will meet the requirements of this project.

1.7.8 **Permits and Regulatory Compliance.** The Contractor shall assure that the site development complies with all applicable local, State and Federal regulations. A list of known regulations is located in Part 2 of this Statement of Work. Timely acquisition of the necessary design and construction related permits shall be the responsibility of the Contractor. The Contractor, upon notice to proceed, shall immediately begin working on the permits so as not to delay completion of the project. The Contractor shall prepare permits, associated drawings, public notices, and other related documentation as necessary to successfully meet permit approval status. The Contractor shall pay for associated permit fees.

1.8 **FUNCTIONAL AND AREA REQUIREMENTS.**

1.8.1 The building designs shall provide building gross areas as indicated below. The building gross floor areas may not increase or decrease in size without Government approval, except for minor deviations necessary to

accommodate building systems. The minimum gross area of the buildings is a minimum requirement of this RFP.

1.8.1.1 The ECS Administrative Area – The existing building gross area is currently 8,404 SF.

1.8.1.2 ECS Maintenance Shop portion of the building – The existing gross area is currently 16,292 SF and the addition will be 4,800 SF.

1.8.1.3 The ECS Warehouse Unheated Storage building – The existing gross area is currently 58,290 SF.

1.8.2 Individual spaces shall meet the functional and environmental requirements based on ARDG paragraph listed in the Room by Room Supplemental Requirements table in Attachment (*Not included in Phase 1 Advertisement*), as well as any applicable code requirements and additional requirements noted in this RFP.

1.8.2.1 The areas shown in the "Target Area" column of the table typically allow minor variation. It is acceptable for the actual clear area of any space to vary from the values in the table by plus or minus 5%, except as noted below or in the Room by Room Supplemental Requirements. If space sizes are varied, functionality and furniture requirements shall be maintained. Building gross minimum areas described in Paragraph 1.8.1 remain applicable.

1.8.2.1.1 NOT USED

1.8.2.1.2 Areas and dimensions for these spaces shall not vary: maintenance bays, weapons simulator rooms, and distant learning center/classroom.

1.8.2.1.3 Areas for these spaces shall not be decreased: arms vault, repair shop, Telecom,TR and COMSEC. The minimum width for Telecom, TER, and TR is 8'-0". The Arms Vault, Repair Shop, and Telecom are existing to remain.

1.8.2.1.4 Minimum width of offices shall be 9'-6" to accommodate furniture.

1.8.2.1.5 NOT USED

1.8.2.1.6 NOT USED

1.9 **USER BACKGROUND INFORMATION.**

1.9.1.1 This MRAR will support the ECS-64 personnel located at 2401 Park Avenue, Gatesville, TX 76528. ECS-64 supports all the Army Reserve units in the vicinity.

1.9.1.2 Building 56767 provides mission essential functional areas in support of a wide array of units ranging from Engineer to Theater level units. ECS-64 is the primary support ECS for COMPO-3 mobilizations due to the 1st Army Mission of deploying COMPO-3 units from this location. This project will support the MFGI mission being conducted at Fort Cavazos annually. This site is located in central Texas which provides an ideal location for surrounding units to store equipment and be supported locally. It also supports the RTS-M at Fort Cavazos by providing repair support to training aides. The repairs will provide the operational necessity of building functional areas for the training and mission support of these commands.

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1.9.2 ECS-64 employs 58 Contractors and 35 MILTEC/DACS for a total of 93 personnel working in the building on a full-time basis Monday through Friday. ECS-64 does not have drill weekends.

1.9.3 Prior to construction the DOR AE personnel must coordinate with USACE and the base personnel to set up design site visits.

1.9.4 During construction the building will be turned over to The Contractor with no operational activities by the Government.

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PART 2

APPLICABLE CRITERIA AND COORDINATION WITH LOCAL AUTHORITIES

2.1 **APPLICABLE CRITERIA.** Applicable design and construction criteria references are listed in this Statement of Work and in the Specifications of this RFP. Criteria shall be taken from the most current references as of the date of issue of the RFP, unless otherwise noted. However, following contract award, Contractor shall bring any criteria updates to the attention of the Contracting Officer. Referenced codes and standards are minimum acceptable criteria. Administrative, contractual, and procedural features of the contract shall be as described in other sections of the RFP. Sources for criteria documents are listed below.

2.1.1 In order for a facility to be occupied by Department of Defense personnel, the design and construction must meet specific requirements. The Government's primary guidance on fire protection is UFC 3-600-01, Design - Fire Protection Engineering for Facilities. Design and construction of Army Reserve real property improvements shall comply with UFC 3-600-01, and shall comply with the specific applicable requirements of IBC, NFPA 101, and other commercial codes and standards that are referenced in UFC 3-600-01. The Contractor shall complete a Fire Protection/Life Safety Code Submittal form, for the project to demonstrate compliance. The form is available on the Corps of Engineers, Louisville District, Army Reserve Customer Website.

2.1.2 Design and construction of Army Reserve real property improvements shall also comply with the requirements of this document and with the current edition of the industry and Federal Government standards listed in this RFP. Where UFC 3-600-01 or any other Federal Government standard refers to other Federal Government standards not listed in this RFP, the standards not listed in this RFP do not apply

2.1.3 Some State and local code and regulatory agencies may not have jurisdiction over Federal Government construction on Federal property. However, the Army Reserve wishes to comply with State and local codes and regulations, and the Contractor remains responsible for such compliance. Therefore, design and construction of Army Reserve real property improvements shall also comply with all current and applicable State and local codes, and with all other applicable laws and regulations governing development, design and construction at the site. If certain of such requirements appear particularly onerous, or hamper required functionality of the project, the Contractor may recommend the Government waive the requirement or implement a lesser requirement. The Government's acceptance of such recommendations is not assured.

2.1.4 Where any of the applicable requirements conflict, the most stringent shall govern. In no case shall building code, fire protection and life safety requirements be reduced below those required in UFC 3-600-01 and this RFP.

2.1.5 The requirements of the International Mechanical Code (IMC) and International Plumbing Code (IPC) shall apply except as follows. Where conflicts exist between the IMC and IPC, and the requirements of this document, this document shall govern. Where the IMC or IPC references the

ICC Electrical Code, the NEC National Electrical Code shall be the applicable code. Where the IMC references the International Fuel Gas Code, the NFPA 54 National Fuel Gas Code shall be the applicable code. Where the IMC or IPC references the International Fire Code, the National Fire Codes published by the National Fire Protection Association (NFPA) shall be the applicable code. Where the IMC or IPC references the International Energy Conservation Code, the ASHRAE Standard 90.1 "Energy Standard for Buildings – Except Low Rise Residential Buildings" shall be the applicable reference. The requirements of ASHRAE Standard 62.1 Ventilation for Acceptable Indoor Air Quality shall be used in lieu of the ventilation requirement contained in the IMC.

2.1.6 The primary criteria and guidance for detailed design of Army Reserve Facilities is United States Army Reserve (USAR) Design Guide, USAR Facilities or ARDG. The Contractor shall follow the guidance of the ARDG in developing the project design, unless this RFP directs otherwise. For the purposes of this RFP, when the word "should" is used in the DG, it indicates a mandatory requirement for this project. When the ARDG references Government criteria documents not referenced in this RFP, those criteria do not apply to this project.

2.1.6.1 The ARDG is considered the primary criteria, if conflicting with the UFC's and other criteria, the more stringent criteria shall apply.

2.1.6.2 The requirements of the Army Reserve Design Process and Submittal Requirements (DPSR), shall take precedence over any conflicting UFC requirements regarding Predesign, Design, Post Design Services, and Submission Requirements.

2.1.7 Best Practices (Chapters or Appendices) listed in any UFCs shall be considered recommendations and are not contract requirements, unless otherwise noted in this RFP.

2.1.8 Accessibility – Design and construction must comply with ADA-ABA Accessibility Standard for Department of Defense Facilities and UFAS, whichever is most stringent. Buildings shall be considered to be "commercial facilities" under ADA-ABA.

2.1.9 Design and construction shall comply with applicable Federal laws and regulations, such as EPA Clean Water and Clean Air Act and OSHA requirements.

2.2 **LOCAL AND STATE CODES OR STANDARDS.** The following specifications, codes, standards, bulletins and handbooks form a part of this RFP.

2.2.1 **State and Local**

Texas Department of Transportation Standard Specifications for Construction and Maintenance of Highways, Streets and Bridges
Texas Department of Transportation Erosion Control Devices and Practices
Texas Department of Transportation Environmental Management System
Texas Department of Transportation Storm Water Program
Texas State Energy Conservation Office (SECO)

2.2.2 **National.**

IBC – International Building Code
IEBC – International Existing Building Code
IPC – International Plumbing Code
IMC – International Mechanical Code
IECC – International Energy Conservation Code
NEC – National Electrical Code
NFPA – National Fire Protection Association, NFPA 1, Fire Code, NFPA 101 Life Safety Code

2.3 **MILITARY CRITERIA.** The following publications form a part of this document.

AR 190-11	Physical Security of Weapons, Ammunition and Explosives (for design and construction of arms vaults only)
AR 380-5	Department of the Army Information Security Program – Chapter 7, Section III
CR-200010	Joint Service Oil/Water Separator Guidance Document
MIL HDBK 1013/1A	Military Handbook: Design Guide for Physical Security of Facilities – for protection of openings into secure areas such as SIPRNET Café, and COMSEC
I3A	Technical Criteria for The Installation Information Infrastructure Architecture (I3A) (for outside plant design criteria only)
ECB 2018-11	Control System Cybersecurity Coordination Requirement
EO 14057	Electrification of Standard Building Operations
ER 1110-345-723	Total Building Commissioning Procedures
UFC 1-200-01	DoD Building Code
UFC 1-200-02	High Performance and Sustainable Building Requirements
UFC 3-101-01	Architecture
UFC 3-110-03	Roofing
UFC 3-120-01	Design: Sign Standard
UFC 3-120-10	Interior Design
UFC 3-201-01	Civil Engineering
UFC 3-201-02	Landscape Architecture
UFC 3-210-10	Low Impact Development
UFC 3-220-01	Geotechnical Engineering
UFC 3-250-01	Pavement Design for Roads and Parking
UFC 3-301-01	Structural Engineering
UFC 3-401-01	Mechanical Engineering
UFC 3-410-01	Heating, Ventilating, and Air Conditioning Systems

UFC 3-410-02	Direct Digital Control for HVAC and Other Building Control Systems
UFC 3-420-01	Plumbing Systems
UFC 3-501-01	Electrical Engineering
UFC 3-520-01	Interior Electrical Systems
UFC 3-530-01	Interior and Exterior Lighting Systems and Controls
UFC 3-540-01	Engine-Driven Generator Systems for Backup Power Application
UFC 3-550-01	Exterior Electrical Power Distribution
UFC 3-560-01	Operation and Maintenance: Electrical Safety
UFC 3-575-01	Lightning And Static Electricity Protection Systems
UFC 3-580-01	Telecommunications Building Cabling Systems Planning and Design
UFC 3-600-01	Fire Protection Engineering for Facilities
UFC 4-010-01	DoD Minimum Antiterrorism Standards for Buildings
UFC 4-440-01	Warehouse and Storage Facilities
No number	United States Army Reserve (USAR) Design Guide, USAR Facilities, October 2023
No number	Army Reserve Network Enterprise Center Infrastructure Technical Criteria (ARNEC ITC)
No number	Army Reserve Enterprise Building Control System (EBCS) Design Guide
No number	USAR Design Process and Submittal Requirements (DPSR)
No number	ADA-ABA Accessibility Standard for Department of Defense Facilities
No number	2017 Implementing Guidance, Army Stormwater Management Using Low Impact Development
No number	MEMORANDUM FOR PPMD titled “Implementation of UFC 4-010-01 revision 12 Dec 2018” dated 22 January 2019.
No number	Department of the Army Sustainable Design and Development (SDD) Policy memo dated January 17, 2017
No number	IDS Responsibilities memo; Arms Vault IDS system
No number	Caging Details; Unit Storage and Arms Vault, and other rooms with caging.
No number	US Army Reserve Color Board
SDDCTEA Pamphlet 55-17	Better Military Traffic Engineering

2.4 **OTHER APPLICABLE CRITERIA.** Applicable design and construction criteria references are listed below. This list is not intended to include all criteria that may apply or to restrict design and construction to only those references listed.

Air Conditioning and Refrigeration Institute (ARI)
- ARI 310/380 Packaged Terminal Air-Conditioners and Heat Pumps
- ARI 440 Room Fan-Coil and Unit Ventilator
- ARI 445 Room Air-Induction Units
- ARI 880 Air Terminals

Air Movement and Control Association (AMCA)
- AMCA 210 Laboratory Methods of Testing Fans for Rating

American Architectural Manufacturers Association (AAMA)
- AAMA 605 Voluntary Specification Performance Requirements and Test Procedures for High Performance Organic Coatings on Aluminum Extrusions and Panels
- AAMA 607.1 Voluntary Guide Specifications and Inspection Methods for Clear Anodic Finishes for Architectural Aluminum
- AAMA 1503 Voluntary Test Method for Thermal Transmittance and Condensation Resistance of Windows, Doors, and Glazed Wall Sections

American Association of State Highway and Transportation Officials (AASHTO)
- Roadside Design Guide (guardrails, roadside safety devices)
- Standard Specifications for Transportation Materials and Methods of Sampling and Testing (Road Construction Materials)
- Standard Specifications for Structural Supports for Highway Signs, Luminaries and Traffic Signals
- A Policy of Geometric Design of Highways and Streets
- Guide for Design of Pavement Structures, Volumes 1 and 2 (pavement design guide)

American Bearing Manufacturers Association (AFBMA)
- AFBMA Std. 9 Load Ratings and Fatigue Life for Ball Bearings
- AFBMA Std. 11 Load Ratings and Fatigue Life for Roller Bearings

American Boiler Manufacturers Association (ABMA)
- ABMA ISEI Industry Standards and Engineering Information

American Concrete Institute
- ACI 318, Building Code Requirements for Structural Concrete
- ACI SP-66, Details Manual
- ACI 530/530.1, Building Code Requirements and Specification for Masonry Structures

American Concrete Pipe Association
- Design Manual
- Installation Manual

American Institute of Steel Construction (AISC)
- Steel Construction Manual and all standards and specification therein
- Seismic Design Manual and all standards and specification therein
- Steel Design Guide 11, Floor Vibrations due to Human Activity

American Iron and Steel Institute (AISI)
- AISI, S100, North American Specification for the Design of Cold-Formed Steel Structural Members
- AISI D100, Cold-Formed Steel Design Manual
- AISI S400, North American Standard for Seismic Design of Cold-Formed Steel Structural Systems

American National Standards Institute 11 (ANSI)

ANSI Z21.10.1 Gas Water Heaters Vol. 1, Storage water Heaters with Input Ratings of 75,000 Btu per Hour or less
ANSI Z124.3 American National Standard for Plastic Lavatories
ANSI Z124.6 Plastic Sinks
ANSI Z21.45 Flexible Connectors of Other Than All-Metal Construction for Gas Appliances
ANSI Z358.1 Emergency Eyewash and Shower Equipment
ANSI C2 National Electrical Safety Code
ANSI/AF&PA NDS National Design Specification for Wood Construction
American Society of Civil Engineers (ASCE)
Minimum Design Loads and Associated Criteria for Buildings and Other Structures - ASCE 7
Design and Construction of Sanitary and Storm Sewers, Manuals and Reports on Engineering Practice - No. 37 (sanitary sewer and storm drain design criteria)
American Society of Heating, Refrigerating and Air Conditioning Engineers (ASHRAE)
ASHRAE Hdbk-IP Handbook, Fundamentals I-P Edition
ASHRAE HVAC Applications Hdbk - Handbook, HVAC Applications
ASHRAE Standard 15 Safety Standard for Refrigeration Systems
ASHRAE Standard 55 Thermal Environmental Conditions for Human Occupancy
ASHRAE Standard 62.1 Ventilation for Acceptable Indoor Air Quality. Edition year and to the extent as referenced in UFC 3-410-01.
ASHRAE 90.1 Energy Standard for Buildings Except Low-Rise Residential Buildings. Edition year and to the extent as referenced in UFC 1-200-02.
ASHRAE 189.1 Standard for the Design of High-Performance Green Buildings. Edition year and to the extent as referenced in UFC 1-200-02, and to the extent indicated in the RFP.
American Society of Mechanical Engineers International (ASME)
ASME BPVC SEC VII Boiler and Pressure Vessel Code: Section VII Recommended Guidelines for the Care of Power Boilers
ASME A17.1 Safety Code for Elevators and Escalators
American Society for Testing and Materials (ASTM)
E1592 Standard Test Method for Structural Performance of Sheet Metal Roof and Siding Systems by Uniform Static Air Pressure Difference
American Water Works Association (AWWA)
AWWA Standards (standards for water line materials and construction)
American Welding Society (AWS)
D1.X Standards
Architectural Woodwork Institute (AWI)
AWI Quality Standards
Associated Air Balance Council (AABC)
AABC MN-1 National Standards for Testing and Balancing Heating, Ventilating, and Air Conditioning Systems
AABC Commissioning Group Commissioning Guidelines
Builders Hardware Manufacturers Association (BHMA)
ANSI/BHMA A156.4 American National Standards for Door Controls - Closers
Cast Iron Soil Pipe Institute (CISPI)
Code of Federal Regulations (CFR)

49 CFR 192 Transportation of Natural and Other Gas by Pipeline: Minimum Federal Safety Standards
10 CFR 430 Energy Conservation Program for Consumer Products
Ductile Iron Pipe Research Association (DIPRA), Design of Ductile Iron Pipe
Environmental Protection Agency
EPA 625-R-92-016 Radon Prevention in the Design and Construction of Schools and Other Large Buildings
Federal Highway Administration (FHWA)
Manual on Uniform Traffic Control Devices for Streets and Highways (signage for streets and highways)
Illuminating Engineering Society (IES)
The Lighting Handbook, Reference and Application
Institute of Electrical and Electronics Engineers Inc. (IEEE)
Standard for Use of the International System of Units (SI): the Modern Metric System
National Electrical Safety Code ANSI C2
Institute of Traffic Engineers (ITE)
Trip Generation
Transportation Planning Handbook
LEED: Leadership in Energy and Environmental Design Green Building Rating System, Version 4, as developed by the U.S. Green Building Council (USGBC)
Metal Building Manufacturer's Association (MBMA)
MBMA Metal Building Systems Manual, with latest Supplement
MBMA Seismic Design Guide for Metal Building Systems
National Association of Corrosion Engineers International (NACE)
NACE SP0169 Control of External Corrosion on Underground or Submerged Metallic Piping Systems
NACE SP0185 Extruded, Polyolefin Resin Coating Systems with Soft Adhesives for Underground or Submerged Pipe
NACE SP0285 Corrosion Control of Underground Storage Tank Systems by Cathodic Protection
NACE SP0286 Electrical Isolation of Cathodically Protected Pipelines
National Electrical Manufacturers Association (NEMA)
National Environmental Balancing Bureau (NEBB)
NEBB Procedural Standards for Testing Adjusting Balancing of Environmental Systems
NEBB Procedural Standards for Building Systems Commissioning
National Fire Protection Association (NFPA)
NFPA 1 Fire Code Handbook
NFPA 10 Standard for Portable Fire Extinguishers
NFPA 13 Installation of Sprinkler Systems
NFPA 20 Installation of Centrifugal Fire Pumps
NFPA 24 Standard for the Installation of Private Fire Service Mains and Their Appurtenances (underground fire protection system design)
NFPA 30 Flammable and Combustible Liquids Code
NFPA 30A Motor Fuel Dispensing Facilities and Repair Garages
NFPA 54 National Fuel Gas Code
NFPA 58 Liquefied Petroleum Gas Code
NFPA 70 National Electrical Code
NFPA 70E Standard for Electrical Safety in the Workplace
NFPA 72 National Fire Alarm Code
NFPA 80 Standard for Fire Doors and Fire Windows

NFPA 90a Installation of Air Conditioning and Ventilating Systems
NFPA 101 Life Safety Code
NFPA 110 Standard for Emergency and Standby Power Systems
NFPA 291 Recommended Practice for Fire Flow testing and Marking of Hydrants
NFPA 400 Hazardous Materials Code
NFPA 780 Standard for the Installation of Lightning Protection Systems
National Food Code
FDA Model Food Code
National Institute of Standards and Technology (NIST)
RP8 - Standards of Seismic Safety for Existing Federally Owned and Leased Buildings - ICSSC Recommended Practice 8 (RP8). NIST GCR 11-917-12.
National Roofing Contractor's Association
NRCA Roofing and Waterproofing Manual
Occupational Safety and Health Administration (OSHA)
OSHA Construction Industry Standards, Title 29, Code of Federal Regulations, Part 1926, Safety and Health Regulations for Construction
Plumbing and Drainage Institute (PDI)
PDI G 101 Testing and Rating Procedure for Grease Interceptors with Appendix of Sizing and Installation Data
PDI WH201 Water Hammer Arrestors
Precast Concrete Institute
PCI Design Handbook - Precast and Prestressed Concrete
Sheet Metal and Air Conditioning Contractor's National Association (SMACNA)
SMACNA HVAC Duct Construction Standards HVAC Duct Construction Standards - Metal and Flexible
SMACNA Architectural Manual Architectural Sheet Metal Manual
Steel Door Institute (SDI)
ANSI A250.8/SDI 100 Standard Steel Doors and Frames
Steel Deck Institute (SDI)
Floor Deck Design Manual
Roof Deck Design Manual
Diaphragm Design Manual
Steel Joist Institute (SJI)
Standard Specifications for K-Series, LH-Series, and DLH-Series Open Web Steel Joist, and for Joist Girders.
Load Tables and Weights for K-Series, LH-Series, and DLH-Series Open Web Steel Joists and Joist Girders
SJI Tech Digest #5 Vibration of Steel-Joist Concrete Slab Floors
Telecommunications Industries Association (TIA)
TIA 568 Generic Telecommunications Cabling For Customer Premises
TIA 569 Telecommunications Pathways and Spaces
TIA 606 Administration Standard for Telecommunications Infrastructure
TIA 607 Generic Telecommunications Bonding and Grounding (Earthing) for Customer Premises
TIA 758 Customer-Owned Outside Plant Telecommunications Infrastructure Standard
The Masonry Society (TMS)
TMS 402/602 Building Code Requirements and Specification for Masonry Structures
Underwriters Laboratories (UL)

UL 96A Installation Requirements for Lightning Protection Systems
UL 300 Standard for Safety for Fire Testing of Fire Extinguishing Systems for Protection of Restaurant Cooking Areas
Uni-Bell PVC Pipe Association, Handbook of PVC Pipe: Design and Construction
Recommended Standards for Wastewater Facilities, by Health Research, Inc.

2.5 **SOURCES FOR GOVERNMENT PUBLICATIONS.**

2.5.1 AR (Army Regulations) is available at the following website link: http://www.apd.army.mil

2.5.2 ADA-ABA is available at the following website link: http://www.access-board.gov/guidelines-and-standards/buildings-and-sites

2.5.3 References to the Corps of Engineers, Louisville District, Army Reserve Customer Website shall utilize the following website link: https://lrd.usace.army.mil/Mission/Military-Construction-Reserve/Design-Guides/#/
Items posted on this site are applicable only if referenced in the RFP.

2.5.4 The following documents are available at the Corps of Engineers, Louisville District, Army Reserve Customer Website:

United States Army Reserve (USAR) Design Guide, USAR Facilities
I3A Installation Information Infrastructure Architecture (I3A) for Army
installations
ARNEC ITC
USAR Design Process and Submittal Requirements (DPSR)
2017 Implementing Guidance, Army Stormwater Management Using Low Impact Development
MEMORANDUM FOR PPMD titled "Implementation of UFC 4-010-01 revision 12 Dec 2018" dated 22 January 2019
Department of the Army Sustainable Design and Development (SDD) Policy memo dated January 17, 2017
IDS Responsibilities memo; Arms Vault IDS system
Caging Details; Unit Storage and Arms Vault, and other rooms with caging.
US Army Reserve Color Board
Specification Section 27 05 28.00 48 Cable Trays, For Communications Systems
Specification Section 27 05 29.00 48 Protective Distribution System (PDS) for SIPRNET Communications Systems
Specification Section 27 10 00.00 48 Building Telecommunications Cabling
Specification Section 28 13 00.00 48 CAC Compatible Physical Access Control System
Specification Section 33 82 00.00 48 Telecom Outside Plant (OSP)

2.5.5 NOT USED

2.5.6 The Joint Service Oil/Water Separator Guidance Document is available from the U.S. Army Environmental Center, and can be ordered on CD-ROM by calling 1-800-USA-3845.

2.5.7 SDDCTEA Pamphlet 55-17 is available at the following website link: https://www.sddc.army.mil/sites/TEA/Functions/SpecialAssistant/TrafficEngineeringBranch/Pages/pamphlets.aspx

2.6 **PERMITS AND COORDINATION WITH LOCAL AUTHORITIES.**

2.6.1 **General.** The Contractor is responsible for making all applications and obtaining required municipal, utility, and regulatory agency coordination, reviews, permits, inspections and approvals, and is responsible for payment of any associated fees or charges. Contractor shall not contact agencies and individuals listed below during the preparation of their proposal, unless noted otherwise. If Government information, signatures, names or addresses are required for applications, approvals or permits, the Contractor is responsible for obtaining same. This is a Federal Government project; therefore, some reviews, permits, inspections and approvals are not required. The Contractor is responsible for identifying such requirements for a commercial project and verifying with the Government which of these will be waived. Permit requirements which have been identified are listed below. This list is not all-inclusive, and Contractor is responsible for verifying that information below remains accurate.

2.6.1.1 On Federal installations, an excavation permit may be required; if so, Contractor is responsible for obtaining the permit. The point of contact is TBD.

2.6.2 **Jurisdiction.** By Federal and Texas State law, most State and local governmental agencies do not have jurisdiction over Federal construction on Federal land. It is the intention of the Army Reserve to be a "good neighbor" to the State and local governmental agencies, and to comply with applicable State and local codes and regulations. The Contractor is required to comply with local codes and regulations, as noted in Section 2.1.3. The Contractor shall strive to keep local governmental agencies informed of the design and construction progress of the project.

2.6.3 **Streets, Rights of Way, and Street Access.** Not Used.

2.6.4 **Planning and Zoning.** The Louisville Corps of Engineers Contracting Officer will handle all permitting requests. Contact Adam Wantland, 502-315-6197, adam.wantland@usace.army.mil

2.6.5 **Building Code.** The Contractor is responsible for compliance with applicable building codes. The Government's review of Contractor's design and construction will include review of documentation of the project code compliance, but does not relieve Contractor of compliance responsibility.

2.6.6 **Fire Protection.** The Contractor is responsible for compliance with applicable fire protection and life safety codes. The Government's review of Contractor's design and construction will include review of documentation of the project compliance with requirements, but does not relieve Contractor of compliance responsibility. Point of contact is TBD.

Repair MRAR Building 56767 (ECS)
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Note: The following references are not available for the Phase I Advertisement.

2.6.7 **Water.** See Part 3 of this Section for additional information.

2.6.8 **Sanitary Sewer.** See Part 3 of this Section for additional information.

2.6.9 **Natural Gas.** See Part 3 of this Section for additional information.

2.6.10 **Electric.** See Part 4 of this Section for additional information.

2.6.11 **Telecommunications.** See Part 15 of this Section for additional information.

2.6.12 **Cable Television.** See Part 15 of this Section for additional information.

2.6.13 **Storm Drainage, and Soil and Water Conservation.** See Part 3 of this Section for additional information.